Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

SUBCONTRACT

This Subcontract, made the 01st August, 2025 by and between Navillus Tile Inc. d/b/a Navillus Contracting ("Navillus" and/or "Contractor"), with offices located at 633 3rd Avenue, New York NY 10017 the ("Contractor") and **Elli NY Design.** with its principal office at **50-01 Metropolitan Ave, Ridgewood, NY** ("Subcontractor").

W I T N E S S E T H:
For the consideration hereinafter named, the Contractor and the Subcontractor, intending to be legally bound, do hereby mutually covenant and agree as follows:

DESCRIPTION AND LOCATION OF PROJECT: Contract C000080867 - New 5-Story PS/IS 341Q (hereinafter the "Project") in accordance with the plans, specifications, addenda and bulletins of New York City School Construction Authority (hereinafter the "Owner" and/or "NYCSCA").

The Contract assigns certain rights and authority to act regarding the Project variously to the Owner and and/or Architect Engineer. All references in this Subcontract to the rights and authority of the "Owner" and/or the "Architect" shall be understood to refer to the party or parties given such rights and authority under the Contract, as the case may be.

CONTRACT: The General Conditions, Special Conditions and Terms and Conditions of the Agreement between the New York City School Construction Authority and Navillus Contracting as Contractor dated 10/11/2022

ARTICLE I
DESCRIPTION OF WORK

1.1 The Subcontractor shall furnish all labor, surveying, layout, materials, appliances, tools, plant, appurtenances, equipment, scaffolding, permits, methods, transportation, power, fuel, water, supplies, hoisting, rigging and services of every kind necessary for the complete and entire performance of the work under this Subcontract; and in a good, substantial, thorough and workmanlike manner, and in strict accordance with all plans and specifications and any and all addenda, memoranda, bulletins and modifications thereto, subject to the final completion, approval and acceptance of the Contractor and the Owner, and perform in every respect complete and operable when applicable (hereinafter the "Work"), For and at the Project and as required by the Contract.

The Work of this Subcontract includes: Custom Casework work as per, "Scope of Work," attached.

ARTICLE II
CONTRACT DOCUMENTS

2.1 The Contract Documents shall consist of the following:

Subcontract Agreement

Contract between Owner and Contractor

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Exhibit “A” List of Drawings, Specifications and Addenda

Exhibit “B” Scope of Work

Exhibit “C” Payment and Performance Bond Forms

Exhibit “D” Insurance Requirements

Exhibit “E” Requisitioning Instructions

Exhibit “F” Unit Price

Exhibit “G” Schedule Requirements

Exhibit “H” Special Conditions

Exhibit “I” Employment, Labor and Subcontracting Requirements

Exhibit “J” Safety

Exhibit “K” OCIP Insurance Manual

Exhibit “L” Navillus’ Code of Conduct and Standards of Business Conduct

2.2 The plans, specifications, general conditions, special conditions, addenda and bulletins, and the Contract, are included as a part of this Agreement insofar as applicable to the Work. Each document is available for examination by the Subcontractor at all reasonable times at the office of the Contractor. This Agreement shall also include the Schedules, Exhibits and Riders listed in Article 2.1 above, receipt of which acknowledge by Subcontractor. All of the aforesaid documents, including this Agreement and its attachments, are sometimes referred to hereafter as the Contract Documents. The Subcontractor represents and agrees that it has carefully examined and understands this Agreement and the other Contract Documents, has investigated the nature, locality and site of the Work and the conditions and difficulties under which it is to be performed, and that it enters into this Agreement on the basis of its own examination, investigation and evaluation of all such matters and not in reliance upon any opinions or representations of the Contractor, or the Owner, or of any of their respective officers, agents, servants, or employees.

2.3 Subcontractor shall be bound by all the terms of the Contract and assume (i) all the obligations of Contractor as stated therein which are applicable to the Work covered by this Subcontract and (ii) the general obligations as between Contractor and Owner, which shall also apply as between Contractor and Subcontractor, including any provisions of the Contract required to be inserted or incorporated into this and other subcontracts, including but not limited to the MacBride Principles Provisions as fully as though copied herein. The Subcontractor acknowledges that the Contract is subject to the Rules of the Procurement Policy Board of the City of New York and that Subcontractor shall be likewise bound as applicable to the work covered by this Subcontract. Subcontractor hereby affirms that it has examined all Contract Documents or has

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

declined an opportunity to do so and agrees that it will not plead unfamiliarity with any of said documents in connection with any issue claim or dispute which may arise hereunder.

2.4 The plans, drawings, details and specifications are intended to supplement one another and any work or materials shown, mentioned or reasonably implied in one and not in the others are to be furnished by the Subcontractor without extra charge. The enumeration of particular items in this Subcontract or in the specifications shall not be construed to exclude other items. The intention of the Contract Documents is to include everything, whether specified herein or not, necessary for the proper execution and completion of the Work. All references to the word "Contractor" contained in the specifications, drawings, safety requirements, or other contract documents as they pertain to the Work shall be deemed to apply to the Subcontractor. Any notes in drawings or specifications that delineate work among various trades are not valid if they conflict with Exhibit "B" of the Subcontract.

2.5 Subcontractor acknowledges that Owner is a third-party beneficiary of this Agreement, even though to the fullest extent permitted by law, this Agreement creates no obligation whatsoever of Owner to Subcontractor. All Subcontractor's rights and remedies under this Agreement are solely against the Contractor.

ARTICLE III
COMMENCEMENT AND COMPLETION OF WORK

3.1 Time is of the essence in the commencement, prosecution and construction of the Work. The Subcontractor shall commence and complete the Work at the times hereinafter mentioned or as required by the Contractor to ensure Contractor's compliance with the time requirements of the Contract. Subcontractor shall perform and complete the Work in accordance with the time schedules, starting dates and completion dates, if any, set forth in the Rider hereto. Where the dates for the commencement or completion of work or the making of deliveries are not specified or if said dates are specified but the Contractor shall require such commencement or deliveries prior to or after the time fixed for such commencement, such work or deliveries or the part of the same concerning which no dates are given, shall be commenced on three (3) days notice from the Contractor and shall be prosecuted and completed with all possible diligence and speed or as otherwise directed by the Contractor. The time stated in this Agreement for the commencement, prosecution and completion of the Work and the deliveries and installation of material shall be deemed of the essence of this Agreement.

3.2 The Subcontractor agrees that in the performance of the Work, it will cooperate and coordinate its work with other contractors and subcontractors at the Project and not interfere with, or impede the work of the Contractor, or any other subcontractor or contractor at the Project and must afford all other contractors and subcontractors' reasonable opportunity for the introduction and storage of their materials and the execution of their work.

3.3 The Subcontractor shall proceed with the Work in a prompt and diligent manner, without delay, and shall perform the Work so as not to delay the other trades and to insure completion of the Work in accordance with the requirements of this Agreement and the Contract, and as may be modified during the construction of the Project, at the sole discretion of the Contractor. It may be necessary for Subcontractor to temporarily omit portions of work to allow other trades to perform their work, or for coordination, accessibility or scheduling as designated by the

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Contractor. It is understood that the completion of such undone portions of the work may be required to be performed at different times and intervals, including after the Subcontractor has completed his primary work. Contractor's adjustment of the construction schedule sequence, or durations shall not be the basis of a claim by Subcontractor.

3.4 The Subcontractor shall provide within ten (10) days of request a proposed schedule of submission of shop drawings (with appropriate cross references to applicable sections of the specifications) and a proposed schedule of the deliveries of materials to the Project with periodic update of the status of progress of such shop drawings and material deliveries within two (2) days of request by the Contractor.

3.5 The scheduling of all construction operations at the Project shall be at the option of the Contractor and the Subcontractor shall, if requested, furnish all scheduling information in such form and detail as requested by the Contractor, to the satisfaction of the Contractor. The Subcontractor shall furnish such information within seven (7) days of request, and the Subcontractor shall update and/or revise such information, as requested by the Contractor, at any time, either prior to or during the performance of the Work.

3.6 Information submitted by the Subcontractor or others, acceptance or approval by the Contractor and the scheduling that may be developed and implemented by the Contractor shall not constitute the basis of any claim by the Subcontractor or its subcontractors or materialmen for damage or delay, or excuse the Subcontractor's performance as required herein.

3.7 In the event the Subcontractor fails to commence the Work after being notified to do so, or should the Contractor judge that the Subcontractor is delaying the progress of the Work or not complying with the progress schedule, if any, or not pursuing the Work in the manner set forth by the plans, specifications and this Agreement, the Contractor shall notify the Subcontractor, who shall, within two (2) calendar days thereafter, furnish whatever materials are required by the Contractor, and employ additional workmen, equipment and supplies as required so as to bring the Work into conformity with the job progress as required by the Contractor or be found in default of this Agreement, at the option of the Contractor.

3.8 The Subcontractor shall, at its sole expense, work overtime, including Saturdays and Sundays at the direction of the Contractor, if in the judgment of the Contractor such overtime and Saturday/Sunday work is necessary to meet progress requirements due to any delays caused by the Subcontractor or the failure by the Subcontractor to commence its work timely or the failure by the Subcontractor to be in conformity with the job progress. The failure of the Subcontractor to comply with said demand shall constitute a material breach and a default of this Agreement, at the option of the Contractor.

3.9 The Subcontractor shall be obligated to pay the Contractor for supervision and any labor and/or expenses related to facilities required during overtime to perform work including but not limited to temporary facilities, safety, security etc.

3.10 If the progress of the Work or of the Project is delayed not because of any fault or neglect or act or failure to act on the part of the Subcontractor or any of its officers, agents, servants or employees, then the Contractor, if it deems necessary, may direct the Subcontractor to work overtime, and if so directed, the Subcontractor shall work said overtime and the Contractor will pay

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

the Subcontractor for such overtime in an amount equal to the actual additional wages paid, if any, at rates which have been approved in writing by the Contractor, plus taxes and other charges imposed by law on such additional wages required to be paid by the Subcontractor.

3.11 All costs of standby trades should this Subcontractor work other than normal working hours or Saturdays, Sundays and Holidays will be the sole responsibility of the Subcontractor.

ARTICLE IV
PRICE AND PAYMENTS

4.1 Subject to the terms herein stated, It being mutually understood by the Contractor and Subcontractor that this Contract is a Lump Sum Subcontract and the said Contractor hereby agrees to pay the said Subcontractor for such labor and material herein undertaken to be done and furnished for the work as mentioned above the fixed sum, if a "Lump Sum" Subcontract, or the approximate sum if a "Unit Price" subcontract, of **Five Hundred Ninety Thousand Dollars and Zero Cents ($590,000.00)** (the "Price") subject to additions and deductions as herein provided.

The Price includes all Federal, State, County, Municipal and other taxes imposed by law and based upon labor, services, materials, equipment or other items acquired, performed, furnished or used by or levied or assessed with respect to the Work, including by not limited to sales, use and personal property taxes payable by or levied or assessed against the Owner, the Contractor or the Subcontractor. Where the law requires any such taxes to be stated and charged separately, the total price of all items included in the Work plus the amount of such taxes shall not exceed the Price.

4.2 Prior to the commencement of the Work and not more than fifteen (15) days after the date of this Agreement, the Subcontractor shall prepare and submit to the Contractor for the Contractor's approval and if deemed necessary by the Contractor, the approval of the Architect and Owner, a "Schedule of Values" furnishing a complete, detailed and itemized breakdown of the various divisions of work, including values for materials and labor. The total of this cost breakdown shall be equal to the Subcontract Price.

4.3 Invoices, including required supporting documentation must be submitted by the Subcontractor, on the "Requisition for Payment" forms (supplied by the Contractor), to the Contractor, at 633 3rd Avenue, New York, NY 10017, by the 20th of the month for work performed and/or material stored, if applicable, during that month. Invoices received after the 20th of the month can not be included in the Contractor's invoice to the Owner and therefore, will not be recognized as received until the 20th of the following month. Invoices received by the 20th and approved by the Contractor shall not be due and payable until the 30th of the following month, provided, as a condition precedent, that the Contractor has received payment from the Owner on account of the Subcontractor's work.

A retainage of five (5) percent; all previous payments; and all charges for services, material, stored material, equipment and other items furnished by the Contractor to or chargeable to the Subcontractor shall be deducted from the value of work installed to date.

Requisition for payment for stored material, if permitted by the Contract Documents, shall be the actual and verifiable cost to the Subcontractor (exclusive of overhead and profit) and shall be supported by invoices from the vendor to the Subcontractor correlated with the proper line item of

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

the "Trade Payment Breakdown". Requisitions for material stored off site, if permitted by the Contract Documents, must also be accompanied by insurance certificates naming the Contractor as the sole insured and providing full replacement value coverage for the materials against all perils. All payment requisitions for stored material, on and off the premises, must be accompanied by a sworn notarized statement of the Subcontractor that the materials are for installation in the Project only, that the materials strictly comply with the requirements of this Subcontract, and that the materials have been segregated and shall be labeled as property of the Contractor, upon payment therefore. Unless otherwise specified, a retainage of twenty-five (25) percent will be withheld from payments for stored materials.

The Subcontractor agrees that if and when requested to do so by the Contractor, it shall furnish copies of any and all purchase orders to vendors, for material and equipment to be installed as part of the Work.

The Subcontractor agrees that if and when requested to do so by the Contractor, it shall furnish such additional information, evidence and substantiation as the Contractor may require with respect to the nature and extent of all obligations incurred by the Subcontractor for or in connection with the Work, all payments made by the Subcontractor thereon, and the amounts remaining unpaid, to whom and the reasons therefore.

The Subcontractor further agrees that it shall, as a condition precedent to entitlement to any payment, furnish to the Contractor waivers of lien, releases or any other documentation required by the Contractor, executed by all suppliers, materialmen, laborers or sub-subcontractors or anyone furnishing labor or materials for the work under this Subcontract.

4.4 Payment of the retainage withheld pursuant to paragraph 4.3 shall be due within one year after completion and acceptance of the Work by the Contractor, the Architect and the Owner, provided first however, as a condition precedent, that (1) the Contractor shall receive the "Requisition for Payment" for the payment of the retainage, (2) the Contractor shall have received all funds for the Work performed under this Agreement from the Owner, (3) the Subcontractor shall have furnished evidence satisfactory to the Contractor that there are no claims, obligations or liens outstanding or unsatisfied for labor, services, materials, equipment, taxes or other items performed, furnished or incurred for or in connection with the Work and (4) the Subcontractor shall have executed and delivered in a form satisfactory to the Contractor, a General Release running to and in favor of the Contractor and its Surety and the Owner. Should there prove to be any such claim, obligation or lien after final payment is made, the Subcontractor shall immediately upon demand, make payment for, or refund to the Contractor all monies that the Contractor and/or the Owner shall have paid in satisfying, discharging or defending against any such claim, obligation or lien or any action brought or judgment recovered thereon and all costs and expenses, including legal fees and disbursements, incurred in connection therewith.

4.5 If any claim or lien is made or filed with or against the Contractor, the Owner, the Project or the Premises by any person claiming that the Subcontractor or any subcontractor or other person under it has failed to make payment for any labor, services, materials, equipment, taxes or other items or obligations furnished or incurred for or in connection with the Work, or if at any time there shall be evidence of such nonpayment or of any claim or lien for which, if established, the Contractor or the Owner might become liable and which is chargeable to the Subcontractor, or if the Subcontractor or any subcontractor or other person under it causes damage to the Work or to any

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

other work on the Project, or if the Subcontractor fails to perform or is otherwise in default under any of the terms or provisions of this Agreement or the other Contract Documents, the Contractor shall have the right to retain from any payment then due or thereafter to become due the Subcontractor an amount which it deems sufficient to (1) satisfy, discharge and/or defend against any such claim or lien or any action which may be brought or judgment which may be recovered thereon, (2) make good any such nonpayment, damage, failure or default, and (3) compensate the Contractor and the Owner for any and all losses, liability, damages, costs and expenses, including legal fees and disbursements, which may be sustained or incurred by either or both of them in connection therewith, and the Subcontractor shall indemnify and hold harmless the Contractor against the same. The Contractor shall have the right to apply and charge against the Subcontractor so much of the amount retained as may be required for the foregoing purposes. If the amount retained is insufficient therefore, the Subcontractor shall be liable for the difference and immediately upon notice pay the same to the Contractor

4.6 No payment (final or otherwise) made under or in connection with this Agreement shall be conclusive evidence of the performance of the Work or of this Agreement, in whole or in part, and no such payment shall be construed to be an acceptance of defective, faulty or improper work or materials, or shall it release the Subcontractor from any of its obligations under this Agreement; nor shall entrance and/or use by the Owner constitute acceptance of the Work or any part thereof.

4.7 The Subcontractor agrees that the Contractor shall be under no obligation to pay the Subcontractor for any work done on this Project, until and unless the Contractor has been paid therefore by the Owner, and the provisions hereof, stating the time of progress and final payments and the amount thereof are expressly contingent upon and made subject to the condition that the Contractor shall receive from the Owner progress or final payments of the amounts being claimed by the Subcontractor on account of work done by the Subcontractor on this Project. The time when such payments shall be due the Subcontractor shall be postponed until the Contractor has received same from the Owner. The Subcontractor further agrees and acknowledges that he relies primarily for payment for work performed on the credit and ability to pay of the Owner, and not on that of the Contractor and that the payment by the Owner to the Contractor for work performed by the Subcontractor shall be a condition precedent to any payment obligation of the Contractor to the Subcontractor. The Subcontractor further agrees that the liability of the surety on the Contractor bond, if any, for payment to the Subcontract, is subject to the same conditions precedent as are applicable to the Contractor's liability for payment to the Subcontractor. It is the intention of Contractor and Subcontractor that each shall bear the risk as to payments due them for their work, labor or services, that the Owner may unreasonably withhold payment and/or may be unable to make payment as a result of insolvency or otherwise. This clause only controls the right of Subcontractor to receive payment from Contractor and Contractor’s Surety (if any) but shall not impair any right of Subcontractor to enforce and foreclose upon any lien upon the Owner’s property and/or upon any funds due from Owner to Contractor granted under any lien statute. In accordance with New York Lien Law, Section 34, by agreeing to the terms of this clause Subcontractor is not waiving any rights to which it is entitled under the Lien Law. To the extent that this clause could operate to limit or restrict the full extent of Subcontractor’s lien rights, this clause is waived in that context only. However, for all other purposes, this clause shall remain in full force and effect.

4.8 Without diminishing the provisions of laws, any and all funds payable to the Subcontractor hereunder are declared to constitute trust funds to be applied first by the Subcontractor

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

to the payment of claims of subcontractors, the Architects, engineers, surveyors, laborers and materialmen arising out of the Work, to claims for utilities furnished and taxes imposed, and to the payment of premiums on surety bonds and other bonds filed and premiums on insurance accruing during the construction of the Work, before application to any other purpose.

ARTICLE V
DELAYS, EXTENSIONS OF TIME. ETC.

5.1 The Subcontractor agrees that if it shall delay the progress of the Work so as to cause damage, of whatsoever kind or nature for which the Contractor shall suffer or become liable, the Subcontractor shall make good to the Contractor any such damages or costs and indemnify and save the Contractor harmless from the same. Any assent or permission of the Contractor to the delayed finishing of the Work shall not be construed as a waiver of this Agreement to make good any damage caused by such delay or default, nor shall it be a forfeiture of such damages.

5.2 In the event the Work of the Subcontractor is damaged, or should the Work of the Subcontractor be delayed or interfered with by any other subcontractor or other contractor on the Project, the Subcontractor and each such subcontractor or other contractor shall be directly responsible to the other, each shall look solely to the other for compensation, and the Subcontractor will not seek compensation or damages from the Contractor, by reason thereof.

5.3 Should the Subcontractor be obstructed or delayed in the commencement, prosecution or completion of the Work because of conditions not attributable to the Subcontractor and which by the terms of the Contract may be grounds for an extension of time, it shall, in full and complete compensation for said delay, within two (2) days thereafter, give notice to the Contractor in writing of such delay and make claims for an extension of time, and the Contractor may award and certify the amount of additional time to be allowed, if any. For delays for which the Owner and its representatives are responsible, said extension of time shall be the same as shall be allowed under the Contract for said delay. If the Subcontractor fails to furnish to the Contractor written notice in accordance with this paragraph, the Subcontractor agrees that it has waived any right to any such extension of time. Where such delays are not the fault or responsibility of the Contractor, except to the extent any costs or claim for such delays are recognized and paid under the Contract, the extension of time granted shall be Subcontractor’s sole remedy.

5.4 The Subcontractor acknowledges that the Price is based on the fact that the Contractor is not liable for any damages or costs due to delays, accelerations, impact, non-performance, interferences with performance, suspension or changes in the performance or sequence of the Subcontractor's Work, even if the Contractor wrongfully denies an extension of time to the Subcontractor. Thus, in no event shall the Contractor be liable to the Subcontractor for any damages caused by delay, acceleration, interferences, suspension, non-performance, or changes in the sequence of performance or impact upon, or with, the Work of the Subcontractor. The Contractor shall have the right, at any time, to delay, accelerate or suspend the commencement or execution of the whole or any part of the Work herein contracted to be done, or vary the sequence or performance thereof, without compensation to the Subcontractor other than extending the time for completing the Subcontractor's Work for a period equal to such delay or suspension. Progress schedules may from time to time be modified to conform to acceleration, delays, suspensions or variances and the Subcontractor shall confirm its progress thereto. No allowance for time will be made to the

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Subcontractor for delay in preparing its submittals or in securing approval of the Architect when such submittals are not properly prepared for approval of the Architect.

5.5 In addition to the foregoing provisions of this Article, and not in limitation thereof, it is understood that, at the time of the execution of this Subcontract, the parties hereto are aware of the possibility of increases in the prices of labor or materials necessary to perform this Subcontract and/or the difficulty in obtaining same. It is accordingly understood that no claim shall be made by the Subcontractor for any increase in the Price herein even though it may be necessary to obtain materials from local warehouse stocks or otherwise in order to perform within the time required by the Contractor. The Subcontractor shall at no time claim that the Price was predicated on obtaining materials from any particular source of supply. If it be thereafter claimed that the Subcontractor finds that the price of labor and materials herein provided for has increased to any extent, for any reason whatsoever, including (but without limiting the generality of the source or causes of such possible increases) strikes, forced or voluntary agreements between employer and employee, present or future Federal, State, County or Municipal regulations, enactments, statutes, decrees, present or future codes, trade association agreements; whether the same be brought by statute, agreement or otherwise, freight rates, or any change of economic conditions whatsoever, it is understood that any and all risks of increase in the price of labor and materials have been contemplated by the Subcontractor and have been taken into full consideration in arriving at the Price. The Subcontractor shall at no time claim such increase even though the Subcontractor has been brought into a period of increased labor and material cost by reason of delays of the Contractor, any of its other subcontractors, the Owner or its representatives, or other independent contractors employed by the Owner, or for any cause whatsoever.

5.6 Should concealed conditions be encountered in the performance of the Work below the surface of the ground, or should concealed or unknown conditions be at variance with the conditions indicated or depicted by the Contract Documents, or should unknown physical conditions exist below the surface of the ground or should concealed or unknown conditions exist in an existing structure of an unusual nature, differing materially from those ordinarily encountered and generally recognized as inherent in the work of the character provided for in this Agreement, be encountered, the Subcontractor shall remain obligated to continue to perform the Work in accordance with the terms of this Agreement, and except to the extent such claim is recognized under the Contract, Subcontractor shall not be entitled to an extension of contract time or payment of any additional amounts to perform the Work, notwithstanding the existence of such conditions, as the Subcontractor specifically assumes the risk of encountering any and all such concealed conditions.

ARTICLE VI
FREIGHT CHARGES AND SHIPMENT

6.1 The Subcontractor in making or ordering shipments shall not consign or have consigned materials, equipment or any other items in the name of the Contractor. The Contractor is under no obligation to make payment for charges on shipments made by or to the Subcontractor but may, at its option, pay such charges, in which case the Subcontractor shall immediately upon presentation for payment reimburse the Contractor for the amount of such payment plus a service charge of twenty-five (25) percent of the amount paid.

ARTICLE VII
DIMENSIONS AND CONTIGUOUS WORK

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

7.1 Notwithstanding the dimensions given on the plans, specifications and other Contract Documents it shall be the obligation and responsibility of the Subcontractor to take such field or other measurements as will insure the proper matching and fitting of the Work covered by this Agreement with contiguous work.

7.2 The Subcontractor shall prepare and immediately upon receipt of an executed copy of this Agreement submit to the Contractor such shop drawings as may be necessary to describe completely the details and construction of the Work. Approval of such shop drawings by the Contractor and/or the Architect shall not relieve the Subcontractor of its obligation to perform the Work in strict accordance with the Contract Documents, or of its responsibility for the proper matching and fitting of the Work with contiguous work. If any shop drawing shows variation from the requirements of the Contract Documents because of standard shop practice or any other reason, Subcontractor shall make specific mention of such variation in his letter of transmittal to Contractor; otherwise, Subcontractor will not be relieved of the responsibility for executing the work in accordance with the Contract Documents, even though such shop drawings have been reviewed or approved. The review and/or approval of samples, shop drawings and details will be general and will not relieve Subcontractor from the responsibility for adherence to this Subcontract nor shall it relieve Subcontractor from the responsibility for any errors which may exist.

7.3 Should the proper and accurate performance of the Work hereunder depend upon the proper and accurate performance of other work not covered by this Agreement, the Subcontractor shall carefully examine such other work, determine whether it is in fit, ready and suitable condition for the proper and accurate performance of the Work hereunder, use all means necessary to discover any defects in such other work, and before proceeding with the Work hereunder, report promptly any improper conditions and defects to the Contractor in writing and allow the Contractor a reasonable time to have such improper conditions and defects remedied. Upon the commencement of such work by the Subcontractor, the Subcontractor shall have conclusively accepted such contiguous work as fit, ready and in a condition suitable and sufficient for the proper and accurate performance of the Work hereunder.

7.4 Subcontractor shall provide all Layout and Engineering work required for the Work

7.5 Subcontractor agrees that notwithstanding that other subcontractors will examine the Work in accordance with provisions in their respective subcontracts similar to provisions described in Article 7.3, and notwithstanding any industry code, provision or practice that places special obligation on Contractor or other subcontractors to inspect the Work immediately after it is put in place (or otherwise timed in a way that requires unusual or unreasonable effort by others), Subcontractor remains responsible for the proper and accurate performance of the Work and shall remedy any defects discovered immediately upon demand of Contractor.

ARTICLE VIII
INTERPRETATION OF PLANS AND SPECIFICATIONS

8.1 The Work hereunder is to be performed and furnished under the direction and to the satisfaction of the Owner and the Contractor. The decision of the Contractor as to the true construction, meaning and intent of the plans and specifications shall be final and binding upon the parties hereto. The Contractor will furnish to the Subcontractor such additional information and

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

plans as to further describe the Work to be performed and furnished by the Subcontractor and the Subcontractor shall conform to and abide by the same. The Subcontractor shall not make any changes, additions and/or omissions in the Work except upon written order of the Contractor as provided in Article IX hereof.

ARTICLE IX
CHANGES IN THE WORK

9.1 The Contractor reserves the right, from time to time, whether the Work or any part thereof shall or shall not have been completed, to make changes, additions and/or omissions in the Work as it may deem necessary upon written order to the Subcontractor. The Subcontractor acknowledges and agrees that it shall make no claim for extra or additional compensation on account of any such work, unless same shall have been done pursuant to a written order, signed by the representative designated by the Contractor as having the authority to order such extra work.

9.2 The amount to be paid to the Subcontractor on account of any extra, changed, added or omitted work shall be;

(A) An agreed upon lump sum price, or at the sole option of the Contractor;
(B) Unit prices as specified in this Subcontract, or at the sole option of the Contractor;
(C) A time and material basis computed as follows:

(i) On the basis of actual or estimated costs, whichever is less, of labor, material, supplies, and other expenses (hereafter called "Costs of the Work") where such Costs of the Work shall be completely itemized showing quantities for each. Wage benefits, taxes, insurances, etc., shall be computed and shown separately as well as sales tax if applicable. Overhead of ten (10) percent and profit of five (5) percent shall be computed on the Costs of the Work subtotal, and shown separately. The overhead cost of ten (10) percent shall be in lieu of all administration, clerical expense, supervision, or superintendent of any nature whatsoever, including foremen, or the cost, use or rental of tools or plant.

(ii) On the basis of actual or estimated costs, whichever is less, for work performed by a sub-subcontractor where the sub-subcontractor's costs shall be completely itemized showing quantities for each. The sub-subcontractor shall be allowed overhead and profit which amount in total shall not exceed ten (10) percent of such cost, which shall be itemized separately and the Subcontractor shall be allowed overhead and profit which amount in total shall not exceed five (5) percent of such costs. The same limitations on all overhead cost as provided in C (i) above shall apply herein.

(iii) If the Contractor determines that the actual cost is to be used to compute the value of extra work, the Subcontractor shall submit daily time and material tickets, on each day that the changed work is performed to the Contractor's authorized representative, for verification. The failure of the Subcontractor to submit any daily ticket shall constitute a waiver of its entitlement to payment therefore and invoices submitted without verified daily tickets shall not constitute a valid basis for payment.

9.3 In the event that the Contractor directs the Subcontractor to perform any item of work, which the Subcontractor claims involves extra or additional work, it shall, within three (3)

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

days after receipt of such direction, and before proceeding therewith, make written claim to the Contractor, giving in detail the basis of its contention that the work is extra or additional, together with a detailed breakdown showing separately the additional cost of each item of labor and material. The Subcontractor shall then proceed with this work. A failure to make written notice of claim within the time specified, and in the manner as herein provided, shall constitute a waiver of such claim and no recovery may be had by the Subcontractor, on account of the performance of such work. The failure of the Subcontractor to perform this work, immediately after giving written notice of its claim, or on the fourth day subsequent to being directed to perform this work, whichever is less, shall constitute a material breach of this Agreement, regardless of the legitimacy of the Subcontractor's contentions, as it is specifically understood and agreed that the progress of the Work may not be delayed by reason of any controversy between the parties.

9.4 With respect to any item of work referred to in paragraph 9.3, Subcontractor's written notice of its claim shall be resolved pursuant to the provisions of Article XXIV of this Agreement.

9.5 Where any additional work is ordered, the Subcontractor shall for such purposes, permit the Contractor to audit its books. The Subcontractor shall produce any and all data which the Contractor may request for the purpose of determining the correctness of the charges. The Subcontractor shall keep such full and detailed accounts as may be necessary to reflect its operations with respect to such changes and extras, and the system adopted shall be such as is satisfactory to the Contractor, the Contractor, their agents and employees, shall be afforded access at all reasonable time to the Subcontractor's and vendor's books, correspondence, instructions, receipts, vouchers, memoranda and records of all kinds, relating to all work under this Subcontract as well as to such changes and extras, and the Subcontractor shall preserve the same for a period of one year after final payment hereunder. In regard to the foregoing and generally, the Subcontractor hereby authorizes the Contractor to check directly with its suppliers of labor and materials the charges for such labor, materials and other items appearing in the Subcontractor's bills rendered to the Contractor, to confirm balances due and obtain sworn statements and waivers of lien.

9.6 Should the Subcontractor receive a bulletin, or pricing request, which it contends will involve additional work, if it is to perform the work identified in any of the foregoing documents, it shall submit its proposal to the Contractor within 7 days of receipt. It is agreed that if the Subcontractor does not submit such proposal within seven (7) days, then the Contractor may estimate the value of work to be performed by the Subcontractor and the Subcontractor will execute a subcontract change order for the Contractor's estimated value of work, if so directed by the Contractor.

9.7 In no event shall the terms of this Article impair or modify in any manner, or extend the liability of the Contractor to the Subcontractor, as set forth in Article V of this Agreement.

ARTICLE X
INSPECTION AND DEFECTIVE WORK

10.1 The Subcontractor shall at all times provide sufficient, safe and proper facilities for the inspection of the Work by the Contractor, the Architect and their authorized representatives in the field, at shops, or any other place where materials or equipment for the Work are in the course of preparation, manufacture, treatment or storage. The Subcontractor shall, within twenty-four (24) hours after receiving written notice from the Contractor of any defective work, proceed to take down

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

all portions of the Work and remove from the premises all materials whether worked or unworked, which the Architect or the Contractor shall condemn as unsound, defective or improper or as in any way failing to conform to this Agreement or the plans, specifications or other Contract Documents, and the Subcontractor, at its own cost and expense shall replace the same with proper and satisfactory work and materials and make good all work damaged or destroyed by or as a result of such unsound, defective, improper or nonconforming work or materials or by the taking down, removal or replacement thereof. Removal and replacement by the Subcontractor as aforementioned shall constitute the Subcontractor's acknowledgment that the portion of the work removed was unsound, defective or improper or otherwise failed to conform to the Contract Documents.

ARTICLE XI
DEFAULT

11.1 Should the Subcontractor at any time refuse or neglect to supply sufficient skilled workmen or materials of the proper quality and quantity, or fail to prosecute the Work with promptness and diligence, or cause by any act or omission the stoppage or delay of or interference with or damage to the work of the Contractor or of any other contractors or subcontractors on the Project, or fail in the performance of any of the terms and provisions of this Agreement or of the other Contract Documents, or should the Architect determine that the Work or any portion thereof is not being performed in accordance with the Contract Documents, then in any of such events, each of which shall constitute a default hereunder on the Subcontractor's part, the Contractor shall have the right, in addition to any other rights and remedies otherwise provided by this Agreement and the other Contract Documents, or by law, after three (3) days written notice to the Subcontractor mailed or delivered to the last known address of the Subcontractor, (a) to perform and furnish through itself or through others any such labor or materials for the Work and to deduct the cost thereof from any monies due or to become due to the Subcontractor under this Agreement, and/or (b) to terminate the employment of the Subcontractor for all or any portion of the Work, enter upon the premises and take possession for the purpose of completing the Work, of all materials, equipment, scaffolds, tools, appliances and other items thereon, all of which the Subcontractor hereby transfers, assigns and sets over to the Contractor for and until the completion of such work, and to employ any person or persons to complete the Work and provide all the labor, services, materials, equipment and other items required therefore. In case of such termination of the employment of Subcontractor, the Subcontractor shall not be entitled to receive any further payment under this Agreement until the Work shall be wholly completed to the satisfaction of the Contractor and the Architect and shall have been accepted by them, at which time, if the unpaid balance of the amount to be paid under this Agreement shall exceed the cost and expense incurred by the Contractor in completing the Work, such excess shall be paid by the Contractor to the Subcontractor; but if such cost and expense shall exceed such unpaid balance, then Subcontractor shall immediately upon receipt of notice of the amount thereof pay the difference to the Contractor. Such cost and expense shall include, the cost of completing the Work to the satisfaction of the Contractor, the Owner and the Architect, and of performing and furnishing all labor, services, materials, equipment, and other items required therefore; a reasonable charge for the Contractor's overhead; and all losses, damages, costs and expenses, including legal fees and disbursements sustained, incurred or suffered by reason of or resulting from the Subcontractor's default.

11.2 The Subcontractor agrees that, if it delays the progress of work or breaches its guarantees of the Work so as to cause any damages (including direct, indirect, incidental, special and/or consequential) for which the Contractor shall suffer or become liable, it shall make good to

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

and/or indemnify the Contractor against all such damages, including, but not limited to, paying the Contractor for the Subcontractor's share of any liquidated damages assessed against the Contractor under the terms of the Contract to the extent caused or contributed to by the acts and omissions of the Subcontractor.

11.3 Should one or more other subcontracts, now or hereafter, exist between the Subcontractor and the Contractor, concerning this or any other construction project, then the Contractor may withhold monies due or to become due on any subcontracts and apply the same toward payment of any damage suffered on that or any other such subcontracts.

11.4 The Subcontractor agrees that, if it breaches the Subcontract, including its warrantees and guarantees of the Work, so as to cause any damages (including direct, indirect, incidental special and/or consequential) for which the Contractor shall suffer or become liable, it shall make good to and/or indemnify the Contractor against all such damages, to the extent caused or contributed to by the acts and omissions of the Subcontractor.

11.5 The Subcontractor will be fully liable for any lien, claim, security interest or any other encumbrance filed against the Contractor, based on New York Labor Law Article 6 §198e.

ARTICLE XII
LOSS OR DAMAGE TO WORK

12.1 The Subcontractor is responsible for transporting, on site storage, temporary protection, installation and final adjustment of all materials in its scope of work and shall protect its work and materials so that same will not be damaged by the work or workers of other trades during installation. Subcontractor shall have full responsibility to protect and maintain all materials in proper condition and forthwith repair, replace and make good any damage thereto until final acceptance of the Work. Neither the Owner nor the Contractor shall be responsible for any loss or damage to the Work to be performed and furnished under this Agreement, however caused, until final acceptance thereof by the Contractor and the Owner; nor shall the Contractor or the Owner be responsible for loss of or damages to materials, tools, equipment, appliances or other personal property owned, rented or used by the Subcontractor or anyone employed by it in the performance of the Work, however caused and all such risk of loss shall remain with Subcontractor. The foregoing is subject to an exception to the extent such loss or damages are recovered from the fire insurance provided by Contractor hereunder. Regardless of the provisions of the Contract or specifications regarding any watchman service or other security for the protection of the Contractor, the Contractor will not, in any manner, be answerable or accountable for any loss or damage, including theft, that shall or may happen to the Work, or any part or parts thereof, or any of the materials or other things used or employed in finishing or completing the Work.

12.2 The Contractor or the Owner, if provided in the Contract Documents, shall effect and maintain fire insurance (with extended coverage, if specified or otherwise required) upon all work, materials and equipment incorporated in the Project and all materials and equipment on or about the Premises intended for permanent use or incorporation in the Project or incident to the construction thereof, the capital value of which includes the cost of the Work, but not including any machinery, tools, equipment, appliances or other property owned, rented or used by the Subcontractor or anyone employed by it in the performance of the Work.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

12.3 The total value of the property insurable under this paragraph, as shown on the approved monthly requisition provided for in Article IV, plus the total value of similar property incorporated in the Project or delivered on the Premises by or on behalf of the Subcontractor during the month but not included in said requisition, as reported by the Subcontractor to the Contractor for insurance purposes only, shall determine the total value of the Subcontractor's work, materials and equipment to be insured under this paragraph.

12.4 The maximum liability to the Subcontractor under such insurance shall be for no more than that proportion of any loss which the last reported value of the Subcontractor's insured property bore to the actual value of said property at the time of such last report, and in no event for more than the actual loss. In the event of a loss under this paragraph, the Subcontractor shall be bound by any adjustment which shall be made between Contractor or the Owner and the insurance company or companies. Loss, if any, shall be made payable to the Contractor and/or the Owner, as their interests may appear, for the account of whom it may concern.

12.5 Subcontractor shall also fully and adequately protect all adjoining private and public property and all existing work on the Project site insofar as the work referred to in this Subcontract is concerned. If Subcontractor damages the work of other trades, Contractor shall have the right to have the work repaired on overtime or premium time; and Subcontractor shall be liable for the costs incurred by Contractor, such other Subcontractor, or other party of repairing existing work or property damaged by Subcontractor, and Subcontractor agrees to be backcharged for such costs. If Subcontractor can demonstrate that its work or materials have been damaged by another subcontractor, it may submit a claim for the costs incurred to repair such damages. Contractor in its sole discretion may backcharge the other subcontractor causing such damage for the costs incurred by Subcontractor but Contractor shall have no liability for such costs.

ARTICLE XIII
CLEANING UP

13.l The Subcontractor shall on a daily basis or less frequently, in the sole discretion of the Contractor; and at the Subcontractor's own cost and expense, (l) keep the area of the premises in which the Work is being performed free at all times from all waste materials, packaging materials and other rubbish accumulated in connection with the execution of the Work by center piling said material and rubbish in containers provided by the Contractor from which it shall be removed by the Contractor, (2) clean and remove from its own work and from all contiguous work of others any soiling, staining, mortar, plaster, concrete or dirt caused by the execution of the Work and make good all defects resulting there from, (3) at the completion of its work in each area, perform such cleaning as may be required to leave the area "broom clean" and (4) upon the completion of the Work, remove all of its tools, equipment, scaffolds, shanties, trailers and surplus materials. Should the Subcontractor fail to perform any of the foregoing to the Contractor's satisfaction, the Contractor shall have the right after notice (written or oral) to perform and complete such work itself or through others and deduct the cost thereof from the final payment due the Subcontractor.

ARTICLE XIV
COMPLIANCE WITH LAW AND PERMITS

14.l The Subcontractor shall obtain and pay for necessary permits and licenses pertaining to the Work and shall comply with all Federal, State, County and Municipal laws, ordinances, rules,

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

codes, regulations, orders, notices and requirements, including, among others, those relating to safety, discrimination in employment, fair employment practices or equal employment opportunity, and with the requirements of the American Insurance Association, whether or not provided for by the plans, specifications, general conditions or other Contract Documents, without additional charge or expense to the Contractor, and shall also be responsible to correct, at its own cost and expense, any violations thereof resulting from or in connection with the performance of the Work. The Subcontractor shall at any time upon demand furnish such proof as the Contractor may require showing such compliance and the correction of such violations. The Subcontractor agrees to save harmless and indemnify the Contractor from and against any and all loss, injury, claims, actions, proceedings, liability, damages, fines, penalties, costs and expenses, including legal fees and disbursements, caused or occasioned directly or indirectly by the Subcontractor's failure to comply with any of said laws, ordinances, rules, regulations, standards, orders, notices or requirements or to correct such violations, including but not limited to OSHA and municipal regulations.

14.2 Where the Contract Documents or any part thereof, conflict with law, codes, ordinances, rules, regulations, order, notices or requirements (collectively Laws), it is intended that Laws be followed. The Subcontractor shall at once report to the Contractor any inconsistency with any Laws prior to proceeding. The Subcontractor shall promptly notify the Contractor and any respective departments, or official bodies, when its work is ready for inspection and shall, at once, do all work required to remove any violations or to comply with such inspections, without additional charge to the Contractor. The Subcontractor shall perform all work necessary to obtain approval from all authorities and agencies without additional cost to the Contractor or the Owner.

14.3 This Subcontractor shall institute a hazard communication program as required by OSHA or any state or local law code or regulations. Under said program, the Subcontractor shall inform both the Contractor and all other subcontractors on the site of any hazardous materials being used by Subcontractor’s employees on this project. The Subcontractor shall provide the Contractor and all other subcontractors with copies of a Material Safety Data Sheets (MSDS); warn other subcontractors in Subcontractor’s work area of the existence of any hazardous materials; insure that any containers containing hazardous materials are appropriately labeled; and maintain an inventory of any such materials.

14.4 Subcontractor shall comply with the Immigration Reform and Control Act of 1986.

ARTICLE XV
LABOR, MATERIALS AND EQUIPMENT

15.1 The Subcontractor shall not employ persons, means, materials or equipment which or whose presence or performance on or at the Premises are likely to cause strikes, work stoppages or any disturbances by workmen employed by the Subcontractor, the Contractor or other contractors or subcontractors, on or in connection with any work on the Project. The Subcontractor agrees that all disputes as to jurisdiction of trades shall be adjusted in accordance with any plan for the settlement of jurisdictional disputes which may be in effect in the locality in which the Work is being done and that it shall be bound and abide by all such adjustments and settlements of jurisdictional disputes, provided that the provisions of this Article shall not be in violation of or in conflict with any provisions of law applicable to the settlement of such disputes. Should the Subcontractor fail to carry out or comply with any of the foregoing provisions, the Contractor shall have the right, in addition to any other rights and remedies provided by this Agreement or the other Contract

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Documents or by law, after three (3) days written notice to terminate this Subcontract or any part thereof or the employment of the Subcontractor for all or any portion of the Work, and, for the purpose of completing the Work, to enter upon the Premises and take possession, in the same manner, to the same extent and upon the same terms and conditions as set forth in Article XI of this Agreement.

15.2 All Municipal, County, State and Federal anti discrimination and right to work laws will be observed by the Subcontractor in the employment of all personnel at the Project and as required by Exhibit I.

15.3 The Work is to be done in the best manner and by persons skilled in the type of work to be performed. The Subcontractor shall give the Work constant attention and supervision through a responsible representative or superintendent, and any necessary assistants. Such representative shall attend all job meetings and shall be authorized to act for the Subcontractor in all matters relating to the Work, and all directions given him shall be as binding as if given to the Subcontractor. The Subcontractor shall also keep a competent foreman at the Project while work is in progress, and enforce strict discipline among its employees, including the Contractor's regulations with regard to fires, smoking and other hazards. The Contractor is given the right to require the Subcontractor to remove immediately any employee or agent of the Subcontractor employed at the Project whom the Contractor deems incompetent or a hindrance to the proper progress of the Work, and such person shall not again be employed in the Work without the prior written consent of the Contractor

15.4 All materials and equipment are to be new and of the best quality of the kind specified, and the Subcontractor shall furnish satisfactory evidence of the kind and quality of materials and equipment. The Subcontractor shall obtain the manufacturer's written recommendation that the material and equipment is designed and appropriate for the use intended and shall furnish guarantees where such can be obtained. Such materials and equipment shall not be subject to any conditional bill of sale, security agreement, financing statement, chattel mortgage, or any other claim, lien or encumbrance. The Subcontractor shall, if required by the Contractor, cause the materials (l) to be manufactured in advance, (2) to be warehoused either at the factory or elsewhere, as directed by the Contractor, (3) to be delivered to the Project promptly when so instructed by the Contractor and (4) to be relocated or removed from the Project at the cost of the Subcontractor. Care must be exercised by the Subcontractor against overloading any parts of floors, roofs, scaffolding and other installations. All materials delivered to the Project which are to form a part of the Work herein specified shall not be removed without the consent of the Contractor, but the Subcontractor will have the right to and shall remove all its surplus materials after completion of the Work provided such material was not originally provided by the Contractor for the Subcontractor's safekeeping and installation.

ARTICLE XVI
TAXES AND CONTRIBUTIONS

16.1 The Subcontractor for the Price herein provided for, hereby accepts and assumes exclusive liability for and shall indemnify, protect and save harmless the Contractor and the Owner from and against the payment of:

A. All contributions, taxes, or premiums (including interest and penalties thereon) which may be payable under the Unemployment Insurance Law of any State, the Federal Social Security

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Act, Federal, State, County and/or Municipal Tax withholding laws, or any other laws, measured upon the payroll of or required to be withheld from employees, by whomsoever employed, engaged in the Work to be performed and furnished under this Agreement; and

B. All sales, use, personal property and other taxes (including interest and penalties thereon) required by any Federal, State, County and Municipal law to be paid or collected by the Subcontractor or any of its subcontractors or vendors or any other person or persons acting for, through or under it or any of them, by reason of the performance of the Work or the acquisition, ownership, furnishing or use of any materials, equipment, supplies, labor, services or other items for or in connection with the Work; and

C. All pension, welfare, vacation, annuity and other union benefit contributions payable under or in connection with labor agreements with respect to all persons, by whomsoever employed, engaged in the Work to be performed and furnished under this Agreement; and

D. The Subcontractor's proportionate share of any and all other taxes imposed by any governmental body as a consequence of the Contractor's performance of the Contract other than Federal, State County and Municipal Income Taxes.

ARTICLE XVII
PATENTS

17.1 The Subcontractor hereby agrees to indemnify, protect and save harmless the Contractor and the Owner from and against any and all liability, loss or damage and to reimburse the Contractor and the Owner for any expenses, including legal fees and disbursements, to which the Contractor and the Owner may be put because of claims or litigation on account of infringement or alleged infringement of any letters patent or patent rights by reason of the Work or materials, equipment or other items used by the Subcontractor in its performance.

ARTICLE XVIII
MECHANIC'S LIENS

18.1 In the event that Subcontractor's subcontractors, material suppliers, and or employees or any party with whom it has entered into a relationship, files a mechanic's lien arising out of or in connection with the Work, labor or material which is included in this Agreement, the Subcontractor shall within two days after notice from the Contractor institute proceedings to cause same to be discharged, satisfied or bonded, and in default thereof, the Contractor shall have the right to bond said claim or otherwise discharge same and to retain, out of any payment then due, or thereafter to become due, an amount sufficient to completely indemnify itself and the Owner against such lien or other claim, with interest, together with the expense incident to discharging such lien, or claim, and the defense of any such suit to enforce such lien or other claim, including any premiums charged for any bond and all attorneys fees and disbursements incurred, all of which the Subcontractor agrees to pay to the Contractor. Should there prove to be any claim by a subcontractor or supplier of the Subcontractor after all payments have been made under this Agreement, the Subcontractor shall refund to the Contractor all monies that the later may be compelled to pay in discharge and/or defense of the claim. Any lien or other claim, until satisfied or withdrawn shall preclude any and all claim or demand for any payment whatsoever by the Subcontractor. The Subcontractor agrees to indemnify, protect and save harmless the Contractor and the Owner from and against any and all

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

claims, actions, fines and penalties brought or imposed or judgments rendered thereon, or any loss, damages, liability, cost and expenses including legal fees and disbursements which the Contractor and/or the Owner may sustain or incur as a consequence of the Subcontractor's failure to comply with the terms of this Article.

18.2 The Subcontractor agrees to save harmless the Contractor from any and all claims arising out of its failure to comply with any provisions of this Agreement, and should any claims be presented to the Contractor by any suppliers, materialmen, subcontractors or provider of any goods and services, the Subcontractor shall, within ten (l0) days after notification that said claim has been made, dispose of said claim to the final satisfaction of the Contractor. If after the said ten (l0) day period, the Subcontractor has failed to dispose of said claim or claims, the Contractor shall have the right to dispose of said claims in any manner it sees fit. Should the resolution of such claim be contingent upon disbursement of funds to a claimant, the Contractor has the right to make disbursements to the claimant directly, or by a joint check payable to the Subcontractor and the claimant and deduct said payments from the monies due or to become due to the Subcontractor.

ARTICLE XIX
ASSIGNMENT AND SUBCONTRACTING

l9.l Neither this Agreement nor any monies due or to become due hereunder shall be assignable without prior written consent of the Contractor nor shall the whole or any part of the Work be subcontracted without like prior written consent. Any such assignment or subcontracting without such prior written consent shall be void and of no effect and shall vest no right or right of action in the assignee or subcontractor against the Contractor. The Contractor's consent to any assignment or subcontracting shall not relieve the Subcontractor of any of its agreements, duties, responsibilities or obligations under this Agreement and the other Contract Documents, and the Subcontractor shall be and remain as fully responsible and liable for the defaults, neglects, acts and omissions of its assignees and subcontractors and all persons directly or indirectly employed by them as it is for its own defaults, neglects, acts and omissions and those of its own officers, servants and employees. The Subcontractor shall bind each of its permitted sub-subcontractors to all of the terms, provisions and covenants of this Agreement and the other Contract Documents. The Contractor's consent to any subcontracting shall not be deemed to create any contractual or third-party beneficiary relationship between the Contractor and any sub-subcontractor to whom the work or any portion thereof is subcontracted, and shall not vest any right of action in such sub-subcontractor against the Contractor or the Owner.

ARTICLE XX
TERMINATION OF AGREEMENT

20.l The Contractor shall have the right at any time upon three (3) day written notice to the Subcontractor, to terminate this Agreement and require the Subcontractor to cease work hereunder, in which case, provided the Subcontractor is not then in default, the Contractor shall indemnify the Subcontractor against costs directly resulting from such termination, except that the Subcontractor shall not be entitled to anticipated profits or overhead on work unperformed or on materials or equipment unfurnished, subject however to the limitations of paragraph 20.2.

20.2 The Contractor shall have the right, in the event of a termination of the Contract for any cause, at any time, to cancel this Agreement and require the Subcontractor to cease work

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

thereon. In that event, the Contractor shall be liable only for the amount actually received by it for the work performed by the Subcontractor less the Contractor's appropriate share of said sums; and in no event shall the amount received by the Subcontractor be a greater sum than that which the Contractor obtains from the Owner whether such sum is received by reason of additions, omission or termination; and deducted there from shall be the Subcontractor's proportionate share of all expenses incurred by the Contractor (including litigation costs and attorney's fees, if any) and reasonable overhead and profit to the Contractor. The recovery, if any, by the Subcontractor shall be entirely conditioned upon the receipt of payment by the Contractor from the Owner. In the event of a deduction, the amount of the deduction taken by the Owner shall be binding upon the Subcontractor.

ARTICLE XXI
GUARANTEES

21.1 The Subcontractor hereby guarantees the Work to the full extent provided in the plans, specifications, general conditions, special conditions, and other Contract Documents. The Subcontractor shall remove, replace and/or repair at its own expense and at the convenience of the Owner any faulty, defective or improper work, materials or equipment discovered within one (l) year from the date of the final acceptance of the Project as a whole by the Owner or for such longer period as may be provided in the plans, specifications, general conditions, special conditions or other Contract Documents. The Subcontractor shall commence such work within twenty-four (24) hours notice from the Contractor and in default thereof, the Contractor may proceed to perform such work at the expense of the Subcontractor.

21.2 Without limitation by the foregoing, the Subcontractor shall pay in addition for all damages to the Project resulting from defects in the Work and all costs and expenses necessary to correct, remove, replace and/or repair the Work and any other work or property which may be damaged in correcting, removing, replacing or repairing the Work. This guarantee shall in no way limit the Subcontractor's liability for defective work, and Subcontractor and its bonding company shall indemnify and hold harmless the Contractor for all loss, liability, costs and damages attributable to any such defective work or error of performance by the Subcontractor.

ARTICLE XXII
ACCIDENT PREVENTION

22.1 The Subcontractor agrees that the prevention of accidents to workmen engaged upon or in the vicinity of the Work is its responsibility. The Subcontractor agrees to comply with all Federal, State, County and Municipal laws, ordinances, rules, regulations, codes, standards, orders, notices and requirements concerning safety as shall be applicable to the work, including, among others, the Federal Occupational Safety and Health Act of l970, as amended, and all standards, rules, regulations and orders which have been or shall be adopted or issued there under, and with the safety standards established by the Contractor, during the progress of the Work. When so ordered, the Subcontractor shall stop any part of the Work which the Contractor deems unsafe until corrective measures satisfactory to the Contractor have been taken, and the Subcontractor agrees that it shall not have or make any claim for damages growing out of such stoppages. Should the Subcontractor neglect to take such corrective measures, the Contractor may do so at the cost and expense of the Subcontractor and may deduct the cost thereof from any payments due or to become due to the Subcontractor. Failure on the part of the Contractor to stop unsafe practices shall in no way relieve the Subcontractor of its responsibility therefore. The Subcontractor agrees to indemnify, protect, and

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

save harmless the Contractor from any and all claims, actions, fines and penalties brought or imposed or judgments rendered thereon, and from and against any and all loss, damages, liability, costs and expenses, including legal fees and disbursements, which the Contractor and/or the Owner may sustain or incur in connection therewith.

22.2 The Subcontractor shall notify the Contractor of any injury to any one of its employees or any employee of one of its subcontractors on the day of the injury and provide a written description of the injury within three (3) days of the date of such injury.

22.3 Notwithstanding any other provision of this Subcontract, the Subcontractor acknowledges that it is ultimately responsible for all construction safety procedures and precautions under Federal, State, County and Municipal law, and the Subcontractor shall hold, indemnify and save the Owner and the Contractor harmless from and against any and all claims or expenses resulting from any act taken by any employee of the Subcontractor, a sub-subcontractor, or any injury or damage caused by any unsafe or negligent act or occurrence resulting from the Work.

ARTICLE XXIII
INDEMNITY AND INSURANCE

23.1 To the fullest extent permitted by law, the Subcontractor hereby assumes entire responsibility and liability for any and all damage or injury of any kind or nature whatever (including death resulting there from) to all persons, whether employees of the Subcontractor or otherwise, and to all property, caused by, resulting from, arising out of or occurring in connection with the execution of the Work; and if any claims for such damage or injury (including death resulting therefrom) be made or asserted, whether or not such claims are based upon the Contractor's or the Owner's alleged active or passive negligence or participation in the wrong or upon any alleged breach of any statutory duty or obligation on the part of the Contractor or the Owner, the Subcontractor agrees to indemnify and save harmless the Contractor and the Owner, their officers, agents, servants and employees from and against any and all claims of any party, and further from and against any and all loss, cost, expense, liability, damage or injury, including legal fees and disbursements, that the Contractor or the Owner, their officers, agents, servants or employees may directly or indirectly sustain, suffer or incur as a result thereof or as the result, in whole or part, of Subcontractor’s breach of contract, and the Subcontractor agrees to and does hereby assume, on behalf of the Contractor and the Owner, their officers, agents, servants and employees, the defense of any action at law or in equity which may be brought against the Contractor or the Owner, their officers, agents, servants or employees upon or by reason of such claims and to pay on behalf of the Contractor and the Owner, their officers, agents, servants and employees, upon demand, the amount of any judgment that may be entered against the Contractor and the Owner, their officers, agents, servants or employees in any such action. In the event that any such claims, loss, cost, expense, liability, damage or injury arise, or are made, asserted or threatened against the Contractor or the Owner, their officers, agents, servants or employees, the Contractor shall have the right to withhold from any payments due or to become due to the Subcontractor an amount sufficient in the Contractor's judgment to protect and indemnify it and the Owner and their officers, agents, servants and employees from and against any and all such claims, loss, cost, expense, liability, damage, or injury, including legal fees and disbursements, or the Contractor, in its discretion, may require the Subcontractor to furnish a surety bond satisfactory to the Contractor guaranteeing such protection, which bond shall be furnished by the Subcontractor within five (5) days after written demand has been made therefore.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

23.2 This indemnification provision contemplates 1) full indemnity in the event of liability imposed against the Indemnitees without negligence and solely by reason of statute, operation of law or otherwise; and 2) partial indemnity in the event of any actual negligence on the part of Contractor or Owner, either causing or contributing to the underlying claim, in which case, indemnification will be limited to any liability imposed over and above that percentage attributable to actual fault. Under no circumstance shall this indemnification provision be interpreted to require Subcontractor to indemnify Contractor or Owner for claims or losses resulting from its own negligence or wrongdoing. Where partial indemnity is provided hereunder, costs, professional fees, attorneys' fees, expenses, disbursements, etc. shall be indemnified on a pro rata basis. Indemnification under this paragraph shall operate whether or not Subcontractor has placed and maintained the insurance specified under the Subcontract. Attorneys' fees, court costs, expenses and disbursements shall be defined to include those fees, costs, etc. incurred in defending the underlying claim and those fees, costs, etc. incurred in connection with the enforcement of this indemnity provision.

23.3 Before commencing the Work, the Subcontractor shall procure and maintain, at its own expense, until completion and final acceptance of the Project at least the following insurance from insurance companies satisfactory to the Contractor as set forth in Exhibit D hereto.

23.4 The Subcontractor covenants and agrees that it shall not sublet any part of the work hereunder without requiring its subcontractors to purchase and maintain insurance policies and coverage required by the terms and conditions of paragraph 23.2. The Subcontractor shall furnish satisfactory evidence that its subcontractors have purchased said insurance by causing a certificate of insurance to be furnished to the Contractor

23.5 Compliance by the Subcontractor with the foregoing requirements as to the carrying of insurance and furnishing of certificates of insurance, shall not in any way relieve the Subcontractor from any liability or diminish its obligations under this Article or any other provision of this Agreement.

23.6 Within twenty-four (24) hours of all accidents or occurrences resulting in injury to the Subcontractor's employees, or third parties or damage to property of another, the Subcontractor shall submit a written report, in a form acceptable to the Contractor. When requested by the Contractor, the Subcontractor shall furnish the Contractor with a copy of any reports prepared for submission to the Subcontractor's insurance company.

23.7 The Contractor, Subcontractor and their insurers do hereby waive any and all rights of subrogation against the Owner and each other to the extent of the insurance coverages provided hereunder.

ARTICLE XXIV
DISPUTE RESOLUTION

24.1 Except as provided in paragraph 24.2 below, any and all disputes arising out of and/or related to this Agreement and the performance of the Work at the Project, shall be decided solely in

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

the state courts of the State of New York and venue in any such action must be placed in the County of New York.

24.2 In the event that a dispute exists between the Subcontractor and Contractor relating to the actions of the Owner and/or Architect or arising out of: the scope of work delineated by the Contract as pertaining to the Subcontract, the interpretation of Contract Documents as pertaining to the Subcontract, the amount to be paid for extra work or disputed work performed originating from the Construction Manager or the Owner, the conformity of the Subcontractor's work to the Contract requirements and the acceptability and quality of the Subcontractor's work, or any determination by the Construction Manager or Owner pertaining to the Subcontract, such dispute shall be resolved in accordance with Article 29 of the Contract, and the Subcontractor shall be bound by such resolution.

24.3 Except as provided in paragraph 24.2 above, in the event that a dispute exists between the Subcontractor and the Contractor arising out of and/or related to a modification of the Contract or any action by the Owner and/or the Architect and in the event that the Contractor actually commences an action or proceeding against the Owner, at any time whatsoever, then the dispute between the Contractor and the Subcontractor shall be decided in the same manner, location and forum as provided for in the Contract. In the event that an action has been previously commenced by the Subcontractor against the Contractor, the Subcontractor agrees to withdraw such action, and participate in the action or proceeding then commenced by the Contractor against the Owner and/or the Architect. The Subcontractor agrees to participate in such action or proceeding and to present its own claim therein, through an attorney chosen by the Contractor, at the Subcontractor's own expense and to be bound by the decision rendered thereon. The joinder of additional parties by the Contractor or the Owner, or the consolidation of such proceeding with another proceeding, shall in no manner invalidate or limit the provisions of this Article. It is expressly understood that the purpose of this paragraph is to insure consistency in the resolution of disputes arising out of all work at the Project, in the event that the Contractor, in its sole and exclusive and arbitrary discretion, commences an action against the Owner. In no event shall the Contractor be liable to the Subcontractor for work performed or for any other cause whatsoever except to the extent that the Contractor may recover therefore, from the Owner. In the event of such a recovery, the amount awarded to the Contractor on account of the Subcontractor's claim shall be paid to the Subcontractor less the Subcontractor's proportionate share of the expenses, costs and attorney's fees incurred by the Contractor in prosecuting the claim. In addition, thereto the Subcontractor's recovery shall be diminished by reasonable overhead and profit markup to the Contractor.

24.4 Notwithstanding the fact that a dispute, controversy or question shall have arisen in the interpretation of any provision of this Agreement regarding the performance of any work, the delivery of any material, the payment of any monies to Subcontractor, or otherwise, the Subcontractor agrees that it will not directly or indirectly stop or delay any work or part of work required to be performed, or stop or delay the delivery of any materials required to be furnished hereunder, pending the determination of such dispute or controversy. If Subcontractor is damaged by the act of the Owner, for which act the Contract affords benefits and remedies solely to Contractor, then Subcontractor shall be derivatively entitled to the benefits to be achieved by the pursuit of such remedies, as Subcontractor's interest may appear. Contractor shall not be required on behalf of Subcontractor to file any claim or take any action against any person other than Owner; nor to make any claim or take any action against any party whatsoever (including the Owner) that is not asserted in good faith. It is agreed that the claim of Subcontractor against Contractor for the acts of the Owner is limited to the rights of Contractor against Owner and when such rights have been

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

exhausted (subject to the provisions of this Subcontract), Subcontractor's claim automatically shall be deemed settled whether or not any recovery thereon shall be obtained.

24.5 When this Agreement is signed by the Contractor, it is deemed executed and delivered in the State of New York and shall be construed in accordance with the Laws of the State of New York without any consideration being given to any principles of choice or conflict of laws.

ARTICLE XXV
INCONSISTENT TERMS

25.1 In the event there is any inconsistency between the specific terms of this Agreement and the terms of the Contract, general conditions or supplementary conditions, or any other Contract Document, or in the event that any right or obligation is modified or limited or altered by the terms of any other Contract Document, then the terms of this Agreement shall have precedence and govern unless, the Subcontractor shall have advised the Contractor, upon the execution of the Subcontract of such conflict or inconsistency in which event, the Contractor shall have the sole discretion to render an interpretation of and decision as to which Contract Document has precedence or, the Contractor may refer the matter to the Architect for an interpretation and decision. In either event the decision of the Contractor or the Architect shall be final, conclusive and binding upon the Subcontractor.

25.2 All previous communications between the Contractor and the Subcontractor, including all quotations and negotiations, are superseded by this Agreement.

ARTICLE XXVI
BONDS

26.1 If requested by the Contractor, at any time, either at the commencement of performance or at any time during performance of the Work, the Subcontractor shall furnish to the Contractor a performance bond in the penal amount of one hundred (100) percent of the Price and a separate payment bond in the penal amount of one hundred (100) percent of the Price, the form and contents of such bonds and the Surety thereon to be satisfactory to the Contractor. Such bonds shall be furnished by a Treasury listed company. The Subcontractor agrees that should the scope of work be increased by Change Order(s) in excess of 10% of the original subcontract price, Subcontractor's Surety shall furnish to the Contractor a Consent of Surety increasing the amount of the bonds to reflect the increase to the subcontract price and such Consent of Surety must be received prior to a reduction in retainage and/or final payment.

ARTICLE XXVII
ENTIRE AGREEMENT

27.1 No oral representations or other agreements or understandings have been made by the Contractor except as stated in this Agreement. This Agreement may not be changed in any way except as herein provided, and no term or provision hereof may be waived by the Contractor except in writing signed by its duly authorized officer. This agreement constitutes the entire negotiated Agreement between the parties hereto, the terms of which shall not be construed against the Contractor as the drafter of this document.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

27.2 The failure of the Contractor to insist in any one or more instances upon a strict compliance with any provision of this Agreement, or to exercise any option herein conferred, shall not be construed as a waiver or relinquishment of the right of the Contractor thereafter to require compliance with such provision or a waiver of the right of the Contractor thereafter to exercise such option, but such provision or option will remain in full force and effect.

27.3 In the event that any article, paragraph, term or condition of this Agreement is deemed to be invalid pursuant to any rule, regulation, law, ordinance, code, decision of any court having jurisdiction over the parties or for any reason whatsoever, previously or hereinafter enacted, all other articles, paragraphs, terms or conditions shall be unaffected thereby and remain in full force and effect.

27.4 The title of each Article is for convenience only. No such title shall diminish, affect or alter any term or condition of this Agreement.

ARTICLE XXVIII
PROGRESS REPORTS AND INSPECTIONS

28.1 Subcontractor shall submit to the Contractor's office by 10:00 A.M. of each work day a report giving an accurate daily manpower count, including a brief description of the work and the areas the work is being performed and the status of material deliveries. This information will be used to coordinate the work of the different trades.

28.2 In addition to the rights granted the Contractor by other provisions of this Subcontract, the Contractor shall have the right to inspect the progress of the work required to be performed in the Subcontractor's shop or places other than the site of the work. To accomplish this, the Subcontractor shall, upon demand, furnish the Contractor with a list of all the Subcontractor's vendors. If the Subcontractor's Work has not sufficiently progressed in the shop or elsewhere, either by reason of the failure on the part of the Subcontractor to (a) prepare and promptly progress the shop drawings and samples, if any, that are required hereunder; (b) expedite the approval of the shop drawings and samples, if any, in the office of the Owner's authorized representatives; (c) order raw or processed materials required for delivery either to the Subcontractor's shop for fabrication or to the site, as required, sufficiently in advance so as to avoid any possible delays in the performance of the Work; (d) properly process the fabrication in the Subcontractor's shop; (e) or otherwise; as a result of which the work in the field is likely to be delayed, the Contractor shall have all the rights set forth in Article 11 hereof, irrespective of the condition of the work at the site of the construction, and irrespective of whether the Subcontractor may be of the opinion that the work in the field is not sufficiently advance to warrant the progress away from the site, of the construction or fabrication required by the Contractor.

ARTICLE XXIX
MISCELLANEOUS

29.1 The Subcontractor shall place and relocate his trailers when and where directed by the Contractor. The Subcontractor is responsible for the acquisition, maintenance and removal of all utilities and telephone services required for their trailers. All energy charges will be paid by the Subcontractor unless otherwise provided in the Contract.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

29.2 The Subcontractor shall comply with the Contractor's quality control plan and safety plan and shall at its own expense provide all temporary safety protection required at site and furnish his labor with all necessary safety equipment.

29.3 In the event that Contractor shall, during the course of the project, issue to Subcontractor any backcharge for work done or materials provided for the Subcontractor's account, or for any other reason whatsoever, and in the further event that the Subcontractor shall reject such backcharge in whole or in part, then the Subcontractor must notify Contractor in writing and within five (5) days of receipt thereof, setting forth in detail the grounds upon which the Subcontractor rejects the backcharge in whole or in part. In the event the Subcontractor fails to so notify Contractor, then Subcontractor waives any right to contest said backcharge at any time in the future and that said backcharge shall be final and conclusive both as to liability and amount.

29.4 It is the Subcontractor's responsibility to be aware of the structural capacities of various portions of the structure and site. Cranes, material deliveries and material storage shall not exceed rated capacities of the slabs and structure without the Subcontractor taking appropriate steps approved by the Contractor and Architect or Engineer of record as appropriate to compensate for the imposition of loads imposed by this Subcontractor's operations.

29.5 This Subcontractor shall keep as confidential all reports, information, data and other written materials produced in connection with this agreement, and shall not disclose or release the same to anyone, not a party hereto, except only upon written consent of the Contractor.

29.6 This Subcontract may include allowances for miscellaneous time and material work as required by the Contractor. Any unused portions of these allowances will be credited in full to the Contractor.

29.7 This Subcontractor acknowledges having visited the jobsite to familiarize itself with the work areas, existing conditions, site logistics, sources of electricity and water, and temporary toilets. Failure to visit the site shall preclude any claims for extra costs arising from such site conditions.

29.8 Alcohol, drugs and weapons are prohibited on the job site under any circumstances and violation of this prohibition shall be cause for immediate expulsion of the offending individuals and termination of this Subcontract.

29.9 This Subcontractor will cooperate with all controlled inspection and other testing agencies, regardless of the circumstances of such testing agency's engagement.

29.10 The said parties, for themselves, their heirs, executors, administrators, successors and assigns, do hereby agree to the full performance of all of the terms and provisions herein contained.

ARTICLE XXX
NOTICE

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

30.1 All notices hereunder shall be in writing and shall be personally delivered or sent by facsimile transmission, and an original sent by registered or certified mail or overnight courier service addressed to the parties at the addresses first stated herein.

IN WITNESS THEREOF, the parties have hereunto set their hands or caused this Agreement to be executed by their duly authorized officers as of the day and year first above written. This Agreement must be signed and returned to the Contractor at his address above no later than five (5) business days upon receipt or this agreement may be rejected by the Contractor.

CONTRACTOR
NAVILLUS TILE INC.

DocuSigned by:
Peter Downes
3D112D92B977490...

By: Peter Downes
Title: Vice President

SUBCONTRACTOR
ELLI NY DESIGN.

DocuSigned by:
Lissette Olivio
C6BB4925BCAB400...

By: Lissette Olivio
Title: Chief Executive Officer

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

LIST OF DRAWINGS – VOLUME 1

SHEET NO.	TITLE
T001	COVER SHEET
T002	LIST OF DRAWINGS, LOCATION PLAN
T003	BUILDING DEPARTMENT NOTES, GENERAL NOTES
T004	SPECIAL, PROGRESS AND ENERGY CODE INSPECTIONS
Z001	ZONING DATA & DIAGRAMS
Z002	ZONING DATA & DIAGRAMS
Z003	ZONING DATA & DIAGRAMS
Z004	ZONING DATA & DIAGRAMS
Z005	ZONING DATA & DIAGRAMS
Z006	ZONING DATA & DIAGRAMS
Z007	ZONING DIAGRAMS
Z008	GROSS FLOOR AREA
Z009	ZONING AREA DEDUCTIONS
Z101	NORTH TOWER ZONING REFERENCE DRAWING 1
Z102	NORTH TOWER ZONING REFERENCE DRAWING 2
Z103	NORTH TOWER ZONING REFERENCE DRAWING 3
Z104	NORTH TOWER ZONING REFERENCE DRAWING 4
Z105	NORTH TOWER ZONING REFERENCE DRAWING 5
Z106	NORTH TOWER ZONING REFERENCE DRAWING 6
Z107	NORTH TOWER ZONING REFERENCE DRAWING 7
Z108	NORTH TOWER ZONING REFERENCE DRAWING 8
Z109	NORTH TOWER ZONING REFERENCE DRAWING 9
Z110	NORTH TOWER ZONING REFERENCE DRAWING 10
Z111	NORTH TOWER ZONING REFERENCE DRAWING 11
Z112	NORTH TOWER ZONING REFERENCE DRAWING 12
Z113	NORTH TOWER ZONING REFERENCE DRAWING 13
Z114	NORTH TOWER ZONING REFERENCE DRAWING 14
Z115	NORTH TOWER ZONING REFERENCE DRAWING 15
Z116	NORTH TOWER ZONING REFERENCE DRAWING 16
Z117	NORTH TOWER ZONING REFERENCE DRAWING 17
Z118	NORTH TOWER ZONING REFERENCE DRAWING 18
Z119	NORTH TOWER ZONING REFERENCE DRAWING 19
Z120	NORTH TOWER ZONING REFERENCE DRAWING 20
Z121	NORTH TOWER ZONING REFERENCE DRAWING 21
Z122	NORTH TOWER ZONING REFERENCE DRAWING 22
Z123	NORTH TOWER ZONING REFERENCE DRAWING 23
Z124	NORTH TOWER ZONING REFERENCE DRAWING 24
Z125	NORTH TOWER ZONING REFERENCE DRAWING 25
Z201	SOUTH TOWER ZONING REFERENCE DRAWING 1
Z202	SOUTH TOWER ZONING REFERENCE DRAWING 2

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

Z203	SOUTH TOWER ZONING REFERENCE DRAWING 3
Z204	SOUTH TOWER ZONING REFERENCE DRAWING 4
Z205	SOUTH TOWER ZONING REFERENCE DRAWING 5
Z206	SOUTH TOWER ZONING REFERENCE DRAWING 6
Z207	SOUTH TOWER ZONING REFERENCE DRAWING 7
Z208	SOUTH TOWER ZONING REFERENCE DRAWING 8
Z209	SOUTH TOWER ZONING REFERENCE DRAWING 9
Z210	SOUTH TOWER ZONING REFERENCE DRAWING 10
Z211	SOUTH TOWER ZONING REFERENCE DRAWING 11
Z212	SOUTH TOWER ZONING REFERENCE DRAWING 12
Z213	SOUTH TOWER ZONING REFERENCE DRAWING 13
Z214	SOUTH TOWER ZONING REFERENCE DRAWING 14
Z215	SOUTH TOWER ZONING REFERENCE DRAWING 15
Z216	SOUTH TOWER ZONING REFERENCE DRAWING 16
Z217	SOUTH TOWER ZONING REFERENCE DRAWING 17
Z218	SOUTH TOWER ZONING REFERENCE DRAWING 18
Z219	SOUTH TOWER ZONING REFERENCE DRAWING 19
Z220	SOUTH TOWER ZONING REFERENCE DRAWING 20
Z221	SOUTH TOWER ZONING REFERENCE DRAWING 21
Z222	SOUTH TOWER ZONING REFERENCE DRAWING 22
Z223	SOUTH TOWER ZONING REFERENCE DRAWING 23
EN101	ENERGY ANALYSIS
EN102	ENERGY ANALYSIS
EN103	ENERGY ANALYSIS
EN104	HVAC EQUIPMENT COMPLIANCE
EN105	ENERGY ANALYSIS - LIGHTING CONTROL NARRATIVE, SYMBOLS DRAWING
EN106	ENERGY ANALYSIS - LIGHTING SCHEDULES
EN107	ENERGY ANALYSIS - 1ST FLOOR PLAN
EN108	ENERGY ANALYSIS - 2ND FLOOR PLAN
EN109	ENERGY ANALYSIS - 3RD FLOOR PLAN
EN110	ENERGY ANALYSIS - 4TH FLOOR PLAN
EN111	ENERGY ANALYSIS - 5TH FLOOR PLAN
EN112	ENERGY ANALYSIS - ROOF PLAN
PA101	PLACE OF ASSEMBLY PLAN – CAFETERIA
PA102	PLACE OF ASSEMBLY PLAN – GYMATORIUM
B101	BORING LOCATION PLAN
B102	BORING LOG-1
B103	BORING LOG-2
B104	BORING LOG-3
B105	BORING LOG-4 & TEST PIT LOG
BPP101	BUILDERS PAVEMENT PLAN COVER SHEET

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

BPP201	BUILDERS PAVEMENT PLAN 54TH AVENUE PLAN AND PROFILE
BPP202	BUILDERS PAVEMENT PLAN 2ND STREET PLAN AND PROFILE
BPP301	BUILDERS PAVEMENT PLAN DETAILS
C101	EROSION AND SEDIMENT CONTROL PLAN
C201	SITE IMPROVEMENTS PLAN
C301	SITE GRADING AND DRAINAGE PLAN
C401	UTILITY PLAN
C501	DETAIL SHEET - 1
C502	DETAIL SHEET - 2
C503	DETAIL SHEET - 3
C504	DETAIL SHEET - 4
C505	DETAIL SHEET - 5
DM101	SITE REMOVALS PLAN
G101	SITE SURVEY EXISTING CONDITIONS
MP101	MONITORING PLAN
R001	ZONE OF PUBLIC PROTECTION
H101	ASBESTOS ABATEMENT - GENERAL NOTES
H102	EXTERIOR SITE - ASBESTOS ABATEMENT PLAN
H201	SUB-SLAB DEPRESSURIZATION SYSTEM AND GAS VAPOR BARRIER PLAN
H202	SUB-SLAB DEPRESSURIZATION SYSTEM PLAN - RISER PLAN
H203	SUB-SLAB DEPRESSURIZATION SYSTEM - ROOF PLAN
H204	SUB-SLAB DEPRESSURIZATION SYSTEM - DETAILS
H205	GAS VAPOR BARRIER DETAILS
A001	LIST OF ABBREVIATIONS
A002	ADA ACCESSIBILITY DETAILS
A010	3D VIEWS
A021	FIRST FLOOR EGRESS PLAN
A022	SECOND FLOOR EGRESS PLAN
A023	THIRD FLOOR EGRESS PLAN
A024	FOURTH FLOOR EGRESS PLAN
A025	FIFTH FLOOR EGRESS PLAN
A026	ROOF EGRESS PLAN
A035	SITE PLAN
A101	FIRST FLOOR PLAN
A102	SECOND FLOOR PLAN
A103	THIRD FLOOR PLAN
A104	FOURTH FLOOR PLAN
A105	FIFTH FLOOR PLAN

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

A106	ROOF LEVEL PLAN
A107	ROOF BULKHEAD PLAN
A201	NORTH/SOUTH EXTERIOR ELEVATIONS
A202	EAST/WEST EXTERIOR ELEVATIONS
A203	BULKHEAD EXTERIOR PANELIZATION
A204	NORTH/SOUTH EXTERIOR PANELIZATION
A205	EAST/WEST EXTERIOR PANELIZATION
A210	NORTH/SOUTH BUILDING SECTIONS
A211	EAST/WEST BUILDING SECTIONS
A215	TYP. FACETED EXPOSED PRECAST 'LOWER' PANELS
A216	TYP. FACETED EXPOSED PRECAST 'UPPER' PANELS
A217	TYP. FACETED EXPOSED PRECAST LOWER GYM
A218	TYP. FACETED EXPOSED PRECAST @ GYM
A301	EXTERIOR WALL SECTIONS
A302	EXTERIOR WALL SECTIONS
A303	EXTERIOR WALL SECTIONS
A304	EXTERIOR WALL SECTIONS
A310	EXTERIOR PLAN DETAILS - 1
A311	EXTERIOR PLAN DETAILS - 2
A312	EXTERIOR PLAN DETAILS - 3
A313	EXTERIOR PLANS AND SECTION DETAILS - 4
A320	EXTERIOR FOUNDATION SECTION DETAILS - 1
A322	EXTERIOR SECTION DETAILS -1
A323	EXTERIOR SECTION DETAILS - 2
A324	EXTERIOR SECTION DETAILS - 3
A325	EXTERIOR FLOOD BARRIER DETAILS, MISC. DETAILS
A328	EXTERIOR WALL ENLARGED DETAILS
A330	SOUTH CANOPY
A331	SOUTH CANOPY DETAILS
A332	NORTH CANOPY
A333	NORTH CANOPY DETAILS
A334	FUEL OIL STORAGE PLAN ELEVATION AND DETAIL
A335	MISCELLANEOUS EXTERIOR DETAILS
A401	MAIN LOBBY FINISH PLANS AND ELEVATIONS
A405	CAFETERIA FINISH PLANS AND ELEVATIONS
A410	GYMATORIUM FINISH PLANS
A411	GYMATORIUM FINISH ELEVATIONS
A412	GYMATORIUM DETAILS
A420	ROOF DETAILS
A421	ROOF DETAILS

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

A501	STAIR 'A' PLAN & SECTIONS
A502	STAIR 'B' SECTIONS
A503	STAIR 'B' PLANS
A504	STAIR 'C' PLAN & SECTIONS
A506	STAIR DETAILS
A507	STAIR DETAILS
A508	FIRE HOSE VALVE CABINET - DETAILS
A510	ELEVATOR ENLARGED PLANS
A511	ELEVATOR SECTIONS
A512	ELEVATOR CAB INTERIOR
A513	ELEVATOR FIXTURES
A514	GYMATORIUM WHEELCHAIR LIFT
A515	ELEVATOR DETAILS
A601	TOILET ROOM LAYOUTS
A602	TOILET ROOM LAYOUTS
A603	SHOWER RM/ DRINKING FOUNTAIN LAYOUTS & DETAILS
A604	TOILET ROOM LAYOUTS
A605	TOILET ROOM LAYOUTS
A606	TOILET ROOM LAYOUTS
A611	CORRIDOR ELEVATIONS - FIRST FLOOR
A612	CORRIDOR ELEVATIONS - SECOND FLOOR
A613	CORRIDOR ELEVATIONS - THIRD FLOOR
A614	CORRIDOR ELEVATIONS - FOURTH FLOOR
A615	CORRIDOR ELEVATIONS - FIFTH FLOOR
A701	INTERIOR PARTITION ASSEMBLIES - 1
A702	INTERIOR PARTITION ASSEMBLIES - 2
A703	INTERIOR PARTITION DETAILS
A704	INTERIOR PARTITION PLAN DETAILS
A705	INTERIOR PARTITION HEAD DETAIL - 1
A706	INTERIOR PARTITION HEAD DETAIL - 2
A707	INTERIOR MASONRY PARTITION DETAILS - 1
A708	INTERIOR MASONRY PARTITION DETAILS - 2
A709	INTERIOR MASONRY PARTITION DETAILS - 3
A710	TYPICAL INTERIOR DETAILS
A711	PENETRATION DETAILS
A712	PENETRATION DETAILS
A715	MILLWORK SHEET -1
A716	MILLWORK SHEET - 2
A717	MILLWORK SHEET - 3
A718	DRY MARKER, TACK BOARD AND LOCKER DETAILS

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

A719	LOBBY SECURITY DESK
A720	LOBBY SECURITY DESK
A721	ADMIN COUNTER & SCIENCE RESOURCE RM MILLWORK
A722	DISPLAY CABINET AND DISPLAY BOARD
A723	METAL SHELVING DETAILS
A801	REFLECTED CEILING PLAN - FIRST FLOOR
A802	REFLECTED CEILING PLAN - SECOND FLOOR
A803	REFLECTED CEILING PLAN - THIRD FLOOR
A804	REFLECTED CEILING PLAN - FOURTH FLOOR
A805	REFLECTED CEILING PLAN - FIFTH FLOOR
A806	REFLECTED CEILING PLAN - ROOF LEVEL
A810	CEILING & SOFFIT DETAILS
A811	CEILING DETAILS
A901	FINISH & MATERIAL SCHEDULES
A910	DOOR SCHEDULE - 1
A911	DOOR SCHEDULE - 2
A912	DOOR AND FRAME TYPES & TYPICAL DOOR DETAILS
A913	DOOR JAMB AND HEAD DETAILS
A914	DOOR SILL AND THRESHOLD DETAILS
A920	WINDOW & LOUVER TYPES AND SCHEDULE
A921	ALUMINUM STOREFRONT DETAILS
A922	WINDOW DETAILS - FIXED
A923	WINDOW DETAILS - HOPPER & LOUVERS
A924	WINDOW DETAILS - PROJECTED
A925	WINDOW DETAILS - FIRE RATED
A926	WINDOW GUARD DETAILS
A927	INTERIOR VISION PANEL & DETAILS
A930	SIGNAGE DETAILS & ELEVATIONS
A931	SIGNAGE DETAILS & ELEVATIONS
A932	SIGNAGE DETAILS & ELEVATIONS
A933	SIGNAGE SCHEDULE
A940	FOOD SERVICE LAYOUT PLAN
A941	FOOD SERVICE EQUIPMENT SCHEDULE
A942	FOOD SERVICE DRAINAGE PLAN
A943	FOOD SERVICE PLUMBING PLAN
A944	FOOD SERVICE ELECTRICAL PLAN
A945	FOOD SERVICE HVAC PLAN
A946	FOOD SERVICE SPECIAL CONDITIONS PLAN
A947	FOOD SERVICE DETAILS - 1
A948	FOOD SERVICE DETAILS - 2

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

A950	SERVERY PASS THRU PARTIAL PLAN, ELEVATION & SECTION
AS101	EDGE OF SLAB FLOOR PLAN - FIRST FLOOR
AS102	EDGE OF SLAB FLOOR PLAN - SECOND FLOOR
AS103	EDGE OF SLAB FLOOR PLAN - THIRD FLOOR
AS104	EDGE OF SLAB FLOOR PLAN - FOURTH FLOOR
AS105	EDGE OF SLAB FLOOR PLAN - FIFTH FLOOR
AS106	EDGE OF SLAB FLOOR PLAN - ROOF
AS107	EDGE OF SLAB FLOOR PLAN - ELEVATOR BULKHEAD ROOF
FF101	FIRST FLOOR FURNITURE PLAN
FF102	SECOND FLOOR FURNITURE PLAN
FF103	THIRD FLOOR FURNITURE PLAN
FF104	FOURTH FLOOR FURNITURE PLAN
FF105	FIFTH FLOOR FURNITURE PLAN
FF201	PRE-K CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF202	PRE-K CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF203	PRE-K CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF204	PRE-K CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF205	KINDERGARTEN CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF206	KINDERGARTEN CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF207	KINDERGARTEN CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF208	GRADE 1 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF209	GRADE 1 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF210	GRADE 1 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF211	GRADE 2 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF212	GRADE 2 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF213	GRADE 2 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF214	GRADE 3 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF215	GRADE 3 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF216	GRADE 3 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF217	GRADE 4 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF218	GRADE 4 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF219	GRADE 4 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF220	GRADE 5 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF221	GRADE 5 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF222	GRADE 5 CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF223	CSD SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF224	CSD SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF225	READING RESOURCE ROOM PART FURNITURE PLAN AND SCHEDULE
FF226	SPEECH RESOURCE ROOM PART FURNITURE PLAN AND SCHEDULE
FF251	SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF252	SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF253	SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

FF254	SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF255	SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF256	SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF257	SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF258	SPECIAL ED CLASSROOM PART FURNITURE PLAN AND SCHEDULE
FF259	CITYWIDE SP ED SPEECH ROOM PART FURNITURE PLAN AND SCHEDULE
FF260	CITYWIDE SP ED SPEECH ROOM PART FURNITURE PLAN AND SCHEDULE
FF261	MAIN OFFICE PART FURNITURE PLAN AND SCHEDULE
FF262	RESOURCE ROOM PART FURNITURE PLAN AND SCHEDULE
FF263	RESOURCE ROOM PART FURNITURE PLAN AND SCHEDULE
FF264	RESOURCE ROOM PART FURNITURE PLAN AND SCHEDULE
FF265	GUIDANCE OFFICE PART FURNITURE PLAN AND SCHEDULE
FF266	GUIDANCE OFFICE PART FURNITURE PLAN AND SCHEDULE
FF267	OCCUPATIONAL THERAPY ROOM PART FURNITURE PLAN AND SCHEDULE
FF268	PHYSICAL THERAPY ROOM PART FURNITURE PLAN AND SCHEDULE
FF269	SUPERVISORY OFFICE PART FURNITURE PLAN AND SCHEDULE
FF270	MULTI-PURPOSE ROOM PART FURNITURE PLAN AND SCHEDULE
FF271	STORAGE FURNITURE PLANS & SCHEDULES
FF272	CHANGING ROOM PART FURNITURE PLAN AND SCHEDULE
FF273	STORAGE ROOM PART FURNITURE PLAN
FF301	ART CLASSROOM / STORE ROOM FURNITURE PART PLANS & SCHEDULES
FF303	MUSIC CLASSROOM FURNITURE PART PLANS & SCHEDULES
FF305	SCIENCE LABS FURNITURE PLAN & SCHEDULE
FF310	GYMATORIUM FURNITURE PART PLAN & SCHEDULE
FF311	GYMATORIUM FURNITURE PART PLAN & SCHEDULE
FF312	HEALTH INSTRUCTOR'S OFFICE FURNITURE PART PLAN & SCHEDULE
FF313	GYM STORAGE FURNITURE PART PLAN & SCHEDULE
FF315	LIBRARY FURNITURE PART PLAN & SCHEDULE
FF316	LOBBY FURNITURE PART PLANS & SCHEDULES
FF320	GUIDANCE SUITE FURNITURE PART PLANS & SCHEDULES
FF325	MEDICAL SUITE FURNITURE PART PLANS & SCHEDULES
FF330	EDUCATIONAL STORAGE FURNITURE PLANS & SCHEDULES
FF331	GENERAL STORAGE ROOM PART FURNITURE PLAN AND SCHEDULE
FF332	GROUNDS EQ & REFUSE RM FURNITURE PLANS & SCHEDULES
FF333	AV STORAGE FURNITURE PLANS & SCHEDULES
FF340	ADMIN SUITE FURNITURE PLANS & SCHEDULES
FF345	TEACHER'S WRKRM/STAFF LUNCH PART PLANS & SCHEDULES
FF346	PARENT'S COMMUNITY ROOM PART PLANS & SCHEDULES
FF350	CAFETERIA FURNITURE PART PLAN & SCHEDULES
FF351	CAFETERIA FURNITURE PART PLAN & SCHEDULES
FF360	CUSTODIAN'S WORKSHOP FURNITURE PART PLAN & SCHEDULES
FF361	CUSTODIAN'S OFFICE FURNITURE PART PLAN & SCHEDULE
FF362	CUSTODIAN LOCKER ROOMS
FF364	TELECOMMUNICATIONS ROOM FURNITURE PART PLAN & SCHEDULE

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

FF370	KITCHEN LAYOUT
FO001	FOUNDATION & SITEWORK NOTES
FO100	FOUNDATION PLAN
FO201	FOUNDATION SECTIONS SHEET 1
FO401	CAISSON DETAILS AND NOTES
FO402	FOUNDATION - TYPICAL DETAILS SHEET 2
S001	SUPERSTRUCTURE NOTES SHEET 1
S002	SUPERSTRUCTURE NOTES SHEET 2
S003	SUPERSTRUCTURE NOTES SHEET 3
S101	FIRST FLOOR FRAMING PLAN
S102	SECOND FLOOR FRAMING PLAN
S103	THIRD FLOOR FRAMING PLAN
S104	FOURTH FLOOR FRAMING PLAN
S105	FIFTH FRAMING PLAN
S106	ROOF FRAMING PLAN
S107	BULKHEAD ROOF FRAMING PLAN
S201	FIRST FLOOR SECTIONS - SHEET 1
S202	FIRST FLOOR SECTIONS - SHEET 2
S210	SUPERSTRUCTURE SECTION SHEET - 1
S211	SUPERSTRUCTURE SECTION SHEET - 2
S212	SUPERSTRUCTURE SECTION SHEET - 3
S213	SUPERSTRUCTURE SECTION SHEET - 4
S301	PIER/BUTTRESS SCHEDULE AND DETAILS & COLUMN SCHEDULE
S302	TYPICAL COLUMN DETAILS
S303	TYPICAL COLUMN BASE PLATE DETAILS
S305	TRUSS ELEVATIONS
S306	TRUSS CONNECTION DETAILS
S401	FIRST FLOOR TYPICAL DETAILS - SHEET 1
S402	FIRST FLOOR TYPICAL DETAILS - SHEET 2
S403	FIRST FLOOR TYPICAL DETAILS - SHEET 3
S404	FIRST FLOOR TYPICAL DETAILS - SHEET 4
S405	FIRST FLOOR TYPICAL DETAILS - SHEET 5
S410	SUPERSTRUCTURE TYPICAL DETAILS - SHEET 1
S411	SUPERSTRUCTURE TYPICAL DETAILS - SHEET 2
S412	SUPERSTRUCTURE TYPICAL DETAILS - SHEET 3
S413	SUPERSTRUCTURE TYPICAL DETAILS - SHEET 4
S414	SUPERSTRUCTURE TYPICAL DETAILS - SHEET 5
S415	TYPICAL MANSORY DETAILS SHEET - 1
S416	TYPICAL MANSORY DETAILS SHEET – 2
M001	HVAC SYMBOLS, ABBREVIATIONS AND NOTES
M002	HVAC SCHEDULES I

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

M003	HVAC SCHEDULES II
M004	HVAC SCHEDULES III
M005	HVAC SCHEDULES IV
M006	HVAC SCHEDULES
M007	ENERGY COMPLIANCE AND HVAC SCHEDULES
M101	HVAC FIRST FLOOR DUCTWORK PLAN
M102	HVAC SECOND FLOOR DUCTWORK PLAN
M103	HVAC THIRD FLOOR DUCTWORK PLAN
M104	HVAC FOURTH FLOOR DUCTWORK PLAN
M105	HVAC FIFTH FLOOR DUCTWORK PLAN
M106	HVAC ROOF BULKHEAD DUCTWORK PLAN
M107	HVAC ROOF BULKHEAD GENERATOR PLAN
M201	HVAC FIRST FLOOR PIPING PLAN
M202	HVAC SECOND FLOOR PIPING PLAN
M203	HVAC THIRD FLOOR PIPING PLAN
M204	HVAC FOURTH FLOOR PIPING PLAN
M205	HVAC FIFTH FLOOR PIPING PLAN
M206	HVAC ROOF BULKHEAD PIPING PLAN
M207	HVAC ROOF BULKHEAD PIPING PLAN
M301	HVAC PART PLANS AND SECTIONS
M302	HVAC PART PLANS AND SECTIONS
M303	HVAC PART PLANS AND SECTIONS
M401	HVAC AIR FLOW AND REFRIGERANT RISER DIAGRAM
M402	HVAC HOT WATER RISER DIAGRAM
M403	HVAC CHILLED WATER RISER DIAGRAM
M404	HVAC FUEL OIL DIAGRAM
M405	HVAC KITCHEN/CAFETERIA RISER DIAGRAM
M406	HVAC INSTRUMENTATION CONTROLS SHEET I
M407	HVAC INSTRUMENTATION CONTROLS SHEET II
M408	HVAC INSTRUMENTATION CONTROLS SHEET III
M409	HVAC INSTRUMENTATION CONTROLS SHEET IV
M410	HVAC INSTRUMENTATION CONTROLS SHEET V
M411	HVAC INSTRUMENTATION CONTROLS SHEET VI
M412	HVAC INSTRUMENTATION CONTROLS SHEET VII
M413	HVAC INSTRUMENTATION CONTROLS SHEET VIII
M414	HVAC INSTRUMENTATION CONTROLS SHEET IX
M415	HVAC INSTRUMENTATION CONTROLS SHEET X
M416	HVAC INSTRUMENTATION CONTROLS SHEET XI
M417	HVAC INSTRUMENTATION CONTROLS SHEET XII
M501	HVAC DETAILS I
M502	HVAC DETAILS II
M503	HVAC DETAILS III
M504	HVAC DETAILS IV
M505	HVAC DETAILS V

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

M506	HVAC DETAILS VI
M507	HVAC DETAILS VII
P001	P&D SYMBOLS, ABBREVIATIONS AND NOTES
P002	PLUMBING SCHEDULES
P020	PLUMBING SITE DRAINAGE
P101	PLUMBING UNDERGROUND FLOOR PLAN
P102	PLUMBING FIRST FLOOR PLAN
P103	PLUMBING SECOND FLOOR PLAN
P104	PLUMBING THIRD FLOOR PLAN
P105	PLUMBING FOURTH FLOOR PLAN
P106	PLUMBING FIFTH FLOOR PLAN
P107	PLUMBING ROOF PLAN
P108	PLUMBING ELEVATOR BULKHEAD ROOF PLAN
P301	PLUMBING SANITARY RISER DIAGRAM
P302	PLUMBING DOMESTIC WATER RISER DIAGRAM
P303	PLUMBING STORM RISER DIAGRAM
P304	PLUMBING NATURAL GAS RISER DIAGRAM - SCHEMATIC
P501	PLUMBING DETAILS I
P502	PLUMBING DETAILS II
P503	PLUMBING DETAILS III
P504	PLUMBING DETAILS IV
P505	PLUMBING DETAILS V
E001	ELECTRICAL SYMBOLS, ABBREVIATIONS, AND NOTES
E002	ELECTRICAL SITE PLAN
E003	UNDERGROUND LIGHTING PROTECTION SYSTEM
E004	FIFTH FLOOR LIGHTNING PROTECTION SYSTEM
E005	ROOF LEVEL LIGHTNING PROTECTION SYSTEM
E010	ELECTRICAL - NOTES, SYMBOLS - LOW VOLTAGE SYSTEMS
E101	FIRST FLOOR LIGHTING PLAN
E102	SECOND FLOOR LIGHTING PLAN
E103	THIRD FLOOR LIGHTING PLAN
E104	FOURTH FLOOR LIGHTING PLAN
E105	FIFTH FLOOR LIGHTING PLAN
E106	ROOF LEVEL LIGHTING PLAN
E201	FIRST FLOOR POWER PLAN
E202	SECOND FLOOR POWER PLAN
E203	THIRD FLOOR POWER PLAN
E204	FOURTH FLOOR POWER PLAN
E205	FIFTH FLOOR POWER PLAN
E206	ROOF LEVEL - POWER SYSTEMS
E301	FIRST FLOOR PLAN - LOW VOLTAGE

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

E302	SECOND FLOOR PLAN - LOW VOLTAGE
E303	THIRD FLOOR PLAN - LOW VOLTAGE
E304	FOURTH FLOOR PLAN - LOW VOLTAGE
E305	FIFTH FLOOR PLAN - LOW VOLTAGE
E401	KITCHEN PLAN
E402	ELECTRICAL & TELECOM ROOM PART PLAN
E403	FOUNDATIONS AND FLOORS PARTIAL CONDUIT ROUTING PLAN
E404	CONDUIT ROUTING SECTIONS
E502	POWER AND LIGHTING RISER
E503	GROUNDING RISER DIAGRAM
E504	IPDVS RISER DIAGRAMS
E505	TEL/DATA RISER DIAGRAMS
E506	INTRUSION/SOUND CLOCK RISER DIAGRAMS
E507	AUXILIARY SYSTEMS RISER DIAGRAMS
E508	INTRUSION SYSTEMS RISER DIAGRAMS
E601	LIGHTING FIXTURE SCHEDULE SHEET 1
E602	LIGHTING FIXTURE SCHEDULE SHEET 2
E603	LIGHTING PANEL SCHEDULES
E604	RECEPTACLES PANEL SCHEDULES SHEET 1
E605	RECEPTACLES PANEL SCHEDULES SHEET 2
E606	POWER PANEL SCHEDULES
E607	DISTRIBUTION PANEL SCHEDULES
E701	ELECTRICAL DETAILS SHEET 1
E702	ELECTRICAL DETAILS SHEET 2
E703	ELECTRICAL DETAILS SHEET 3
E704	ELECTRICAL DETAILS SHEET 4
E705	ELECTRICAL DETAILS SHEET 5
E706	ELECTRICAL DETAILS SHEET 6
E707	ELECTRICAL DETAILS SHEET 7
E710	DETAILS
E711	DETAILS
E712	DETAILS
E713	DETAILS
E714	DETAILS
FA001	FIRE ALARM SYMBOLS, LEGENDS, ABBREVIATIONS, AND NOTES
FA101	FIRE ALARM SYSTEM FIRST FLOOR PLAN
FA102	FIRE ALARM SYSTEM SECOND FLOOR PLAN
FA103	FIRE ALARM SYSTEM THIRD FLOOR PLAN
FA104	FIRE ALARM SYSTEM FOURTH FLOOR PLAN
FA105	FIRE ALARM SYSTEM FIFTH FLOOR PLAN
FA106	FIRE ALARM SYSTEM ROOF LEVEL PLAN
FA107	FIRE ALARM SYSTEM ROOF BULKHEAD LEVEL PLAN
FA201	FIRE ALARM SYSTEM RISER DIAGRAM

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

FA401	FIRE ALARM TYPICAL DETAILS
FP001	FIRE PROTECTION SYMBOLS, ABBREVIATIONS AND NOTES
FP101	FIRE PROTECTION FIRST FLOOR PLAN
FP102	FIRE PROTECTION SECOND FLOOR PLAN
FP103	FIRE PROTECTION THIRD FLOOR PLAN
FP104	FIRE PROTECTION FOURTH FLOOR PLAN
FP105	FIRE PROTECTION FIFTH FLOOR PLAN
FP106	FIRE PROTECTION ROOF PLAN
FP301	FIRE PROTECTION RISER DIAGRAM
FP501	FIRE PROTECTION DETAILS

TABLE OF CONTENTS
5/01/2024

DIVISION 1 - GENERAL & SUPPLEMENTARY REQUIREMENTS

GENERAL REQUIREMENTS

G01000 - SPECIFICATIONS FORMAT
G01015 - MISCELLANEOUS PROVISIONS
G01200 - PROJECT MEETINGS
G01600 - MATERIAL AND EQUIPMENT
G01700 - PROJECT CLOSEOUT
GO1730 – SYSTEMS OPERATIONS AND MAINTENANCE MANUALS
G01740 - GUARANTEES, WARRANTIES, & BONDS

SUPPLEMENTARY REQUIREMENTS

S01010 - SUMMARY OF WORK
S01060 - PERMITS, FEES, AND CERTIFICATES OF
OCCUPANCY S01300 - SUBMITTALS
S01311 - PROGRESS SCHEDULE
S01352 – SUSTAINABILITY
REQUIREMENTS S01400 - QUALITY
CONTROL
S01426 - SAMPLE CLASSROOM
S01500 - TEMPORARY FACILITIES AND CONTROLS
S01524 – CONSTRUCTION WASTE
MANAGEMENT S01535 – SAFETY PROGRAM
S01550 – INDOOR AIR QUALITY (IAQ) REQUIREMENTS
S01560 – INSTALLATION SEQUENCE OF FINISH
MATERIALS S01630 - PRODUCT SUBSTITUTIONS
S01650 - FACILITY START-UP, DEMONSTRATION, AND TRAINING

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

S01660 – SUPPLEMENTAL COMMISSIONING
REQUIREMENTS SO1720 – RECORD DOCUMENTS

DIVISION 2 - SITEWORK

02010 – ENVIRONMENTAL SITE ASSESSMENT REPORTS
02070 - SELECTIVE REMOVALS & DEMOLITION
02090 – ENVIRONMENTAL MANAGEMENT OF EXCAVATED MATERIAL AND FILL/BACKFILL
02100 - SITE PREPARATION
02200 – EARTHWORK
02220 – GAS VAPOR BARRIER (FLUID APPLIED)
02221 - SUB-SLAB DEPRESSURIZATION SYSTEM
02250 - FOUNDATION AND OTHER CHANGE ADJUSTMENTS
02260 - MONITORING
02511 - ASPHALTIC CONCRETE PAVING
02513 - SIDEWALK AND STREET PAVING
02521 - CONCRETE CURBS AND PAVEMENTS
02721 – TRENCH DRAINS
02722 - PRECAST CONCRETE CATCH BASINS, DETENTION BASINS, BOX CULVERTS, AND MANHOLES
02723 - STORM DRAINAGE SYSTEMS
02831 - CHAIN LINK FENCES AND GATES
02860 - EARLY CHILDHOOD PLAYGROUND EQUIPMENT
02862 - OUTDOOR GAME EQUIPMENT
02870 - SITE AND STREET FURNISHINGS
02900 - LANDSCAPING

DIVISION 3 - CONCRETE

03100 - CONCRETE FORMWORK
03200 - CONCRETE REINFORCEMENT
03300 - CAST-IN-PLACE CONCRETE
03450 – PRECAST ARCHITECTURAL CONCRETE
03542 - CEMENT-BASED SELF-LEVELING UNDERLAYMENT
03610 - GROUTING

DIVISION 4 - MASONRY

04200 - UNIT MASONRY
04435 – CAST STONE

DIVISION 5 - METALS

05120 - STRUCTURAL STEEL-
05170 - SUPPORT SYSTEM FOR SUSPENDED CEILINGS
05300 - METAL DECK
05500 - METAL FABRICATIONS

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

05580 - SHEET METAL FABRICATIONS
05700 - ORNAMENTAL METAL
05710 - STEEL STAIRS
05810 - PREFABRICATED EXPANSION JOINT COVERS

DIVISION 6 - WOOD AND PLASTICS

06100 - ROUGH CARPENTRY
06200 - FINISH CARPENTRY
06410 - CUSTOM CASEWORK

DIVISION 7 - THERMAL AND MOISTURE PROTECTION

07147 - CRYSTALLINE WATERPROOFING
07211 - PERIMETER FOUNDATION INSULATION
07212 - MISCELLANEOUS BUILDING INSULATION
07250 - SPRAYED FIRE-RESISTIVE MATERIALS
07270 - FIRESTOPPING/SMOKE SEALS
07271 – SELF-ADHERING SHEET AIR BARRIERS
07414 – METAL PLATE WALL PANELS
07560 - FLUID-APPLIED PROTECTED MEMBRANE ROOFING
07565 - COLD FLUID-APPLIED RESIN ROOFING – PROTECTED MEMBRANE ROOFING SYSTEM
07600 - FLASHING AND SHEET METAL
07720 - ROOF ACCESSORIES
07900 - JOINT SEALERS

DIVISION 8 - DOORS AND WINDOWS

08110 - STEEL DOORS AND FRAMES
08210 - WOOD DOORS
08305 - ACCESS DOORS
08330 - COILING DOORS, GRILLES AND SHUTTERS
08411 – ALUMINUM-FRAMED ENTRANCES AND STOREFRONTS
08521 – FIRE RATED GLAZING SYSTEMS
08524 - ALUMINUM PROJECTED WINDOWS
08662 - SECURITY SCREENS/BARRIERS
08710 - FINISH HARDWARE
08730 - THRESHOLDS, WEATHERSTRIPPING AND SEALS
08800 - MISCELLANEOUS GLAZING

DIVISION 9 - FINISHES

09260 - GYPSUM BOARD ASSEMBLIES
09310 - CERAMIC TILE
09510 - ACOUSTICAL CEILINGS
09590 - WOOD FLOORING

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

09650 - RESILIENT FLOORING
09675 – FLUID-APPLIED EQUIPMENT ROOM FLOORING
09800 - SPECIAL COATINGS
09860 - GRAFFITI RESISTANT COATINGS
09900 - PAINTING

DIVISION 10 - SPECIALTIES

10100 - VISUAL DISPLAY BOARDS
10151 - TOILET COMPARTMENTS
10214 - STATIONARY METAL WALL LOUVERS
10350 - FLAGPOLE
10400 - IDENTIFYING DEVICES
10415 - BULLETIN BOARDS, GLAZED DISPLAY BOARDS, DISPLAY CABINETS AND CASES
10505 - METAL LOCKERS
10522 - FIRE EXTINGUISHERS AND CABINETS
10605 - WIRE MESH WORK
10675 - METAL STORAGE SHELVING
10720 - WINDOW GUARDS
10810 - TOILET AND BATH ACCESSORIES
10830 - MIRRORS
10840 - GRAB BARS

DIVISION 11 - EQUIPMENT

11050 – LIBRARY EQUIPMENT
11061 - PLATFORM CURTAINS, AUDITORIUM WINDOW CURTAINS
11172 - WASTE HANDLING EQUIPMENT
11400 - FOOD SERVICE EQUIPMENT
11450 - DOMESTIC TYPE EQUIPMENT
11480 - GYMNASIUM EQUIPMENT
11500 - SHOP EQUIPMENT
11600 - LABORATORY EQUIPMENT

DIVISION 12 - FURNISHINGS

12302 - MANUFACTURED WOOD CASEWORK
12485 – FOOT GRILLES
12501 – CHAIN AND CLUTCH OPERATED WINDOW SHADES
12761 - BLEACHERS

DIVISION 13 - SPECIAL CONSTRUCTION

13487 - CONCRETE FLOATING FLOOR ASSEMBLY

DIVISION 14 - CONVEYING SYSTEMS

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

14211 – GEARED TRACTION PASSENGER ELEVATORS
14420 – HYDRAULIC VERTICAL WHEELCHAIR LIFTS

DIVISION 15 - MECHANICAL

FIRE PROTECTION

15301 – GENERAL PROVISIONS FOR FIRE PROTECTION SYSTEMS WORK
15303 – VIBRATION ISOLATION AND SEISMIC CONTROLS, FIRE PROTECTION SYSTEMS
15330 – SPRINKLER SYSTEM
15333 – SPRINKLER BOOSTER/ FIRE PUMPS

PLUMBING AND DRAINAGE

15401 – GENERAL PROVISIONS FOR PLUMBING AND DRAINAGE WORK
15403 - VIBRATION ISOLATION AND SEISMIC CONTROLS, PLUMBING AND DRAINAGE SYSTEMS
15410 - PLUMBING PIPING
15411 - HANGERS AND SUPPORTS
15412 - VALVES
15413 - INSULATION (P&D)
15414 - TESTS
15415 - DRAINAGE
15416 - GAS PIPING SYSTEM
15417 - COLD WATER SUPPLY
15418 - HOT WATER SUPPLY
15431 - TAGS, CHARTS AND IDENTIFICATION
15432 - MISCELLANEOUS
15440 - PLUMBING FIXTURES
15451 - WATER HEATERS
15453 - PUMPING APPARATUS AND TANKS

HEATING, VENTILATING AND AIR CONDITIONING

15501 – GENERAL PROVISIONS FOR HEATING, VENTILATING AND AIR CONDITIONING WORK
15502 - HVAC IDENTIFICATION
15503 - VIBRATION ISOLATION AND SEISMIC CONTROLS, HVAC SYSTEMS
15510 - HVAC PIPING
15511 - VALVES (HVAC)
15512 - PIPING INSULATION (HVAC)
15513 - EQUIPMENT INSULATION (HVAC)
15514 - DUCTWORK INSULATION
15515 - HYDRONIC SPECIALTIES
15517 - WATER TREATMENT FOR HYDRONIC SYSTEMS

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

15540 - HVAC PUMPS
15565 – HOT WATER CONDENSING BOILERS
15570 - BOILER ACCESSORIES
15575 - BREECHING, CHIMNEY AND STACKS
15590 - EMERGENCY GENERATOR SYSTEM-ACCESSORIES
15594 - FUEL STORAGE EQUIPMENT
15596 – NATURAL GAS LEAK DETECTION EQUIPMENT
15660 – PACKAGED MODULAR OUTDOOR CHILLERS
15670 – PLATE HEAT EXCHANGERS
15783 - SPLIT HEAT PUMP SYSTEM
15792 - COILS
15835 - CONVECTORS
15836 - UNIT HEATERS/CABINET HEATERS
15838 - FAN COIL UNITS
15839 – DOOR AIR CURTAINS
15852 - AIR HANDLING UNITS
15860 - CENTRIFUGAL FANS
15880 – SUB-SLAB DEPRESSURIZATION SYSTEM ACCESSORIES
15885 - AIR FILTERS
15891 - METAL DUCTWORK
15910 - DUCT ACCESSORIES
15915 - DAMPERS
15930 - VARIABLE AIR TERMINALS
15935 - SINGLE ZONE VARIABLE AIR VOLUME (SZVAV) AIR HANDLING UNITS FOR PUBLIC ASSEMBLY SPACES (AHU-1, -2)
15940 - AIR OUTLETS AND INLETS
15970 - TEMPERATURE CONTROL SYSTEM (LONWORKS BMS/DDC WITH SCHOOL OPERATING CONSOLE)
15973 - FACILITY MANAGEMENT SYSTEMS INTEGRATION
15980 - THERMOMETERS AND GAUGES
15985 - SEQUENCE OF OPERATIONS
15992 - CLEANING AND TESTING
15993 - BALANCING OF SYSTEMS

DIVISION 16 - ELECTRICAL

16010 - GENERAL PROVISIONS FOR ELECTRICAL WORK
16013 - VIBRATION ISOLATION AND SEISMIC CONTROLS, ELECTRICAL SYSTES
16120 - WIRING SYSTEMS
16130 - RACEWAYS, FITTINGS, SUPPORTING DEVICES, BOXES AND ACCESSORIES
16140 - WIRING DEVICES
16145 - LIGHTING CONTROL DEVICES
16231 - EMERGENCY GENERATOR SYSTEM
16289 – SURGE PROTECTION DEVICES
16420 - SERVICE ENTRANCE EQUIPMENT

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "A"
LIST OF DRAWINGS, SPECIFICATIONS and ADDENDA

16425 - SWITCHBOARDS
16441 - ENCLOSED SWITCHES
16450 - GROUNDING AND BONDING
16470 - PANELBOARDS
16471 - AUDITORIUM AND TELEVISION STUDIO DIMMING SYSTEM
16475 - OVERCURRENT PROTECTIVE DEVICES, CIRCUIT BREAKERS AND FUSES
16480 - MOTORS, MOTOR CONTROL CENTERS, STARTERS AND CONTROL EQUIPMENT
16502 – LED INTERIOR BUILDING LIGHTING
16520 - ILLUMINATED EXIT SIGN AND EMERGENCY LIGHTING FIXTURES
16670 - LIGHTNING PROTECTION
16701 - AUXILIARY SIGNAL SYSTEMS
16720 - FIRE DETECTION AND ALARM SYSTEM WITH CENTRAL OFFICE CONNECTION
16724 - INTRUSION ALARM SYSTEM
16725 - TELEPHONE CABLING SYSTEM
16726 - INTERCOM SYSTEM FOR FIRE RESCUE AREAS AND EMERGENCY TELEPHONE FOR ELEVATORS
16727 - DATA CABLING SYSTEM
16728 - FIBER OPTIC CABLING SYSTEM
16770 - SOUND, INTERCOM AND TEACHER ACTIVATED SECURITY SYSTEM
16771 - PROJECTION AND INTERACTIVE WHITEBOARD SYSTEMS
16785 - INTERNET PROTOCOL DIGITAL VIDEO SURVEILLANCE (IPDVS) SYSTEM USING DIGITAL CAMERAS
16791 - SELF-CORRECTIVE CLOCK SYSTEM
16855 - HEAT TRACE CABLE SYSTEM

List of Addenda

- Addendum 1
- Addendum 2
- Addendum 3
- Addendum 4

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "B"
SCOPE of WORK

This Exhibit is intended to supplement Article I of the Subcontract in order to define, but not limit, the scope of the work included in the Subcontract.

1. Subcontract includes all **Custom Casework** (the "Work") and related scope indicated in or implied by the Contract Documents. It is the intent of this Subcontract to have the Subcontractor provide all labor, material, taxes, equipment, tools, engineering, shop drawings, hoisting, scaffolding, bracing, mobilization, layout, supervision, administration and other services required to complete all work in accordance with the Contract Documents.

   All Work (except as may be specifically excluded hereunder) specified under the following Specification Sections is included and shall be performed in complete accordance with the Contract Drawings, Specifications and other Contract Documents.

2. Any Work specified and reasonably inferred but not shown is included in the Subcontract. Any work shown on any Contract Drawings as part of **Custom Casework** is included even if such work is not specified. This Contractor shall comply with all Division 06 requirements.

3. Subcontract includes all work indicated or described in the following Specification Sections, unless otherwise noted in this Exhibit "B" under paragraph titled Exclusions and Qualifications.

   DIVISION 06:
   Section 06410: Custom Casework

Subcontract includes required labor, supervision, materials, equipment, engineering, shop drawings, and all submittals to perform integration work for the above referenced project, including but not limited to:

1. Furnish and install all architectural woodwork and casework as indicated on drawings and per Section 06410 specifications.
2. Provide casework with wood finish, unless laminate cladding is noted on drawings.
3. Provide and install all classroom casework including but not limited to sink countertops, computer countertops, cubbies, and built-in storage units.
4. Furnish and install all bookcases, shelving units, wall-hung shelves, and other miscellaneous cabinetry as required by the contract documents – wood dowel only. Steel post and anchoring by others.
5. Supply and install all student and teacher wardrobes, including associated hardware and accessories.
6. Provide complete assembly and installation of the security desk, stage trim, stage stairs, and dance barre.
7. Furnish and install open shelves with laminated tops wherever indicated & base cabinet for sink unit in FF325
8. Provide and install all wood window sills as shown on the drawings.
9. Include fabrication and installation of all storage units, including those with sliding markerboards.
10. Contract includes coordination with other trades including but not limited to carpenter, electrician, plumbing & HVAC contractor for all necessary blocking, supports, cutouts, penetrations, and adjacent finishes is included.
11. All related trim, fillers, panels, fasteners, hardware, edge treatments, and accessories required to complete the work shall be included.
12. Submit shop drawings, product data, certifications, hardware schedules, and finish samples for approval.
13. Submit all sustainability documents, closeout items, attic stock per specifications.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "B"
SCOPE of WORK

14. Contract includes all the custom casework per contract drawings, specification including but not limited to quote accepted on 02/12/2025

Qualifications and exclusions to the contract drawings and specifications contained in the Subcontractor's proposal for this work are not accepted or agreed to unless specifically incorporated into this Scope of Work

1. Subcontract includes all work in all Specification Sections that are indicated as "Related Sections", or otherwise referred to in any of the above Specification Sections, that is related to the Work
2. Subcontract includes furnishing contractor's and manufacturer's guarantees and warrantees.
3. Subcontract includes furnishing all submittals, samples, mock ups, shop drawings and closeout documents as per specifications.
4. Subcontract includes all co-ordination with any other authority having jurisdiction over subcontractor's work.
5. Subcontract includes protection from damage of all existing equipment and installed work by other trades on site.
6. Subcontract includes all co-ordination with other trades including but not limited to; Plumbing Contractor, Electrical Contractor, etc.
7. Subcontract includes all rigging, hoisting and scaffolding for all subcontract work.
8. Subcontract includes adherence to sustainability requirements as required per contract documents as per specification S01352.
9. Subcontract includes all scaffolding to carry out the subcontractor's work.
10. Subcontract includes adherence with Navillus CPM Schedule. Therefore, including the understanding that multiple locations shall be performed concurrently.
11. The contractor shall check the location, number, and size of all chases provided on the construction plans and arrange for any others required.
12. Subcontract includes all filings, permits, notifications, signage and signoffs, including but not limited to requirements of DEP, Department of Labor and DOB.
13. Subcontract includes provision of certified safety training certificate for all manpower, including OSHA training, accessing exterior pipe scaffold, hanging scaffold, etc. as required.
14. Subcontract includes sign-off and performance of the project in accordance with the Navillus project Health & Safety Plan. Subcontractor is responsible for the tie off, life lines and fall protection for their employees.
15. Subcontract includes strict adherence to Navillus fall protection procedures. Subcontract includes strict adherence to SCA Safety Requirements and procedures.
16. Subcontract includes use of Procore Construction software for project management items including but not limited to RFI's and submittals. Access to Procore will be provided by Navillus. Online training modules are provided with this access and are mandatory to complete by the subcontractor's project team.
17. Job Hazard analysis (JHA), Pre-Task Plans, Tool Box Talks and work plans to be submitted as required for all activities pertaining to the subcontractor's work.
18. Subcontract includes coordination of all deliveries with Navillus superintendent 24 hours prior to delivery.
19. Subcontract includes all subcontractor overhead & profit.
20. Subcontract includes best efforts with MBE/WBE participation requirements.
21. Subcontract includes all material escalation costs throughout the contract duration.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "B"
SCOPE of WORK

22. Subcontract includes for a 62hr SST supervisor trained employee of the subcontractor on site while work is being performed by the subcontractor.
23. Subcontract includes providing written site specific safety program prior to mobilization, pretask plans to be given to GC prior to 9am daily, tool box talks to be provided weekly
24. Subcontractor shall comply with the commissioning requirements of contract specification S01660

4. Exclusions:

- Install Bathroom tops
- Glass at service window
- Dance Barre Posts
- Doors, Frames & Associated hardware
- Glazed Cabinets
- Existing Building Work
- Open shelves with epoxy tops
- Spec sec #11600
- Caulking
- Anything not listed or attached herein

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "C"
SUBCONTRACT PAYMENT BOND

KNOW ALL MEN BY THESE PRESENTS: that_____
(Here insert full name & address or legal title of Subcontractor)

as Principal, hereinafter called Subcontractor, and_____
(Here insert full name & address or legal title of Surety.)

as Surety, hereinafter called Surety, are held and firmly bound unto Navillus Tile, Inc. d/b/a Navillus Contracting, 633 3rd Avenue, 17th Floor, New York, NY 10017, as Obligee, hereinafter called Contractor, in the amount of

_____ Dollars ($_____)

for the payment whereof, Subcontractor and Surety bind themselves, their heirs, executors, administrators, successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, Subcontractor has by written agreement dated_____, 2000

entered into a subcontract with Contractor for a portion of the work agreed to be performed by Contractor on a project known as

_____
(Here insert general descriptive name and location of project.)

which subcontract, as duly modified or amended from time to time, is by reference made a part hereof, and is hereinafter referred to as the Subcontract.

NOW, THEREFORE, THE CONDITION OF THIS OBLIGATION is such that, if Subcontractor shall promptly made payment **(a)** to all claimants as hereinafter defined, for all labor and material used or reasonably required for use in the performance of the Subcontract, and **(b)** to all other persons, firms or corporations furnishing such labor or material for which Subcontractor is, and Contractor may become, obligated to make payment, then this obligation shall be void; otherwise it shall remain in full force and effect, subject, however, to the following conditions:

1) A claimant is defined as one having a direct contract with the Subcontractor for labor or material, or both, used or reasonably required for use in the performance of the Subcontract, labor and material being construed to include, without limiting the generality thereof, that part of water, gas, power, light, heat, oil, gasoline, telephone service, rental of equipment, services, insurance, bond, or supplies directly applicable to the Subcontract.

2) The above named Subcontractor and Surety hereby jointly and severally agree with the Contractor that every claimant as herein defined, who has not been paid in full before the expiration of a period of ninety (90) days after the date on which the last of such claimant's work or labor was done or performed, or materials were furnished by such claimant, may sue on this bond for the use of such claimant, prosecute the suit to final judgment for such sum or sums as maybe justly due claimant, and have execution thereon. The Contractor shall not be liable for the payment of any costs or expenses of any such suit.

3) No suit or action shall be commenced hereunder by any claimant:
a) After the expiration of one (1) year following the date on which Subcontractor ceased Work on said Subcontract, it being understood, however, that if any limitation embodied in this bond is

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

prohibited by any law controlling the construction hereof such limitation shall be deemed to be amended so as to be equal to the minimum period of limitation permitted by such law; or

b) Other than in a state court of competent jurisdiction in and for the county or other political subdivision of the state in which the Project, or any part thereof, is situated, or in the United States District Court for the district in which the Project, or any part thereof, is situated, and not elsewhere.

4) The amount of this bond shall be reduced by and to the extent of any payment or payments made in good faith hereunder.

Signed and sealed the_____ day of _____, 20_____
(Should not be earlier than Subcontract date.)

Attach valid Corporate Power of Attorney Form.

THIS BOND IS ISSUED SIMULTANEOUSLY WITH PERFORMANCE BOND IN FAVOR OF THE CONTRACTOR CONDITIONED ON THE FULL AND FAITHFUL PERFORMANCE OF THE CONTRACT.

_____
(Principal) **(Seal)**

_____ _____
(Witness) **(Title)**

_____
(Surety) **(Seal)**

_____ _____
(Witness) **(Title)**

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "C"
SUBCONTRACT PERFORMANCE BOND

KNOW ALL MEN BY THESE PRESENTS: that_____

as Principal, hereinafter called Subcontractor, and_____

as Surety, hereinafter called Surety, are held and firmly bound unto Navillus Tile, Inc. d/b/a Navillus Contracting, 633 3rd Avenue, 17th Floor, New York, NY 10017as Obligee, hereinafter called Contractor, in the amount of

Dollars ($)

for the payment whereof, Subcontractor and Surety bind themselves, their heirs, executors, administrators, successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, Subcontractor has by written agreement dated_____ entered into a subcontract with Contractor for a portion of the work agreed to be performed by Contractor on a project known as

(Here insert general descriptive name and location of project.)

which subcontract, as duly modified or amended from time to time, is by reference made a part hereof, and is hereinafter referred to as the Subcontract.

NOW, THEREFORE, THE CONDITION OF THIS OBLIGATION is such that, if Subcontractor shall promptly and faithfully perform said Subcontract, then this obligation shall be null and void; otherwise, it shall remain in full force and effect.

The Surety hereby waives notice of any modification or amendment to the Subcontract made in accordance with the terms thereof, and any alteration or extension of time made by or through the Contractor.

Whenever Subcontractor shall be, and declared by or through Contractor to be, in default under the Subcontract, the Contractor having substantially performed Contractor's obligations thereunder, the Surety may promptly, within the time permitted Subcontractor under the Subcontract, remedy the default, or shall promptly

1) Complete the Subcontract in accordance with its terms and conditions, or

2) Obtain a bid or bids for completing the subcontract in accordance with its terms and conditions, and upon determination by surety of the lowest responsible bidder acceptable to the Contractor, arrange for a contract between such bidder and Contractor, and make available as Work progresses (even though there should be a default or a succession of defaults under the contract or contracts of completion arranged under this paragraph) sufficient funds to pay the cost of completion less the balance of the Subcontract price; but not exceeding (including other costs and damages for which the Surety may be liable hereunder), the amount set forth in the first paragraph hereof. The terms "balance of the Subcontract price", as used in this paragraph, shall mean the total amount payable by Contractor to Subcontractor under the Subcontract and any amendments thereto, less the amount properly paid by Contractor to or for the benefit of Subcontractor; and

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

3) Indemnify the Contractor against loss, damage or liability resulting from Subcontractor's performance or non-performance or default, or resulting from the actions or failure to act of the surety, including additional legal, design professional and delay costs.

Any suit under this bond must be instituted before the expiration of two (2) years from:

a) The date on which final payment under the Subcontract falls due, or,

b) The expiration date of any express maintenance or warranty period provided for in the Subcontract, whichever occurs later.

No right of action shall accrue on this bond to or for the use of any person or corporation other than the Contractor named herein or the heirs, executors, administrators or successors of the Contractor.

Signed and sealed the_____day of_____, 20_____

Attach valid Corporate Power of Attorney Form.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "D"
INSURANCE REQUIREMENTS

This Exhibit is intended to supplement the Subcontract in order to define, but not limit, additional insurance requirements of the Subcontract. Notwithstanding the insurance to be provided in accordance with this article, the Owner has elected to provide an Owners Controller Insurance Program (OCIP) and may elect to provide other Project Insurance Policies to be put in place. The parties agree that the below requirements shall not be in effect for on-site work but shall continue to be provided for off-site activities. The Subcontractor agrees to fully cooperate with the Contractor and the Owner, and the terms of the OCIP.

1. Insurance Coverage/Certificates of Insurance.

a) The Subcontractor shall purchase and maintain the required insurance from a responsible insurer or insurers acceptable to the Contractor and rated "B" or better by A.M. Best, in the type and amount deemed necessary by the Contractor to protect and defend against all claims, loss and liability arising from injury, death and damage to persons or property arising out of the performance or nonperformance of the Subcontract Work. The Subcontractor shall not commence work until the required insurance is obtained

b) The required insurance shall include Worker's Compensation Insurance, Comprehensive General Liability Insurance (including Premises/Operations, Independent Contractors, Completed Operations and Contractual Liability covering Indemnification Agreements), and Comprehensive Automobile Liability.

c) The Contractor shall be named as additional insured on each of these policies (except for Worker's Compensation). The Subcontractor will have an endorsement substantially in the form set forth below added to its Comprehensive General Liability policy and to its Umbrella or Excess liability policy:

"It is hereby agreed and understood that the Contractor is named as an additional insured. The coverage afforded to the additional insured under this policy shall be primary insurance. If the additional insured has other insurance which is applicable to the loss, such other insurance shall be on an excess or contingent basis. The amount of the insurer's liability under this policy shall not be reduced by the existence of such other insurance. In addition, it is agreed that the Subcontractor's General Liability policy will be endorsed to provide a waiver of subrogation in favor of the Contractor."

Consistent with the foregoing, to the extent that the Contractor is required to designate any person or entity as additional insured or named insured under the Contractor's policies of liability insurance, such person or entity also shall be named as additional insured or named insured on the policies procured by the Subcontractor. At a minimum, the following entities designated in the Contract shall be named as additional insured, **in addition to the Contractor:**

- SCA
- Navillus Contracting
- All parties as listed in appendix J (Insurance requirements)

The receipt by the Contractor of any certificate not containing the foregoing language shall under no circumstances constitute a waiver of the foregoing requirement.

No insurance policy procured or maintained by the Subcontractor shall have any "professional services" exclusion that excludes coverage for engineering services rendered by the Subcontractor in connection with its Work.

The Subcontractor and/any of its subcontractors shall provide, maintain the required insurance as *per* NYCSCA requirement for Contract # C000080867, appendix J

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "D"
INSURANCE REQUIREMENTS

d) The Subcontractor's Comprehensive General Liability Insurance, Comprehensive Automobile Insurance and Worker's Compensation Insurance as required by this section shall be written with the limits of liability not less than the following:

Comprehensive General Liability Insurance

Commercial General Public Liability: including contractual liability endorsement and claims for damages because of bodily injury including personal or cellular injury, sickness or disease, or death of any of Contractor's, Asbestos Subcontractors' or Consultant's employees or any other person and specifically covering all claims and groups of people who might bring claim relating to asbestos: Bodily and Personal Injury and Property Damage Single limit Coverage: $1,000,000; Per Occurrence, $2,000,000 General Aggregate. Aggregate limits shall apply on a per project basis.

Comprehensive Automobile Liability Insurance.

Bodily Injury $1,000,000 per person/per occurrence
Property Damage $1,000,000 per occurrence

Worker's Compensation.

The coverage shall extend to Employer's Liability for bodily injury, death and for occupational disease, $500,000 each occurrence.

If in any way applicable to the Work, the Worker's Compensation Insurance shall extend to include coverage for Federal Employer Liability Act and Maritime Liability.

Comprehensive Excess Indemnity (Umbrella) Liability

Umbrella Liability Insurance for limits of at least $5,000,000 aggregate. Aggregate limits shall apply per project. This insurance shall be written on an Umbrella Liability form, not on an Excess Liability form, and this coverage, at a minimum, will follow the terms and conditions of the Commercial General Liability and Automobile Liability insurance as required above. This insurance shall specifically cover asbestos abatement operations and shall not contain any exclusion pertaining to asbestos abatement operations.

Hazardous Material Transportation Liability

Hazardous Material Transportation Liability: specifically covering all claims and groups of people who might bring claims relating to asbestos:
Bodily Injury: $5,000,000.
Property Damage: $5,000,000

Professional Liability Insurance

Where applicable, this insurance shall include an annual limit of at least $2,000,000 per claim and in the aggregate. This insurance must be maintained for a least 5 years following completion of the work. This requirement shall apply only if any work or services required of Sub-contractor by this Agreement (including any work or services to be provided by its Sub-contractors) would be excluded from coverage under such Sub-contractor's Commercial General Liability insurance as professional service.

Contractors Pollution Liability

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Any Subcontractor whose work involves removal or treatment of hazardous material will provide and Maintain Contractor's Pollution Liability insurance with annual limits of at least $5,000,000 and shall continue to maintain such for a period of not less than 2 years following completion of the project. This requirement shall apply only if any work required of Sub-contractor by this Agreement (including any work or service to be provided by its Sub-contractors) would be excluded from coverage under such Sub-contractor's Commercial General Liability insurance as pollution service.

Boiler and Machinery

Subcontractor performing work relative to pressure vessels shall provide insurance coverage for loss or damage to steam boilers, steam pipes or pressure vessels unless by law or by Contract Documents the Contractor is specifically relieved of such responsibility. Coverage shall be for Replacement Value.

Disability Benefits Liability

Covering all employees

e) Comprehensive General Liability Insurance and other liability insurance may be arranged under a single policy for the full limits required, or by a combination of underlying policies with the balance provided by an Excess or Umbrella Liability Policy.

f) The Subcontractor shall maintain completed operations liability for one year after acceptance of any Subcontract Work or substantial completion of any project to which the Subcontract Work relates, or to the time required by any other agreement, whichever is longer. The Subcontractor shall furnish the Contractor evidence of such insurance at the time of completion of the Subcontract Work.

g) All insurance policies shall provide that the Contractor will be notified by the insurer of the cancellation or the restrictive amendment of the policy at least (30) days prior to the date that the cancellation or restrictive amendment takes effect. The Subcontractor shall notify the Contractor of any change in coverage of any insurance policy not less than ten (10) days prior to the change in the policy.

h) Certificate of Insurance and a copy of the additional insured endorsement, indicating that the required insurance is in force, shall be furnished to the Contractor prior to the Subcontractor's performance of the Subcontract Work. Each certificate of insurance shall set forth the type and amount of insurance, the number of the policy, the date coverage under the policy begins and the date that coverage expires.

i) The Contractor, by requiring the Subcontractor to purchase insurance, shall not be deemed to waive the contractor's right to bring any action, to the fullest extent permitted by law, for any loss which may be covered, completely or in part, by that insurance. Nor shall the fact that insurance is obtained for a certain risk be deemed to release, relieve or diminish the liability of the Subcontractor to indemnify the Contractor pursuant to the provisions of this letter agreement or otherwise. The damages recoverable by the Contractor in any action shall not be limited by the amount of coverage specified in the insurance policy or policies, but shall be the amount of actual damages recoverable by law, including, but not limited to, contractual contribution, contractual indemnification, and/or common-law indemnification.

2. <u>Indemnification.</u>

The Subcontractor agrees to indemnify, defend and hold harmless the Contractor and each of its shareholders, directors, officers, partners, members, employees agents, subsidiaries and divisions (and each of their heirs, successors and assigns) from any and all claims, losses, costs and damages, including but not limited to judgments, attorneys' fees, court costs and the cost of appellate proceedings, which the Contractor incurs

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

because of injury to, or sickness, illness or death of any person (including but not limited to, any employee of the Subcontractor or any employee of its subcontractor), or on account of damage to property, including loss of use thereof, and any other claim arising out of, Subcontractor's Work, whether same be labeled as full indemnification, partial indemnification or contractual contribution.

This indemnification provisions are limited only to the extent that the General Obligations Law of the State of New York is applicable. In that this provision does not require indemnification for the Contractor's own negligence. This provision does, however, require indemnification for liability imposed by statute. This indemnification provision is binding on the Subcontractor to the fullest extent permitted by law, and does not negate, abridge or reduce any other rights or obligations of the persons and entities described herein with respect to indemnification or partial indemnification (whether contractual or common-law) or contractual contribution.

3. Compliance with Federal, State and Local Law.

The Subcontractor agrees to be bound by, and at its own cost, comply with all federal, state and local laws, ordinances and regulations (hereafter collectively referred to as "laws" applicable to the Subcontract Work including, but not limited to, the federal Occupational Safety and Health Act ("OSHA").

The Subcontractor shall be liable to the contractor for all loss, cost and expense attributable to any omission by the Subcontractor, its employees and agents resulting from the failure to comply therewith, including, but not limited to, any fines, penalties or corrective measures.

4. **Contractors hired by Subcontractor**.

All insurance requirements provided under this agreement shall apply equally to all contractors hired by the Subcontractor. It is the obligation of the Subcontractor to be certain that all contractors hired by them are in compliance.

5. **Builders Risk Insurance**

Should the Contractor have a Builder's Risk policy in place for the Project and should the Subcontractor file any claim or the Contractor file any claim on behalf of the Subcontractor, the Subcontractor shall pay any deductible that may be applied to any such claim.

6. Property Insurance/Installation Floater

Subcontractor must provide their own insurance for owned, leased, rented, and borrowed equipment, whether such equipment is located at a Project Site or "in transit." Subcontractor is solely responsible for any loss or damage to their personal property including, without limitation, property or materials created or provided this Subcontract until installed at the Project Site, Subcontractor's tools and equipment, scaffolding, and temporary structures.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "E"
REQUISITION REQUIREMENTS

This Exhibit is intended to supplement Article IV of the Subcontract in order to define, but not limit, the documentation that is required to be submitted by Subcontractor in order to process payment. Unless other forms are required by the Contract, Subcontractor shall submit requisition for payment using following forms, copies of which are attached herein (electronic version of forms may be obtained upon request). Subcontractor shall also submit any additional forms, or modified forms, as may be required by the Contract.

1. Requisition for Payment (submit on monthly basis)
2. Trade Payment Breakdown (submit on monthly basis)
3. Certification of Payroll (submit on monthly basis)
4. Partial Waiver and Lien Release (submit on monthly basis)
5. Final Release (required for processing of final payment)
6. Labor Rate Sheet (submit with first requisition)

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "E"
REQUISITION REQUIREMENTS

Navillus Tile, Inc. d/b/a Navillus Contracting
REQUISITION FOR PAYMENT

Subcontract #

Subcontractor:		**Tel.**	
Address:			
Project:	**PS 341Q** **1-55 54th Ave, Long Island City, NY 11101**		
Req. #		**Requisition Date:**	
Period:		**through**	

VALUE OF SUBCONTRACT APPROVED TO DATE:

Original Subcontract Price		
Approved Change Orders		
Adjusted Subcontract Price		$ -

VALUE OF WORK COMPLETED AS OF: _____

Base Subcontract Work Complete		
Approved Change Order Work Complete		
Total Completed to Date		$ -

DEDUCTIONS:

Retainage		
Net Previous Requests for Payment		
Total Deductions		$ -

AMOUNT DUE THIS REQUISITION $ -

For Navillus Use Only

	This Request	To Date
Gross		
Retainage		
Net		

Approved by: _____ date

Verified by: _____ date

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "E"
REQUISITION REQUIREMENTS

Trade Payment Breakdown

Subcontractor: _____ **Subcontract #** _____

Project:

Requisition # _____

Requisition Date: _____

Base Subcontract Work

Period Covered: _____ **through** _____

A	B	C	D	E	F	G	H	I	J
BASE CONTRACT ITEM NO.	DESCRIPTION	SCHEDULED VALUE	WORK COMPLETED		MATERIALS PRESENTLY STORED (not in D or E)	TOTAL COMPLETED and STORED TO DATE	%	BALANCE TO FINISH	RETAINAGE
			FROM PREVIOUS APPLICATIONS (D+E)	THIS PERIOD		(D+E+F)	(G/C)	(C-G)	
	BASE SUBCONTRACT SUBTOTALS (THIS SHEET)								
	BASE SUBCONTRACT TOTALS (LAST SHEET)								

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "E"
REQUISITION REQUIREMENTS

Trade Payment Breakdown

Subcontractor: _____ **Subcontract #** _____

Project:

Requisition # _____

Requisition Date: _____

Change Order Work

Period Covered: _____ **through** _____

A	B	C	D	E	F	G	H	I	J
CHANGE ORDER NO.	DESCRIPTION	SCHEDULED VALUE	WORK COMPLETED		MATERIALS PRESENTLY STORED (not in D or E)	TOTAL COMPLETED and STORED TO DATE	%	BALANCE TO FINISH	RETAINAGE
			FROM PREVIOUS APPLICATIONS (D+E)	THIS PERIOD		(D+E+F)	(G/C)	(C-G)	
	CHANGE ORDER SUBTOTALS (THIS SHEET)								
	CHANGE ORDER TOTALS (LAST SHEET)								

Total - Base Subcontract + Change Order Work

A	B	C	D	E	F	G	H	I	J
CHANGE ORDER NO.	DESCRIPTION	SCHEDULED VALUE	WORK COMPLETED		MATERIALS PRESENTLY STORED (not in D or E)	TOTAL COMPLETED and STORED TO DATE	%	BALANCE TO FINISH	RETAINAGE
			FROM PREVIOUS APPLICATIONS (D+E)	THIS PERIOD		(D+E+F)	(G/C)	(C-G)	
	BASE SUBCONTRACT TOTALS								
	CHANGE ORDER TOTALS								
	TOTAL - BASE SUBCONTRACT + CHANGE ORDERS								

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "E"
REQUISITION REQUIREMENTS

Navillus Tile, Inc. d/b/a Navillus Contracting

PARTIAL WAIVER and LIEN RELEASE

by Subcontractor//Supplier

Owner: _____ **Requisition #** _____

Project: _____

Subcontractor: _____

For and in consideration of the payment of $ _____, which amount is represented as being currently due as detailed by the Requisition For Payment or Invoice(s) referenced below, the sufficiency of which is hereby acknowledged, the undersigned does hereby waive, release, and relinquish any and all rights, claims, demands, liens, claims for relief, causes of action and the like, whether arising at law, under a contract, in tort, in equity or otherwise, which the undersigned has now or may have had arising out of the performance of work or the furnishing of labor or materials by the undersigned through: _____ (date of requisition), the effective date of this Waiver And Lien Release, pursuant to Subcontract (or Purchase Order) No. _____ in connection with construction of : _____ ("the Project"). Use of the term "Navillus" shall deemed to mean and refer to Navillus Tile, Inc. d/b/a Navillus Contracting, and its agents, representatives, employees, directors, and all those acting on their behalf.

This Waiver and Lien Release applies to all facts, acts, events, circumstances, changes, constructive or actual delays, accelerations, extra work, disruptions, interferences and the like which have occurred, or may be claimed to have occurred, prior to the effective date hereof, excepting only any claims currently unresolved for which written notice has been provided to Navillus as follows:

_____

_____

Except as specifically described above, and excepting retainage, if any, held under the Subcontract/Purchase Order, the undersigned expressly waives all claims against Navillus and the Owner as hereinabove described. This Waiver and Lien Release is also intended to apply to and protect Navillus' payment and performance bond surety, if any, as well as anyone claiming by or through Navillus, the Owner, or the surety in connection with any claim, demand, lien, claim for relief, cause of action and the like waived, released and relinquished by the terms of this Waiver and Lien Release.

This Waiver and Lien Release is freely and voluntarily given and the undersigned acknowledges, warrants and represents that it has fully reviewed the terms and conditions of this Waiver and Lien Release, that it is fully informed with respect to the legal effect of this Waiver and Lien Release and that it has voluntarily chosen to accept the terms and conditions of this Waiver and Lien Release in return for the payment recited above.

The undersigned further represents that all employees, laborers, materialmen, vendors and subcontractors employed by the undersigned in connection with the Project and all bills currently due for labor, materials, supplies and taxes furnished by others to the undersigned in connection with construction of improvements upon the Project have been fully paid and that no obligations, legal, equitable or otherwise, are owed by the undersigned in connection with its work on the Project. With respect to the forgoing representations and warranties, the undersigned does hereby agree to indemnify and harmless Navillus, its payment and performance bond surety, if any, the Owner and any others against whom a claim is asserted by virtue of involvement or relationship with them, from any and all claims, damages, losses, expenses, and all the like incurred by reason of any claim that the undersigned has not fully paid for all labor, materials and expenses incurred in connection with its work on the Project, including reasonable attorneys' fees, court or arbitration costs, and expert witness and consultant fees in connection with the defense of any such claim.

The undersigned further agrees that the making and receipt of payment and execution of this Waiver and Lien Release shall in no way release the undersigned from its continuing obligations with respect to the completion of any work remaining undone, punchlist work, warranty and guaranty work, and any other obligations of the undesigned to Navillus and/or the Owner.

IN WITNESS WHEREOF, on behalf of the undersigned, with full authority, I have executed this instrument under seal effective this _____ day of _____
Day Month Year

Trade Contractor/Subcontractor/Supplier (SEAL)

Application for Payment No. or Invoice No.(s) _____

_____
Company Name

STATE OF _____ By: _____
COUNTY OF _____ Title: _____

Sworn to and subscribed before me this _____ day of _____
Day Month Year

_____
Notary Public
My commission expires: _____

LG07 (R)2/2000 MW97

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "E"
REQUISITION REQUIREMENTS

DEPARTMENT OF DESIGN & CONSTRUCTION SERVICES — **CERTIFICATION OF PAYROLL** — (See instructions on back)

OEM Command Center

NAME _____ CONTRACTOR ☐ SUBCONTRACTOR ☐ ADDRESS

PAYROLL NO.	FOR WEEK ENDING	PROJECT AND LOCATION	PROJECT NO.	CONTRACT NUMBER

EMPLOYEE'S NAME, ADDRESS AND SS#	SEE LEGEND (1a)	(1b)	LIST TRADE & CIRCLE WORK CLASSIFICATION (JOURNEYPERSON OR APPRENTICE CLASS 1, 2, 3)	TIME	DAY AND DATE S	M	T	W	T	F	S	TOTAL HOURS	RATE OF PAY PER HOUR	SUPPLEMENTAL BENEFITS RATE OF PAY	TO (CIRCLE)	TOTAL PAID	TOTAL BASE WAGES LES PREMIUM PORTION	PREMIUM PORTION O T. AND S.T.	GROSS PAY	TOTAL TAX AND OTHER DEDUCTIONS	NET PAY
			J A1 A2 A3+	RT											U E O						
				OT																	
				ST																	
			J A1 A2 A3+	RT											U E O						
				OT																	
				ST																	
			J A1 A2 A3+	RT											U E O						
				OT																	
				ST																	
			J A1 A2 A3+	RT											U E O						
				OT																	
				ST																	
			J A1 A2 A3+	RT											U E O						
				OT																	
				ST																	
			J A1 A2 A3+	RT											U E O						
				OT																	
				ST																	
			J A1 A2 A3+	RT											U E O						
				OT																	
				ST																	
LEGEND					**WEEKLY TOTALS OF ALL PAGES**																	

1a - ETHNICITY

01	Black
02a	Hispanic
03a	Asian-Pacific
03b	Asian-Indian
04	Native American
05	Other

1b - SEX

M	Male
F	Female

3 - TIME

RT	Regular Time
OT	Overtime
ST	Shift Time

S - SUPPLEMENTAL BENEFITS

U-	Indicate Union Local
E-	If Paid to Employee
O-	If Other

I, _____ hereby certify that the information in this form represents wages and supplemental benefits paid to all persons employed by my firm for construction work on the project named herein during the period shown and that all information provided on this form is complete and correct.

Officer's Signature _____ Date _____

Subscribed and sworn to me

this _____ day of _____ 19____

Notary Public

Commission Expires:

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "F"
UNIT PRICES

The following Unit Prices shall be used when required by the Contractor for payment, additions and/or deletions to the Work. Unit Prices shall be inclusive of all labor, materials, and other provisions indicated in Article I of the Subcontract.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "G"
SCHEDULE REQUIREMENTS

This Exhibit is intended to supplement Article III of the Subcontract in order to define, but not limit, additional requirements of the Subcontract regarding scheduling of the Work.

Subcontractor understands that principal time requirements of the Contract are to achieve a TCO Date of 10/20/2026, Substantial Completion by April 17th, 2027. and Final Completion by 08/15/2027

Subcontractor is obligated to prepare an Overall Project Schedule that complies the Contract. In order to comply with this obligation (and without prejudice to Contractor's rights to develop and modify the Overall Project Schedule as described herein and elsewhere in the Subcontract)

Contractor requires Subcontractor, and Subcontractor agrees, to comply with following schedule milestones:

1. Subcontractor shall timely complete all submittals within one (1) week of date of Subcontract. Subcontractor shall complete mobilization of all materials required for the Work, and be prepared to commence installation or delivery of the Work (if required by Contractor) within one (1) week or earlier of receipt of approved-as-noted submittals or Contractor's issuance of notice to commence mobilization.

2. Subcontractor shall commence the Work within one (1) week of Contractor's issuance of notice that site is ready to receive the Work. Subcontractor shall substantially complete the Work within April 17th 2027.

3. Subcontractor shall submit proposed schedule for the Work for Contractor's review within one (1) week of date of Subcontract. Subcontractor's schedule shall comply with the schedule milestones indicated herein. Subcontractor's schedule shall detail the logic and description of all items included in the Subcontract, including engineering, submittals, fabrication, long lead items, installation, inspections, critical milestones, testing, and punch list activities that are relevant to the Work. Subcontractor's schedule shall indicate duration, cost and on-site manpower required for each activity.

4. Subcontractor understands that Contractor is relying on detailed and accurate schedule information from Subcontractor in order for Contractor to prepare and update the Overall Project Schedule and coordinate work of other subcontractors. Subcontractor shall be responsible for any damages suffered by Contractor resulting from Subcontractor's failure to comply with this requirement.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "H"
SPECIAL CONDITIONS

This Exhibit is intended to supplement various Articles of the Subcontract in order to define, but not limit, additional requirements of the Subcontract regarding other contractors, site logistics, safety, submittals, punchlist and closeout, and NYCSCA Prequalification.

1. Subcontractor understands the requirements to meet or exceed the required MBE/WBE Goals required by this contract.
2. Subcontractor understands that all deliveries, unloading and removal of material, equipment, tools, etc. shall be made at the job site Deliveries, etc. must be done within the confines of barricades, fences, sidewalk bridges or other areas designated by the Contractor, and will not be permitted outside these limits. Subcontractor shall cooperate with the Contractor regarding deliveries, and take appropriate measures to mitigate access problems, traffic congestion and disruption of services to this facility or neighboring facilities Subcontractor understands that site logistics (e.g. specific layout of hoisting equipment, sidewalk bridges, scaffolding, delivery points etc), are subject to change. Subcontractor shall comply with all directions of Contractor with regard to site logistics.
3. Unless otherwise stated in Exhibit "B" Scope of Work, Subcontractor will provide all safety protection.
4. Subcontractor shall temporarily remove any protection (safety or other) that interferes with performance of any portion of the Work, and reinstate said protection immediately after the portion of the Work is completed.
5. To the extent not provided by Contractor, Subcontractor shall provide, maintain, relocate and replace all foot walks, barricades, lights, signals, planking and other protection of third parties from personal and property damage, as required by the governmental agencies having jurisdiction and the safety requirements of this agreement. This protection shall be maintained until final completion of the Work.
6. Subcontractor shall place and relocate his office trailers, shanties, stockpiling areas, storage facilities, equipment, tool boxes, etc. when and where directed by the Contractor.
7. Subcontractor shall exercise care to prevent any manner of fires. Subcontractor shall provide any and all "fire watch" personnel required due to Subcontractor's cutting, burning, welding, or other open flame activity, or as required for winter protection. Open fires are prohibited.
8. Items designated as "Add Alternates" in the contract documents shall be included in Subcontract (included in the Price), unless designated as an Exhibit "F" Alternate Prices. Only prices included in Exhibit "F" shall be considered Alternate Prices.
9. Subcontractor shall provide the quantities of samples, shop drawings, brochures, copies of calculations, etc. as indicated in the Specifications. If Specifications do not indicate any quantity, Subcontractor shall provide a minimum of three (3) samples and six (6) copies of documentation. Failure of Subcontractor to provide the quantities indicated shall result in immediate rejection of the submittal and/or backcharge for all costs incurred by Contractor to make up the deficient quantities.
10. In addition to the requirements of the Contract with respect to Record Drawings, the Subcontractor shall produce, and shall require that each of its sub-subcontractors produce, shop drawings by means of computer aided drafting (CAD) in Autocad 14 (*.dwg or *.dxf format on

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

CDs). Subcontractor shall provide Contractor with reproducible transparencies and black line prints of each such drawing in such quantity as shall be reasonably requested by the Owner or the Architect in each instance.

11. The term "punchlist" shall refer to the list prepared by Owner, or Owner's designated representative, of items that require corrective work in order to be considered to be in compliance with the Contract documents. Subcontractor shall diligently perform punchlist work, commencing the day after punchlist is issued and distributed by Contractor, and completing within fourteen (14) days thereafter. Subcontractor shall perform all punchlist items related to the Work, regardless of whether or not Subcontractor agrees with the validity of the item. Subcontractor understands that delaying punchlist work may cause extra cost and damages to Contractor that is greater than value of the Subcontractor's punchlist items. In event that Subcontractor fails to diligently perform punchlist as described herein, Subcontractor shall be held liable for costs that may result, including but not limited to costs of comeback work of other subcontractors, extended supervision costs for Contractor, punchlist "creep" that results from Contractor's extended presence on site and additional inspections by Architect or Owner's representative.
12. The term "closeout documentation" shall refer to the items identified in the contract documents to be provided as condition precedent to final payment. Subcontractor shall provide all closeout documentation within fourteen (14) days after Substantial Completion. Subcontractor understands that delaying closeout documentation may cause extra cost and damages to Contractor that is greater than value of the Subcontractor's closeout documentation items. In event that Subcontractor fails to diligently complete closeout documentation as described herein, Subcontractor shall be held liable for costs that may result, including but not limited to extended supervision costs for Contractor and additional fees by Architect or Owner's representative.
13. Contractor may issue lists identifying items related to the Work that must be completed or corrected from time to time or after substantial completion. Subcontractor understands that such lists are <u>not</u> considered to be the "punchlist" or closeout work list and are not necessarily comprehensive. Such lists are issued generally for purposes of assisting Contractor and subcontractors in managing the project, and are not to be construed in any way as limiting or pre-empting Subcontractor's responsibility to perform punchlist and closeout work.
14. Subcontractor certifies that it and all its subcontractors are currently PASSPort compliant, and will maintain PASSPort compliant status throughout the duration of the Subcontract. Should Subcontractor (or any of its subcontractors) fail to demonstrate PASSPort compliant status at any time for any reason, Subcontractor shall relinquish all claims for payment for work performed and relieves Contractor of all liabilities direct or indirect, real or actual or consequential for work performed by Subcontractor or any of its subcontractors.
15. Subcontractor shall submit NYCSCA <u>Request for Approval of Subcontractor</u> form within five (5) days of date of Subcontract.
16. Subcontractor's non-compliance with any of the foregoing shall be deemed a material breach of the Subcontract.
17. Subcontractor shall comply with Contractor's Safety Program.
18. All submittals that fall between Division 2-10 in Specification S01352 are required to be submitted with a full set of LEED data in compliance with the Owner's 'Green Schools'

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Initiative. The Subcontractor shall also be required to fill out a 'Sustainable Materials Form' and a 'Materials Tracking Form' to be submitted with every requisition. Should the Subcontractor fail to submit these forms and/or any other requirement under Specification S01352, the Contractor reserves the right to withhold payment from the Subcontractor until the issue has been resolved. Moreover, should the Subcontractor install a product and/or material on the project that does not have Green Schools approval and if it is subsequently determined that the installed product and/or material does not conform to Green Schools Standards, the Subcontractor will be solely responsible for any and all costs, directly and indirectly, for switching out the non-compliant product and/or material and replacing it with an approved Green Schools product and/or material. An approved submittal where the product and/or material did not have Green Schools approval shall in no way limit the Subcontractor's responsibility and obligations under this section.

19. Subcontractor understands all obligations of the Subcontractor under Local Law 96 of 2018 of the City of New York. Failure of the Subcontractor to adhere to the requirements of Local Law 96 shall be considered a material breach of this Subcontract.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "I"
EMPLOYMENT, LABOR and SUBCONTRACTING REQUIREMENTS

This Exhibit is intended to supplement Articles XIV, XV and XIX of the Subcontract in order to define, but not limit, additional requirements of the Subcontract regarding employment, labor and second tier subcontracting requirements.

Equal Employment Opportunity / No Discrimination

1. Subcontractor shall not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, age, national origin, citizenship, disability, marital, parental, or disabled Veteran or veteran of the Vietnam era status. Subcontractor will take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color religion, sex, sexual orientation, age, national origin, citizenship, disability, marital, parental, or disabled Veteran or veteran of the Vietnam era status. Such action shall include but shall not be limited to the following: recruitment, employment, job assignment, promotion, upgrading, layoff, demotion, transfer, termination, rates of pay or other forms of compensation, and selection for training or retraining, including apprenticeships and on-the-job training.
2. Subcontractor shall, in all solicitations or advertisements for employees placed by or on behalf of the Subcontractor, state that all qualified applicants will receive consideration for employment without regard to their race, color, religion, sex, sexual orientation, age, national origin, citizenship, disability, marital, parental, or disabled Veteran or veteran of the Vietnam era status.
3. Subcontractor shall send each labor union or representative of workers with which the Subcontractor has a collective bargaining agreement or other contract or understanding a notice of the non-discrimination and affirmative action provisions contained in this clause.
4. Subcontractor shall include the provisions of this clause in every subcontract or purchase order so that such provisions will be binding on each sub-subcontractor or vendor at each tier of construction.
5. Subcontractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the non-discrimination provisions contained in this clause.
6. Subcontractor shall permit access to Subcontractor's books, records and accounts by the Contractor, Owner and Owner's representatives for purposes of investigation to ascertain compliance with these equal opportunity/non-discrimination provisions.
7. Subcontractor's non-compliance with any of the foregoing shall be deemed a material breach of the Subcontract.

Employment and Labor Requirements of the Contract

1. Subcontractor shall follow all specific employment and labor requirements of the Contract;
2. Subcontractor shall furnish Contractor with written documentation of Subcontractor's performance versus the employment and labor requirements of the Contract on a monthly basis as condition precedent to receiving payment from Contractor.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

3. Subcontractor's non-compliance with any of the foregoing shall be deemed a material breach of the Subcontract.

Subcontracting Requirements of the Contract

1. Subcontractor understands that it is the intent of the Subcontract to require the Subcontractor to comply with the subcontracting requirements of the Contract for the award of all sub-subcontracts.
2. Subcontractor shall furnish Contractor with written documentation of Subcontractor's performance versus the subcontracting requirements of the Contract on a monthly basis as condition precedent to receiving payment from Contractor.
3. Subcontractor's non-compliance with any of the foregoing shall be deemed a material breach of the Subcontract.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "J"
SAFETY EXHIBIT

It is the intention of the Contractor to achieve our safety goals by providing a safe and healthy work environment for our employees, our subcontractors, our vendors, and our clients. Contractor will make every effort to protect the public from any negative impact associated with the all work on the Project. Contractor will not sacrifice the safety of people for the sake of production or monetary gains. Accordingly, Subcontractor agrees to assume this purpose and intent in performing its Work at the Project. The requirements identified in this Safety Exhibit are to be followed on all Navillus projects. Violations of any requirement in this Safety Exhibit are grounds for disciplinary action up to and including termination or removal from a project. It is the responsibility of any subcontractor who utilizes lower tier contractors to ensure lower tier contractor's compliance with the rules and the safety requirements of the project. Contractor reserves the right to issue warnings, citations and financial penalties for failure to comply.

Regulatory Compliance and Contractor's Safety Program

The "Navillus Safety Program" latest edition and any safety program of the Owner, are made part of the Contract and are supplementary to all government rules, codes and regulations and do not negate, abrogate, alter, or otherwise change any provisions of these rules, codes, and/or regulations. Nothing contained in the Navillus Safety Program or any safety program of the Owner shall relieve the Subcontractor of the sole and exclusive responsibility for safety in all phases of their work.

The Subcontractor is aware of the requirements of the Site Safety Plan and all safety personnel of the Contractor on site and shall fully cooperate with and comply with any direction provided by such safety personnel. Subcontractor will also comply with all requirements of the Owner's safety plan. The Subcontractor will conduct Project Safety Meetings with its own personnel on a regularly scheduled basis. The Subcontractor's foreman will be required to attend all Site Safety meetings. All of Subcontractor's personnel will be required to attend the Site Safety orientation conducted by the Contractor. All costs associated with the foregoing are included in the Contract Price. In addition to the above, the Subcontractor shall provide its own Safety Program.

Notwithstanding anything to contrary herein, the Navillus Safety Program, the Site Safety Plan, and all applicable regulations, all employees of the Subcontractor working on a Navillus project must possess a 40-hour SST card, at a minimum.

In the event of any conflict between this Exhibit and Navillus' Safety Program, Navillus' Safety Program will govern.

Tool Box Talk Meetings and Daily Safety Meetings

The Subcontractor will conduct Tool Box Talk Meetings ("TBTM") on a weekly basis and New Employee Safety Orientations as required for its own personnel. The Contractor, at its discretion, may attend any of the Subcontractor's TBTM. Subcontractor will document all TBTM with sign in sheets which will be subject to audit by the Contractor and maintained on site for duration of Subcontractor's presence on site.

Prior to the start of work a five-minute daily safety meeting will take place. The meeting will reiterate safety and the potential work hazard for the Subcontractor's work assignment for the day.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Subcontractor will document all daily safety meetings with sign in sheets, a copy of which will be sent to the Contractor daily and which will be subject to audit by the Contractor and maintained on site for duration of Subcontractor's presence on site.

Monthly Incident Summary Report

Each month Subcontractor shall submit a completed Subcontractor Monthly Incident Summary Report to the Contractor. This report will be attached to Subcontractor's monthly payment request. Monthly payment requests that are submitted without a completed Monthly Incident Summary Report will be returned to the Subcontractor. This data will be reviewed at the safety meetings to preplan and prevent on site incidents. The reporting form is provided at the end of this exhibit.

Injuries and Incidents

Subcontractor shall immediately notify Contractor of any injury, incident and near miss regardless of severity. Subcontractor must cooperate with all Contractor investigations resulting from any such incident. All material and equipment involved in the incident must be considered evidence, and is not to be distributed, removed or tampered with. Failure to report or providing late incident notice may result in a $10,000 violation. Subcontractor will provide a report to the Contractor with photographs and witness statements within twenty-four (24) hours of the incident. Personnel involved in any accident cannot leave the project site until a written statement is provided. If the incident requires off-site medical care, the worker must provide a return-to-work note completed by a certified medical professional. The return-to-work note must confirm any work restrictions, an approved return to work date and must be presented to the Contractor prior to resuming work. Failure to do so may result in project disciplinary action.

Subcontractor's Safety Representative

Prior to mobilization, Subcontractor will designate in writing to Contractor a competent person that shall serve as the Subcontractor's Project Safety Representative. This individual will be responsible and have the authority to ensure the Subcontractor's implementation, compliance with, and enforcement of all safety obligations on the Project. Contractor reserves the right to require the Subcontractor to replace its safety representative if Contractor in its discretion determines the individual is not qualified, is ineffective or is not fulfilling all applicable safety obligations. The Subcontractor's Project Safety Representative/Competent person must have a 62-hour SST card at a minimum.

Subcontractor's Equipment

All equipment provided by the Subcontractor shall be new or like new condition. It is the Subcontractor's responsibility to develop and implement a written preventative, maintenance, safety, and reconditioning program for all its equipment whether it is rented or owed. All diesel burning equipment shall comply with U.S. EPA tier III emission standards or any more stringent standard that may be operative on the site where work is being performed.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Subcontractor shall ensure that operators of all heavy equipment, including but not limited to cranes, loaders, hoisting devices, forklifts are qualified, trained and licensed as applicable. All motorized, powered, and electrical tools and equipment must be inspected prior to use. Operators of this equipment must be trained and authorized to use that specific piece of equipment. Forklifts must be operated and used as per the manufacturer's recommendations. Forklifts shall not be used as hoisting devices.

No work shall be conducted when in close proximity (potential to come within 15 feet) and/or under or above equipment (regardless of distance) including but not limited to cranes, hoists, aerial lifts, heavy equipment, energized equipment. When work in these areas must be completed, Subcontractor needs to give Contractor at least twenty-four (24) hours' notice.

Ladder Use

A limited ladder policy will be maintained on all Contractor's projects. Contractor's competent person must assess the use of other alternatives and safe means such as a scissor/aerial lift, scaffold and work platforms to safely complete the task at hand. If it's determined such equipment cannot be utilized, is infeasible, and/or will cause a greater hazard, a ladder may be used. 100% fall protection is required when working off a portable ladder at the perimeter of any building.

Subcontractor's Means and Methods

Subcontractor shall utilize means and methods during the execution of its work that shall not result in the creation of hazardous conditions which pose a threat of injury to others or risk of damage to property, including the property of the Owner, Contractor, and other subcontractors. Subcontractor shall continuously review and inspect its means and methods to ensure hazardous conditions are avoided. Subcontractor will advise Contractor immediately of any unsafe conditions resulting from any other subcontractor's work.

Minimum Working Apparel

All employees of the Subcontractor will at all times wear the necessary Personal Protective Equipment ("PPE") while on the Project Site as required by Navillus' Safety Program, Owner's safety requirements, and any requirements all applicable Federal, State, County, and Municipal authorities.

Housekeeping and Orderliness

Subcontractor agrees that all equipment, tools, materials and other apparatuses will be stored, stacked, placed, temporarily spotted to setup in such a manner as to maintain safe egress and a clean and orderly workplace.

Storage of any equipment, tools, materials and other apparatuses will not be allowed within 15'-0' from either an open perimeter of a building or interior floor opening. In no case will any equipment, tools, materials and other apparatuses be allowed to cantilever over the perimeter edge of any building.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Subcontractor will keep all work areas tidy and clean and will remove debris pursuant to the terms of the Subcontract Agreement.

Fall Protection and Protection Policy

Subcontractor shall comply with the Contractor's Fall Prevention and Protection Policy, which requires that no worker exposed to a fall hazard of six (6) feet or greater will work without one hundred percent (100%) fall protection. Subcontractor will take all practical measures to eliminate, prevent and control fall hazards of six (6) feet or more before resorting to a personal fall arrest system. When personal fall arrest is required, Subcontractor shall provide such proper equipment for this purpose and all necessary instruction and training in the care and use of the equipment, including refresher training. All training shall be documented and made available to Contractor upon request.

Violators of any of the Contractor's fall protection safety policies will be fined $10,000 and possible permanent removal from the Project.

Hazard Communication

Prior to mobilizing, Subcontractor will provide Contractor with a Project specific hazardous material inventory list and Material Safety Data Sheets ("MSDS") for each hazardous material Subcontractor or one its Sub-subcontractor will bring onto the Project Site.

Safety Fines

Failure to comply with any of the safety requirements of this Safety Exhibit and the Subcontract Agreement may result, at the discretion, of the Contractor, in the following amounts being deducted from the Contract Price for each specific non-compliance with a provision of the safety requirements.

- Non-Serious – Initial, isolated, or rare instances of violations, which do not result in danger to the employee, the property, or others, should be corrected through non-disciplinary discussion and instruction. Safety violations of a less serious nature will be handled as follows:

    1. First Offense – no monetary deduct. The safety orientation will constitute the warning.
    2. Second Offense - $500
    3. Third Offense - $1,000
    4. Further Offenses: $2,000 for each additional violation and possible discharge of the employee and/or subcontractor from the Project.

- Serious – One that could result in serious injury or loss of life or serious loss of property shall be subject to:

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

1. First Offense – Fine of up to $10,000 and possible suspension of the employee and/or subcontractor from the Project.
2. Second Offense – Fine of up to $25,000 and possible discharge of the employee and/or subcontractor from the Project.

Deductions shall be non-cumulative for violations of multiple provisions of the site safety program, Navillus' Safety Program and fines issued by government agencies.

Any damages to the Owner and/or the Contractor due to the failure of the Subcontractor or any of its workforce to comply with the safety requirements of this exhibit and the Subcontract Agreement will be deducted from the Contract Price.

Contractor reserves the right to stop all work if the Subcontractor is found to be working in an unsafe manner and/or in violation of OSHA or any jurisdictional laws. All costs related to the work stoppage will be borne by the Subcontractor.

Use of any Equipment and/or Safety Equipment Supplied by the Contractor

Subcontractor acknowledges that the use by the Subcontractor of any equipment provided by the Contractor, including but not limited to scaffolding, forklifts, heavy equipment, and fall protection ("Equipment") is at the sole risk of the Subcontractor. The Subcontractor accepts and voluntarily incurs all risks of any injuries, damage, or harm which arise during or result from the Subcontractor or any of its officers, directors, agents and employees using such Equipment. Subcontractor further acknowledges that Contractor is not the manufacturer of any of the Equipment and extends no warranties, express or implied of merchantability, fitness for a particular purpose, design, materials, or otherwise. The Subcontractor agrees that should the Subcontractor or any of its officers, directors, agents, and employees use any of the Equipment supplied by the Contractor, all of the safety procedures that Contractor has in place regarding the Equipment are to be adhered to and that any direction provided by the Contractor to the Subcontractor or any of its officers, directors, agents and employees regarding the Equipment will be followed without question. Subcontractor further agrees that the Subcontractor is responsible for all training on the use of the Equipment unless such training is explicitly provided by the Contractor. Contractor accepts no responsibility for any negligent acts or misuse of the Equipment by the Subcontractor or any of its officers, directors, agents, and employees.

Regulatory Inspections

If Contractor is fined by any regulatory inspection by a Federal, State, County, or Municipal agency or body as a result of any act or omission of Subcontractor or one of its Subcontractors, Contractor will deduct the amount thereof and associated costs from any payments due or that become due to the Subcontractor.

Disciplinary Action

Contractor may issue a written notice to individuals ho are observed violating the laws, ordinances, rules, regulations, codes, standards, orders and requirements noted herein. Should the Subcontractor

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

receive three (3) written notice violations within a one (1) year period, they may be removed from the Project. Individuals may be removed from the Project after one (1) written notice if Contractor determines in its discretion that the violation observed warrants such removal.

Prohibited Articles

In order that a safe and productive work environment can be provided, Subcontractor will prohibit the use, possession, control, sale, purchase, transportation, and distribution of the following on any Contractor projects:

- Illegal and illicit drugs including but not limited to marijuana, mood- and mind-altering substances, "look-alike" substances, designer and synthetic drugs, and certain inhalants and over-the-counter drugs
- Prescription drugs not prescribed by a physician
- Drug paraphernalia, equipment, and literature related to illegal drugs and substance use
- Alcohol products and beverages
- Weapons, firearms, ammunition, explosives, and fireworks

Illegal Acts

The theft, conversion, misappropriation, unauthorized removal, possession, or use of property or equipment belonging to Contractor, Owner, another Subcontractor, or other worker including but not limited to, materials, tools, documents, propriety information is strictly prohibited.

Searches

Subcontractor understands that Contractor may conduct reasonable unannounced searches of the Work and/or Project area and personal searches of workers and others on the Project, including but not limited to, personal effects, vehicles, lockers, gang boxes, clothing, meal containers, and baggage.

Penalties

Subcontractor agree that anyone found using, possessing, selling, distributing, transporting any prohibited article; has any traces of a prohibited drug, substance, or alcohol in his/her system; engaged in an illegal act; refuses to submit to a search of property or person; or refused, delayed, or altered a urine and/or blood analysis, or was uncooperative with testing personnel may be immediately removed from the Project and prohibited from working on another Contractor project.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "K"
OCIP MANUAL

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Marsh

New York City School Construction Authority (SCA)

Owner Controlled Insurance Program (OCIP) Manual

April 1, 2023 – April 1, 2026

Edition: June 2023



Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Contents

1. Introduction 1

2. Directory 3

3. Explanation of Terms 4

4. Overview of the Insurance Program 6

5. Contractor Responsibilities and Enrollment 12

6. Safety & Loss Control Program 14

7. Incident and Claims Reporting Procedures 15

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Section One

Introduction

The New York City School Construction Authority has elected to purchase and administer an Owner-Controlled Insurance Program ("OCIP") for the construction and renovation of educational facilities throughout New York City. An OCIP is a single insurance program that insures the project SPONSOR, ELIGIBLE and ENROLLED PARTIES, along with their eligible employees and other designated parties for WORK performed at a SITE. Certain parties and their employees are excluded from the OCIP as identified in this Manual.

This Manual provides general information regarding the insurance afforded and/or required of ELIGIBLE and ENROLLED PARTIES, claims reporting, safety and loss control requirements, and the procedures to be followed in administering the program. Terms in all capital letters are defined, as set forth in Section 3, *Explanation of Terms*, of this Manual. Any capitalized terms used, but not defined herein shall have the meanings assigned thereto in the General Conditions.

All CONTRACTORS/SUBCONTRACTORS performing WORK at a SITE and enrolled in the OCIP are subject to the provisions of the OCIP. The provisions for OCIP insurance shall in no way be interpreted as relieving any of the parties of any contractual responsibility. OCIP ELIGIBLE and ENROLLED PARTIES of all tiers may carry, at their own expense, such additional insurance as they may deem necessary to purchase.

Refer all questions concerning the OCIP requirements to the **OCIP Project Administrator**, as indicated in Section 2, *Directory*, of this Manual.

The SCA OCIP provides the following coverage for ELIGIBLE and ENROLLED PARTIES whose employees perform actual WORK at a SITE and participation in the OCIP is mandatory for all CONTRACTORS AND SUBCONTRACTORS of any tier unless excluded by SPONSOR or as outlined in this Manual.

- Workers' Compensation
- General Liability
- Excess Liability
- Builders Risk
- Contractors Pollution Liability
- Arts Installation Floater

Enrollment is not automatic and no WORK shall occur at a SITE until the CONTRACTORS/ SUBCONTRACTORS are properly enrolled in the OCIP.

SPONSOR will pay insurance premiums for the OCIP POLICIES described in this Manual. It is recommended that you inform your current insurers that you are participating in an OCIP.

The OCIP POLICIES apply only to WORK performed at the SITE by the ELIGIBLE and ENROLLED PARTIES. ELIGIBLE and ENROLLED PARTIES must provide their own insurance for automobile coverage (including loading and unloading coverage), and off-site activities including, but not limited to, work at their permanent shops, fabrication or manufacturing of building products, materials or supplies.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

The insurance required of ELIGIBLE and ENROLLED PARTIES and EXCLUDED PARTIES is set forth in full in the Insurance Addendum attached to the CONTRACT. Again, the provisions herein for the OCIP shall in no way be interpreted as relieving the parties of any responsibility under their CONTRACT.

This Manual:

- Describes the general structure of the OCIP;
- Identifies the responsibilities of the various parties involved in a PROJECT;
- Provides a basic description of OCIP coverage;
- Describes audit and administrative procedures;
- Provides an *Explanation of Terms* (see Section 3); and
- May be updated as deemed necessary by SPONSOR.

This Manual does not:

- Provide dynamic information about deductibles;
- Provide coverage interpretations;
- Provide complete information about coverage or policy language; or
- Provide answers to specific claim questions.

Refer questions concerning the OCIP POLICIES to the **OCIP Project Manager** or the **OCIP Project Administrator**, as indicated in the Section 2, *Directory*, of this Manual. Copies of OCIP POLICIES are available upon request to the **OCIP Project Manager**.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Section Two

Directory

OCIP ADMINISTRATION/INSURANCE BROKER **Marsh USA Inc.** 1166 Avenue of the Americas, 43rd Floor New York, NY 10036			
	Contact / Email	Telephone	Mobile
OCIP Project Administrator	Keith Tippman Keith.Tippman@marsh.com	212-345-0244	929-394-2572
OCIP Project Manager	Taylor Foss taylor.foss@marsh.com	212-345-1977	908-671-6882

SPONSOR **New York City School Construction Authority (SCA)** 30-30 Thomson Avenue, 4th Floor Long Island City, NY 11101		
	Contact / Email	Telephone
Risk Manager	Elizabeth Sullivan esullivan@nycsca.org	718-752-5321
Claims Manager	Shujana Dhar sdhar@nycsca.org	718-752-5303
Senior Attorney (Claims & Litigation)	Andrea Forman aforman@nycsca.org	718-752-5302
Chief Operating Officer	Robert Sanft rsanft@nycsca.org	718-472-8004
General Counsel	Nadine Rivellese nrivellese@nycsca.org	718-472-8220
Director of Operations Pre-Qualification Unit	Sarah Sinclair ssinclair@nycsca.org	718-472-8326
Director of Operations Safety Unit	Garvey Compas gcompas@nycsca.org	718-472-8416

INCIDENTS & CLAIMS HANDLING **Marsh USA Inc.**		
	Contact / Email	Telephone
INCIDENTS	noticeofaccident@nycsca.org	718-472-8778
CLAIMS REPORTING	Jasmati (Cindy) Shah jasmati.shah@marsh.com	718-752-5315
	Milda Sullivan milda.sullivan@marsh.com	347-647-0135
	Marcin Wojtanowski marcin.wojtanowski@marsh.com	718-752-5329

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Section Three

Explanation of Terms

Certificate of Insurance	Written evidence of the existence of coverages outlining the limits of liability, terms, and conditions of insurance policies.
Contract	A written agreement between the SCA and their Contractors and Construction Managers and any agreements entered into by the Contractors and Construction Managers with Subcontractors.
Contractor	A person, persons, firm, partnership, corporation, joint venture, business association, or any entity with whom the Contract is made by the SCA to perform the Work.
Eligible and Enrolled Parties	Contractors, Subcontractors, and Construction Management firms of all tiers that perform Work at Sites and that have been approved for participation in the OCIP by the SCA.
Insureds	New York City School Construction Authority (SCA) and Eligible and Enrolled Contractors and Subcontractors of all tiers (with limited exceptions) are enrolled in the OCIP.
OCIP	Owner Controlled Insurance Program
OCIP Administrator	Marsh USA Inc.
OCIP Ineligible Parties	Consultants, architects, engineers, surveyors, suppliers (who do not perform or subcontract installation), Construction Management firms, and other firms performing services rather than Work as well as delivery personnel, material handlers and/or vendors, and any other parties not approved by the SCA to participate in the OCIP.
OCIP Policies	Workers' Compensation and Employer's Liability, Commercial General Liability, Excess Liability, Builders Risk, and Contractors Pollution Liability Insurance available to eligible and enrolled Contractors, Subcontractors and Construction Management firms performing Work on SCA Sites.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Project	All of the Work required by the Contract, including all administrative aspects necessary to satisfy the Contract requirements.
Sites (or Project Locations)	The location or locations at which the Work is to be installed or erected, as indicated in the Contract documents.
Sponsor	The New York City School Construction Authority (SCA), its agents, officers, trustees, employees, representatives or designees, as the case may be.
Subcontractor	A person, persons, firm, partnership, corporation, joint venture, business association, or any entity under contract with the Contractor or any Subcontractor of any tier, to perform any portion of the Work.
Work	All activities of the Contractor and its Subcontractors required by the Contract. Work includes, but is not limited to, procurement of materials, construction of the Project, in whole or in part, and administration and coordination of subcontracts. The Work shall include not only Contractor’s obligations that are expressly set forth in the Contract, but also all that is reasonably inferable from the express description of the Work. The Work shall include the activities that Contractor itself performs as well as activities it delegates to eligible and enrolled parties.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Section Four

Overview of the Insurance Program

The New York City School Construction Authority (SCA) implements an Owner Controlled Insurance Program (OCIP) and agrees to pay all premiums associated with this program. CONTRACTORS/ SUBCONTRACTORS are required to assume certain deductibles, which are subject to modification at any time and without notice, as summarized in this Manual but as more fully outlined in the Policy.

While the OCIP provides broad coverage, it does not meet all the insurance needs of the CONTRACTORS/SUBCONTRACTORS. The OCIP does not provide coverage for pre-construction activities, Automobile Liability including loading or unloading coverage, Contractors' Equipment, Payment & Performance Bonds, or Disability Insurance. The OCIP also does not provide Workers' Compensation coverage for CONTRACTORS/SUBCONTRACTORS engaged to perform Environmental Work.

The OCIP coverages and exclusions summarized in this Manual are set forth in full in their respective insurance policy forms. The summary descriptions of the OCIP coverages in this Manual are not intended to be complete or to alter or amend any provision of the actual OCIP POLICIES. In the event that any provision of this Manual conflicts with the OCIP POLICIES, the provisions of the actual OCIP POLICIES shall govern.

A. Overview of Owner Provided Insurance

SPONSOR shall procure and maintain, at its own expense, the following insurance coverages for the interest of the ELIGIBLE and ENROLLED PARTIES:

1. Workers' Compensation and Employer's Liability

Workers' Compensation (Part A):	Statutory for New York
Employer's Liability (Part B):	$3,000,000
Each accident for Bodily Injury by accident	$3,000,000
Each employee for Bodily Injury by disease	$3,000,000
Policy limit for Bodily Injury by disease	$3,000,000

Noteworthy Coverage Extensions

- United States Longshore and Harbor Workers Compensation Act (USL&H)
- Blanket Waiver of Subrogation as required by written contract

Exclusions

- Per Statute
- As per Policy

The Workers' Compensation and Employer's Liability Insurance are in accordance with the laws of the State of New York in which the WORK will be performed. Employees covered by this insurance are those employees whose full-time duties will be performed at the SITE and other employees actually doing WORK in connection with the PROJECT while physically on the SITE. Coverage will cease for any employee when leaving this SITE.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

The Workers' Compensation coverage is not provided to any CONTRACTORS/ SUBCONTRACTORS performing Environmental Work.

This insurance will be primary with respect to persons directly engaged in performance of WORK at the SITE who are enrolled into the OCIP.

2. **Commercial General Liability Insurance**
A single policy will be issued for all INSUREDS and **limits are shared** by all INSUREDS for WORK performed at a SITE.

Limits of Liability

Each Occurrence	$10,000,000
General Aggregate (annual reinstatement)	$100,000,000
General Aggregate (per project)	$20,000,000
Products Completed Operations Aggregate	$10,000,000
Personal Injury/Advertising	$2,000,000
Damage to Rented Premises	$1,000,000
Medical Expense	$10,000
7 Years Completed Operations Extension Period	$10,000,000

Noteworthy Coverage Extensions

- Contractual Liability within 50 feet of railroad
- Blanket Additional Insureds as required by written contract
- Blanket Waiver of Subrogation as required by written contract

Exclusions

- As per Policy

3. **Excess Liability Insurance**
Excess Liability Insurance covering all INSUREDS jointly to bring the total maximum collective limits of liability (inclusive of primary limits stated above) to:

Each Occurrence	$200,000,000
General Aggregate	$200,000,000
Products and Completed Operations Aggregate	$200,000,000

A single policy will be issued for all ELIGIBLE and ENROLLED PARTIES, and limits are shared by all INSUREDS at this SITE.

4. **Contractors Pollution Liability**
Third-party coverage for bodily injury, property damage, cleanup, and related defense costs as a result of pollution conditions (sudden/accidental or gradual) arising from contracting operations performed by or on behalf of the contractor,

Each Loss	$25,000,000
General Aggregate	$25,000,000

Noteworthy Coverage Extensions

- Blanket Additional Insureds as required by written contract
- Blanket Waiver of Subrogation as required by written contract

Exclusions – as per policy

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

5. Builders Risk Insurance

All risk coverage provided on a replacement cost basis including coverage for risk of direct physical loss or damage to the work performed at the SITE, in transit or in temporary storage.

Structures – All Risk (for any one occurrence)	$100,000,000
Named Windstorm	$100,000,000
Earth Movement per occurrence and annual aggregate	$100,000,000
Flood per occurrence and annual aggregate	$25,000,000
High Hazard Flood (Level 1) per occurrence and annual aggregate	$10,000,000
Delay in Completion Coverage / Soft Costs	$2,500,000
Property in Transit	$2,500,000
Temporary Storage	$5,000,000
Deductibles:	
All Risk Deductible*	$100,000
Water Damage	$125,000
Named Windstorm Deductible*	$100,000
Earth Movement Deductible*	$100,000
Flood Deductible*	$250,000
High Hazard (Level 1) Flood Deductible – any one location*	$500,000
High Hazard (Level 1) Flood Ded. – max single occurrence*	$3,000,000
Delay in Completion Waiting Period (all perils except Flood)	10 Days
Flood Delay in Completion Waiting Period	20 Days

***All deductibles are subject to change at any point in time without additional notice.**

Noteworthy Coverage Extensions

- Blanket Additional Insureds as required by written contract
- Blanket Waiver of Subrogation as required by written contract

Exclusions

- As per Policy

Contractor Deductible Chargeback: To the extent allowable by law, and notwithstanding the foregoing, the Contractor or Subcontractor(s) shall be responsible for losses within the respective deductible of each and every insured property damage event under this insurance (or the amount of the loss, if less than the respective deductible) including cost of defense, such as court costs and attorneys' fees.

Contractor may choose to allocate responsibility between itself and the Subcontractor(s) to the extent permissible by law. The deductible chargeback applying to the Contractor and Subcontractor(s) is the responsibility of the Contractor and Subcontractor(s) and may be withheld from progress payments if not reimbursed.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

6. Art Installation Floater

All risk coverage provided for various works of art while being created in the artist's studio or workplace of the artist's subcontractor(s), during domestic transit or while being installed at various schools.

Any Work of Art	$2,200,000
Earth Movement per occurrence and annual aggregate	$2,200,000
Flood per occurrence and annual aggregate	$2,200,000
Transit	$250,000
Temporary Storage	$250,000
Deductibles:	
Policy Deductible	$5,000
Earth Movement & Flood	$5,000
High Hazard Flood	$25,000

Valuation

- Completed art works under commission will be valued at the contract price
- Art work in process will be based upon percentage of completion

Exclusions

- As per Policy

Contractor Deductible Chargeback: CONTRACTOR/SUBCONTRACTORS are responsible for losses within deductible.

B. Other Provisions of the Owner Provided Insurance

1. All policies specified in Section 4.A., *Overview of Owner Provided Insurance*, of this Manual, will contain a 30-day cancellation clause, except 10 days for non-payment or failure to meet the SPONSOR'S safety demands, and will apply on a primary basis regardless of any other insurance available to CONTRACTOR/SUBCONTRACTORS.

2. The above insurance will apply only to claims arising out of operations at the SITE and not at regularly established "away from SITE" offices, shops, warehouses, factories or similar locations unless otherwise noted under the Art Installation Floater and included by endorsement to the to the Builders' Risk covered locations.

3. Insurance coverage specified in Section 4.A. above terminates at the completion of the WORK by the CONTRACTOR/SUBCONTRACTOR, except for the General Liability Completed Operations Extension Period.

4. **Assignment:** In consideration of SPONSOR purchasing the OCIP insurance as stated above, the ENROLLED PARTIES will assign to SPONSOR all return premiums, premium refunds, dividends, and other monies due or to become due in connection with the insurance which SPONSOR provides under the OCIP, all of which will inure to the benefit of the OCIP. The ENROLLED PARTIES will execute such further documentation as may be required by SPONSOR to effect this assignment.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

5. **Waiver Of Subrogation Rights:** Except for the amount of the deductibles as stated elsewhere in this CONTRACT, the ELIGIBLE and ENROLLED PARTIES each on their own behalf and on behalf of anyone claiming by, through or under them, whether by way of subrogation or otherwise, hereby waive any and all subrogation rights which they may now or hereafter have against each other and the parent, related and affiliated companies, the successors and assigns of each other, in connection with the performance of the WORK to the extent such subrogation rights are not the result of any intentional wrongful act or omission of the party causing such loss and are covered losses under such insurance.
6. Each ELIGIBLE and ENROLLED PARTY will be named as an insured on the insurance described above. Upon receipt of a completed enrollment application, CERTIFICATES of INSURANCE for the Workers' Compensation and Employer's Liability, General Liability and Excess Liability (excluding Automobile Liability) policies will be issued to the ELIGIBLE and ENROLLED PARTY listing the ELIGIBLE and ENROLLED PARTY as additional named insureds. The insurer will also issue a Workers' Compensation policy in the name of each ELIGIBLE and ENROLLED PARTY.

C. Contractor/Subcontractor Provided Insurance

ELIGIBLE and ENROLLED PARTIES and OCIP INELIGIBLE PARTIES are required to maintain certain additional insurance coverages, as set forth herein in summary fashion and as the same may be described more fully in each party's respective CONTRACT or SUBCONTRACT. In the event of a conflict between the terms of this Manual and the terms of the CONTRACT or SUBCONTRACT, the terms of the CONTRACT or SUBCONTRACT govern.

ELIGIBLE and ENROLLED PARTIES must provide the following additional coverages for all operations not included in the OCIP, including, but not limited to, operations not performed on the SITE. OCIP INELIGIBLE PARTIES must provide the coverages outlined for all operations, both on and off the SITE.

1. Workers' Compensation and Employer's Liability

Contractors performing Environmental Work and OCIP INELIGIBLE PARTIES must provide evidence of on- and off-site coverage. All other Contractors must provide evidence of off-site coverage.

Worker's Compensation Insurance with limits as required by New York State statute (state in which the WORK takes place), and Employer's Liability Insurance with limits of at least:

- $1,000,000 bodily injury by accident;
- $1,000,000 bodily injury by disease; and
- $1,000,000 annual aggregate.

2. Business Automobile Liability

Business Automobile Liability Insurance covering all owned, non-owned and hired vehicles with limits of:

- $1,000,000 Bodily Injury/Property Damage Combined Single Limit
- Coverage must extend to include any loading and unloading activities of the CONTRACTOR/SUBCONTRACTOR at all SITES/PROJECT LOCATIONS
- If transporting hazardous materials/water, appropriate MCW-90 endorsement must but be attached to the policy and supplied to the SCA including a $5,000,000 limit of liability

3. Commercial General Liability (CGL)

Commercial General Liability Insurance provided on a current Insurance Services Office, Inc. "ISO" occurrence form, including coverage for liability due to bodily injury, property damage,

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

personal and advertising injury, and for the products-completed operations hazard. The limits of insurance shall not be less than:

- $1,000,000 per occurrence;
- $2,000,000 aggregate for products-completed operations; and
- $2,000,000 general aggregate.

The policy shall include the following:

- Coverage must be maintained three years following final completion of the PROJECT, or to the applicable statute of repose, whichever is less;
- No XCU exclusion;
- Independent Contractors;
- Contractual Liability;
- Delete contractual exclusion for work performed within 50 feet of railroad; and
- Additional Insured endorsements CG 20 33 and CG 20 37 or its equivalent on the primary and non-contributory basis.

All ELIGIBLE and ENROLLED PARTIES must submit CERTIFICATES of INSURANCE as required in sub-section C above.

Additional Insureds:

Except with regard to Professional Liability, and Workers' Compensation and Employer's Liability insurance, the following entities should be included as additional insured:

New York City School Construction Authority
30-30 Thomson Avenue, Long Island City, New York 11101

New York City Department of Education
52 Chambers Street, New York, New York 10007

The City of New York
100 Church Street, New York, New York 10007

Any additional entities as required by the New York City School Construction Authority

*****For example, when performing WORK at a privately owned SITE the owner/landlord of such SITE shall be named as an Additional Insured.

Such additional insured endorsement for Commercial General Liability coverage shall be equivalent to ISO form CG 20 10, together with ISO form CG 20 37. The additional insured requirement for Commercial General Liability is for the duration of the CONTRACT and an additional three (3) years following Substantial Completion of the WORK.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Section Five

Contractor Responsibilities and Enrollment

Responsibilities

The CONTRACTORS/SUBCONTRACTORS are required to cooperate with ALL parties involved in the administration and operation of the OCIP such as SCA personnel, OCIP Administrator, insurance companies, claims adjusters, defense attorneys, investigators, and auditors.

CONTRACTOR/SUBCONTRACTOR responsibilities shall include, but not be limited to:

- Completion of Enrollment at time of contract agreement or through submission of Request for Insurance form;
- Compliance with the SCA Safety Manual and OCIP Insurance Manual;
- Compliance with incident/claim reporting procedures as outlined in this manual;
  - Completion and submission of SCA Bodily Injury/Illness and/or Property Damage Reporting Forms;
  - Completion of a NYS Workers' Compensation Board, C-2F Employer's First Report of Work–Related Injury/Illness Form;
- Include this OCIP Manual as a CONTRACT document to all Subcontractors;
- Make certain that all Subcontractors meet the PROJECT insurance requirements as described in the CONTRACT before they start work;
- Cooperate with the OCIP Administrator's requests for information;
- Maintain accurate records of their operations at the SITE;
- Permit the SCA and its representatives to examine and/or audit their books and records; and
- Provide any additional information to the SCA or its appointed representatives as required.
  - Overland Solutions is the current audit firm performing annual audits for CONTRACTORS/SUBCONTRACTORS enrolled in the SCA OCIP Program. CONTRACTORS/SUBCONTRACTORS must provide payroll information upon request from Overland Solutions' representative.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Enrollment

CONTRACTORS/SUBCONTRACTORS shall adhere to and follow all enrollment and incident/claim reporting procedures as outlined in this Manual and per protocols outlined in the Subcontractor Approval Process on the SCA website.

Prior to commencement of WORK all General Contractors, Subcontractors and Construction Management firms providing oversight to Mentor Program Subcontractors performing WORK on SCA SITES must be enrolled in the OCIP. General contractors and WICKS Subcontractors enroll by submitting a Request for Insurance upon prime contractor receipt of a Notice of Intent to Award from the SCA. Subcontractors enroll via submission of a Subcontractor Approval Form (SAF) in the SCA Vendor Access System (VAS). Mentor Program Subcontractors enroll by working with Construction Management firms to submit a Request for Insurance form.

Questions about enrollment can be emailed to the OCIP Project Administrator. Guidelines for enrollment can be found on the SCA website at http://www.nycsca.org/Vendor/Insurance and http://www.nycsca.org/Vendor/Subcontractor.

OCIP Termination or Modification

The SCA reserves the right to terminate or modify the OCIP. Written notice will be provided thirty (30) days prior to such action. If the SCA terminates or modifies the OCIP, CONTRACTORS/ SUBCONTRACTORS shall obtain appropriate replacement insurance as required by the SCA and shall provide proof of such insurance prior to the termination or modification date.

Payroll and Audit Procedures

Insurance companies have the right to audit CONTRACTORS/SUBCONTRACTORS' records at any time during normal business hours. Insurance companies will report payroll and Workers' Compensation losses to the appropriate Rating Bureaus.

CONTRACTORS/SUBCONTRACTORS are required to:

- Maintain payroll information pertaining to SCA WORK for a period of no less than three (3) years after Substantial Completion of the WORK;
- Assign payroll to the proper Workers' Compensation classification. Records must show overtime pay and limit the payroll in accordance with the New York State Payroll Limitation Law; and
- Maintain payroll for SCA WORK separately from other operations.

Assignment of Premiums

The SCA will be responsible for the payment of all premiums associated with the OCIP and will be the sole recipient of any dividends and/or return premiums. CONTRACTORS agree to irrevocable assignment to, and for the benefit of the SCA, all return premiums, premium refunds, premium discounts, dividends, credits, and any other money due the SCA in connection with the OCIP.

CONTRACTORS further agree to require each SUBCONTRACTOR to execute the assignment for the benefit of the SCA.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Section Six

Safety & Loss Control Program

THE MISSION OF THE SCA SAFETY UNIT

EDUCATE SCA Personnel, General Contractors, and Subcontractors of current City, State, Federal and SCA mandated safety rules and regulations. Accident prevention will be an integral part of all Construction procedures.

ENFORCE all current applicable safety rules and regulations in a firm, fair and consistent manner.

PROVIDE optimal protection to the students, teachers, school personnel, and the general public during all new construction and renovation of NYC School Buildings. The SCA Safety Unit will seek to implement and maintain an effective and comprehensive safety program to prevent and/or reduce potential exposure to construction hazards and minimize accidents/incidents.

CONTRACTORS/SUBCONTRACTORS of all tiers are responsible to ensure the following:

- Obtain all permits and submit required safety plans to the SCA;
- Designate safety coordinators and representatives, competent persons, and emergency contacts;
- Comply with all City, State, and Federal safety laws and regulations;
- Comply with all policies and procedures outlined in the SCA Safety Manual;
- Cooperate with SCA Construction Management and Environmental and Regulatory Compliance Departments during pre-planning, inspections, audits, and accident investigations;
- Provide safety orientation for all new hires;
- Provide training and education to employees;
- Ensure all employees have documented proof of current and required safety training(s);
- Document and submit evidence of daily safety inspections and toolbox talk meetings;
- Provide approved and appropriate equipment for the PROJECT;
- Provide employees with all required personal protective equipment;
- Maintain PROJECT requirement safety documentation, communications, inspections and field employee sign-off in regards to compliance with the SCA safety program, as well as the Contractor’s health & safety program, job hazard analysis and work plans, where required;
- Maintain proper control of hazardous products (HazCom Program, Storage and Use);
- Recognize and control excessive noise levels;
- Locate all underground utilities before work begins; and
- Provide required documentation to the Construction Management organization or General Contractor on a regular basis; and make available upon request.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Section Seven

Incident and Claims Reporting Procedures

Incident Management and Reporting

All CONTRACTORS/SUBCONTRACTORS shall strictly adhere to specific guidelines for the reporting of all incidents involving their own employees and any damage to property at the SITE.

In the event of an incident/accident:

- Instruct their employees to immediately report all incidents to their company supervisor.
- **IF THE INCIDENT OR ACCIDENT IS AN EMERGENCY, IMMEDIATELY CALL 911.**
- If the incident involves an injury or illness, the supervisor, any designated safety personnel, and/or competent person should attend to the injured or ill individual(s) until Emergency Services arrives.
- **If 911 is called, immediately notify the Chief Project Officer. If the Chief is not available, immediately contact the Vice President for Construction Management.**
- Immediately following a 911 call and for all other incidents:
  - Contact the assigned Project Officer.
  - If the Project Officer is unavailable, contact the Senior Project Officer or the Chief Project Officer.
  - You **must** speak with someone working in SCA Construction Management.
  - Notify the Safety and Insurance divisions by sending an email to noticeofaccident@nycsca.org.
  - Secure incident area for safety.
  - Complete and submit the appropriate form(s) – SCA Bodily Injury/Illness Reporting Form and/or Property Damage Reporting Form.
  - Any work place injury also requires a completed C-2F Form.
  - Secure documentation for inspection and potential investigation.
  - Call the SCA insurance hotline Monday-Friday, between 8:30am-5pm with any questions - **(718) 472-8778**.
- Provide, upon request, any additional information regarding the incident and cooperate fully in all incident and claim-related investigations.

Any fines assessed for claims which are reported late are the responsibility of the CONTRACTOR or SUBCONTRACTOR who failed to timely report the claim.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Remember to report all bodily injury or illness and property damage incidents to noticeofaccident@nycsca.org.

The above is also detailed on the SCA Website: "Report an Incident"

http://www.nycsca.org/Vendor/Insurance#Report-an-Incident-Accident-346

Immediately report any lawsuits or legal paperwork received to Marsh & the SCA:

CLAIMS REPORTING	Jasmati (Cindy) Shah jasmati.shah@marsh.com	718-752-5315
	Marcin Wojtanowski marcin.wojtanowski@marsh.com	718-752-5329

This following section describes basic procedures for reporting various types of claims: Workers' Compensation, liability, and property damage and automobile accidents.

Workers' Compensation Claim Reporting

The employer of an injured party MUST complete and submit a NYS Workers' Compensation Board C-2F, Employer's First Report of Work-Related Injury/Illness form, and an SCA Bodily Injury/Illness Reporting Form within **24 hours** to noticeofaccident@nycsca.org.

CONTRACTORS/SUBCONTRACTORS must include the school name, borough, and SCA contract number. One copy of the C-2F must be retained by the employer and another copy must be provided to the SCA Project Officer and/or Construction Manager.

All subsequent return to work notes medical or any other information or correspondence related to the injured employee should be sent to the SCA **Claims Reporting team** (see Section 2, *Directory*).

The immediate reporting of all accidents or circumstances which might lead to or involve a claim is a requirement of the OCIP. Non-compliance could result in denial of an equitable disposition of the situation by the insurance carrier(s). **When in doubt, refer all questions regarding the reporting of a claim to the OCIP Project Administrator.**

*****Post injury response is critical for both the employee and the employer. Each injured employee must be attended to and subject to an orderly procedure from the time they are injured until they return to work.*****

***** NEVER WITHHOLD REPORTING AN INCIDENT *****

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

The following requirements (for specific circumstances) shall be adhered to by all ENROLLED PARTIES.

Investigation Assistance

All CONTRACTORS/SUBCONTRACTORS will assist in the investigation of any accident or incident involving injury/illness to persons or damage to property. All CONTRACTORS/ SUBCONTRACTORS will cooperate with SCA personnel, claims adjusters, defense attorneys and investigators by securing and giving evidence and obtaining the participation and attendance of witnesses required for the investigation and defense of any claim or suit.

Workers' Compensation Injuries/Illnesses - Prompt Medical Care

As mentioned above in the Incident Management and Reporting section, if the injury or illness is serious or life threatening, a designated competent person at the SITE must take charge and administer prompt medical care to the injured deciding the method of treatment, transportation and destination.

If the injury or illness is sufficiently grave or life threatening a designated competent person at the SITE must call or have someone call 911 to request Emergency Medical Services (EMS). The designated competent person at the SITE will assign a person to direct the EMS to the injured. EMS should administer medical care to the injured and provide transportation to the medical facility. Except in overriding danger to life of the injured person; do not move the injured or ill individual. Rescue and transportation should be attempted only by those trained in the evacuation of any injured person(s) at the site. Exceptional care must be exercised when rendering first aid or transporting the injured if:

- Unconscious or experiencing any form of seizure;
- Has sustained a head, neck, back or internal injuries;
- Show clear signs of broken bone(s); and/or
- Appears to have sustained a stroke or heart attack

If 911 is called, immediately notify the Chief Project Officer. If the Chief is not available, immediately contact the Vice President for Construction Management.

In the event of a non-serious injury, the employee's Supervisor should provide first aid, report the injury to the Project Officer, to noticeofaccident@nycsca.org and record the incident in the CONTRACTOR/ SUBCONTRACTOR First Aid Log. If the employee's Supervisor is unable to attend to the injured employee's needs, the injured employee should be escorted to the Project Officer or Construction Management firm in charge of the SITE.

General Liability Claim Reporting

Personal injury/illness or property damage sustained by a third party constitutes a reportable event. For all such incidents, all CONTRACTORS/SUBCONTRACTORS are required to notify the Project Officer, Senior Project Officer or Chief Project Officer and submit an injury/illness or a property damage reporting form (depending on the incident), and forward it to noticeofaccident@nycsca.org.

As mentioned above, if 911 is called, for serious injury/illness OR significant damage to property, immediately notify the Chief Project Officer. If the Chief is not available, immediately contact the Vice President for Construction Management.

Coverage will respond to any bodily injury or property damage claim for which SPONSOR, its agents, contractors or subcontractors are held legally liable to pay, and for associated defense costs incurred.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

NOTE: All available facts and information, including the names of witnesses, must be secured as soon as possible while such information remains available. Unless prompt action is taken in this respect, witnesses disappear, facts become obscure and the further handling of the claim may be prejudiced.

Automobile Incident and Claim Reporting

No coverage is provided for automobile accidents under the OCIP, including loading or unloading. It is the sole responsibility of each CONTRACTOR/SUBCONTRACTOR to report accidents involving their automobiles to their own insurers.

However, all auto-related accidents occurring in or around the SITE must be reported to noticeofaccident@nycsca.org. These accidents will be investigated with regard to any liability arising out of the SITE construction activities that could result in future claims (e.g., due to the conditions of the roads). Each CONTRACTOR/SUBCONTRACTOR shall cooperate in the investigation of all automobile accidents.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Incident Forms & Guidelines for Claim Related Occurrences

Description	Supplemental Document *(double click on paperclip to open document)*
Incident Response & Accident Investigation Guidelines	SCA OCIP - Incident Response and Investigation Guidelines.pdf (windows.net)
SCA Bodily Injury-Illness Reporting Form	Injury-Illness Reporting Form.pdf (windows.net)
Property Damage Reporting Form	Property Damage Reporting Form.pdf (windows.net)
First Script First Fill GB (pharmacy prescription)	
GB Pharmacy List – English version	
GB Pharmacy List – Spanish version	
GB Pharmacy List – Polish version	

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D



This document and any recommendations, analysis, or advice provided by Marsh (collectively, the “Marsh Analysis”) are intended solely for the entity identified as the recipient herein (“you”). This document contains proprietary, confidential information of Marsh and may not be shared with any third party, including other insurance producers, without Marsh’s prior written consent. Any statements concerning actuarial, tax, accounting, or legal matters are based solely on our experience as insurance brokers and risk consultants and are not to be relied upon as actuarial, accounting, tax, or legal advice, for which you should consult your own professional advisors. Any modeling, analytics, or projections are subject to inherent uncertainty, and the Marsh Analysis could be materially affected if any underlying assumptions, conditions, information, or factors are inaccurate or incomplete or should change. The information contained herein is based on sources we believe reliable, but we make no representation or warranty as to its accuracy. Marsh shall have no obligation to update the Marsh Analysis and shall have no liability to you or any other party with regard to the Marsh Analysis or to any services provided by a third party to you or Marsh. Marsh makes no representation or warranty concerning the application of policy wordings or the financial condition or solvency of insurers or reinsurers. Marsh makes no assurances regarding the availability, cost, or terms of insurance coverage. All decisions regarding the amount, type or terms of coverage shall be your ultimate responsibility. While Marsh may provide advice and recommendations, you must decide on the specific coverage that is appropriate for your particular circumstances and financial position. By accepting this report, you acknowledge and agree to the terms, conditions, and disclaimers set forth above.

Copyright © 2021 Marsh LLC. All rights reserved.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

EXHIBIT "L"
NAVILLUS' CODE OF ETHICS AND STANDARDS OF BUSINESS CONDUCT

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

CODE OF ETHICS AND STANDARDS OF BUSINESS CONDUCT

NAVILLUS TILE, INC.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Table of Contents

Introduction 3

General Policy Regarding Laws and Business Conduct 6

Standards of Conduct 7

- Equal Employment Opportunity 8
- Harassment 9
- Sexual Harassment 11
- Promoting Diversity and Inclusion 12
- Health, Safety, and the Environment 12
- Drugs and Alcohol 14
- Use of Company Resources 15
- Use and Disclosure of Confidential/Proprietary Information 16
- Conflicts of Interest 17
- Outside Activities 20
  - Outside Employment 20
  - Memberships 21
  - Political Contributions and Activities 21
- Compliance with Laws, Rules and Regulations Regarding Wages and Benefits 24
- Dealing with Subcontractors and Suppliers 25
- M/W/DBE Programs 25
- Accurate Public Disclosures 26
- Corporate Recordkeeping 26

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Internal Accounting Controls, Procedures, and Records.....27

No Payments, Gifts, or Entertainment of Government and/or Union Officials.....29

Entertainment and Gifts to Private-Sector Clients and Prospective Clients.....30

Gifts.....31

Improper or Illegal Payments.....32

Fair Competition.....33

Causes for Termination or Disciplinary Action.....35

Reporting Requirements.....36

Exceptions.....40

Appendix A-1.....41

Code of Ethics and Standards of Conduct Acknowledgement and Certification.....42

Appendix A-2..... **Error! Bookmark not defined.**

Sexual Harassment Policy.....43

APPENDIX A-3.....62

Conflicts of Interest Disclosure.....63

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Introduction

This Code of Ethics and Standards of Business Conduct (the "Code") summarizes our expectations for how the directors, officers, employees, and agents of Navillus Tile, Inc., d/b/a Navillus Contracting ("Navillus" and/or the "Company") will conduct business. This Code is intended to promote the ethical conduct of all Company business and to deter and prevent wrongdoing.

- Ethical conduct and compliance with all applicable laws and regulations in conducting our business makes good business sense. Doing so garners goodwill, and maintains the trust and confidence of customers, including public agencies, regulators, and other key stakeholders.

- Beyond mere compliance with the law, all owners, principals, directors, officers, employees, affiliates and agents of Company are expected to conduct business with honesty and integrity in every aspect of dealing with others (including owners, principals, employees, subcontractors, affiliates and agents of Company, as well as the public, the business community, customers, suppliers and governmental and regulatory authorities.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

- Although the Code cannot address each of the numerous ethical and legal issues that may arise, it is intended to serve as a source of guiding principles. If you have any question or doubt about whether your past or intended activities violate this Code, you must bring those questions to the attention of Navillus' General Counsel before continuing or further pursuing those actions. When possible, Company should obtain copies of its clients' codes of conduct to insure consistency with external expectations. The Code will be monitored as appropriate.

- All officers, directors and employees of Navillus and its affiliates and agents are required to follow the Code at all times. In addition, officers, directors and employees of the Company are required to provide annually a statement in writing (see Appendix A-1) stating that they have read and understand the Code, that they agree to comply with the principles set forth in the Code, and that they understand that violations of the Code may result in immediate disciplinary action, up to and including termination from employment.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

General Policy Regarding Laws and Business Conduct

Navillus expects and requires that all owners, principals, directors, officers, employees, and agents comply with both the letter and spirit of all laws, rules, and regulations applicable to the business. You are expected to use sound judgment and common sense to comply with all applicable laws, rules, and regulations, including all federal and state trade secret and securities laws.

If you become aware of the violation of any law, rule, or regulation by the Company, whether by its officers, employees, directors, or any third-party doing business on behalf of the Company, it is your responsibility to promptly report the matter immediately. The identity of anyone who reports such a suspected violation in good faith will be kept confidential to the greatest extent practicable. Retaliation for making such a report is strictly prohibited.

In addition, the Company expects and requires that its owners, principals, employees, agents, subcontractors, and vendors will strictly adhere to this general policy, and to all of the specific policies set forth in the Code, during performance of their duties on behalf of Company. Those who do not will be subject to dismissal or other disciplinary action.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

All owners, principals, managerial, supervisory, and office-based employees are required to attend an annual training regarding this Code.

Standards of Conduct

All owners, principals, directors, officers, employees and agents of Navillus are expected to act in accordance with the Code in all of their internal and external business dealings and to avoid improprieties and circumstances that conflict with the Company's policies as well as any acts against public safety and security. Employees should strive at all times to avoid even the appearance of impropriety in the discharge of their duties.

Anti- Bribery, Extortion, and Corruption

Navillus' policy is to conduct all of our business in an honest and ethical manner. We take a zero-tolerance approach to bribery, extortion, and corruption and are committed to acting professionally, fairly and with integrity in all our business dealings and relationships wherever we operate and implementing and enforcing effective systems to counter bribery.

Navillus will uphold all laws relevant to countering bribery, extortion and corruption and remain bound by all federal, state, and local laws.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Equal Employment Opportunity

It is the policy of Navillus to ensure equal employment opportunity in recruitment, hiring, compensation, benefits, promotion, leave of absence, termination and all other terms and conditions of employment to all employees without discrimination or harassment on the basis of race, color, religion, sex, gender, age, national origin, creed, disability, pregnancy, sexual orientation, gender identity or expression, marital or civil partnership/union status, union memberships or affiliations, familial status, genetic information, predisposition or carrier status, military or veteran status, domestic violence victim status, arrest or conviction record to extent required by applicable law, alienage or citizenship status, unemployment status, sexual violence or stalking victim status, caregiver status, credit history, or any other characteristic protected by law.

All applicants and employees are entitled to be free from discrimination because of such individual's legally protected status or because of such applicant's or employee's relationship or association with an individual in a legally protected group, and Navillus strictly prohibits such discrimination. Navillus expects all employees to share in its commitment to equal employment opportunity and will not tolerate any acts of unlawful discrimination in the workplace.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Harassment

Navillus considers harassment in all forms to be a serious offense and strives to keep its workplace free from all forms of harassment.

The following are examples of conduct that might be considered harassment; however, it is not designed or intended to limit the Company's authority to discipline or take remedial action for workplace conduct deemed unacceptable, regardless of whether that conduct is found to be discriminatory or harassing:

- ethnic slurs;
- racist or sexually offensive jokes;
- pornographic e-mail;
- unwelcome touching;
- display of offensive pictures;
- epithets, slurs or negative stereotyping;
- threatening, intimidating or hostile acts;
- denigrating jokes and display or circulation in the workplace of written or graphic material that denigrates or shows hostility or aversion toward an individual or group (including through posting on walls, email, text message, instant

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

messenger, social media, or other electronic communication); or

- any other verbal or physical conduct that has the purpose or effect of creating an intimidating, hostile, or offensive work environment.

Harassment on the basis of any other protected characteristic is also strictly prohibited. Under this policy, harassment is verbal or physical conduct that denigrates or shows hostility or aversion toward an individual because of his/her race, color, religion, age, national origin, creed, disability, pregnancy, marital or civil partnership/union status, familial status, genetic information, predisposition or carrier status, military or veteran status, domestic violence victim status, arrest or conviction record to extent required by applicable law, alienage or citizenship status, unemployment status, sexual violence or stalking victim status, caregiver status, credit history, or any other characteristic protected by law or that of his/her relatives, friends or associates, and

that: (i) has the purpose or effect of creating an intimidating, hostile or offensive work environment; (ii) has the purpose or effect of unreasonably interfering with an individual's work performance; or (iii) otherwise adversely affects an individual's employment opportunities.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Navillus recognizes that employees come from a wide variety of backgrounds and with a wide range of personal values and behavioral preferences. Therefore, Navillus prohibits harassment of any kind, regardless of an employee's level of seniority, length of employment at Navillus, or value in other respects to Navillus, regardless of whether the person engaging in the conduct intends any harm by this behavior, and regardless of whether the behavior is or was considered acceptable in other workplaces, cultures, or settings in which the person engaging in the behavior has lived or worked.

Sexual Harassment

Sexual harassment is a form of sex discrimination that violates the Company's Code and is unlawful under federal and state statutes. Sexual harassment includes unwelcome sexual advances, requests for sexual favors, and all other verbal or physical conduct of a sexual nature when:

i. Submission to such conduct is made, either explicitly or implicitly, a term or condition of an individual's employment or academic status;

ii. Submission to, or rejection of, such conduct by an individual is used as a basis for employment or academic decisions affecting such individual;

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

iii. Such conduct has the purpose or effect of unreasonably interfering with an individual's work or academic performance or creating an intimidating, hostile or offensive environment in which to work or learn.

A copy of Navillus' full Sexual Harassment Policy is attached as Appendix A-2.

Promoting Diversity and Inclusion

Navillus values and promotes diversity and inclusion in its workplace. Diversity refers not only to race and gender, but also to an array of human differences, including culture, socio-economic background, experience, background and perspective that exist in the workforce and the wider community.

Health, Safety, and the Environment

Navillus considers its most important resource to be its workforce – in particular, our skilled laborers at each of our construction sites. For this reason, Navillus has developed a comprehensive safety program to protect its workers from on-the-job hazards and to ensure their well-being at all times which of all Navillus' owners, principals, directors, officers, employees and agents are expected to adhere to at all times. A copy of Navillus' Safety Program can be obtained from any member of the Navillus field team.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Navillus believes that it is vitally important to protect the health and safety of its owners, principals, employees and agents and all others directly affected by Company's business activities, as well as the public at large. The Company also believes that it is crucial to conduct its business operations in a manner that protects the environment. Navillus complies with all applicable laws and relevant industry standards of practice concerning environmental protection and protection of safety and health in the workplace. Keeping abreast of changes in OSHA regulations, local regulations, and executive orders is also important. Information regarding changes in the law or its interpretation will be distributed as it becomes available. OSHA publications, safety posters, safety literature or any other safety-related items will also be made available by Navillus' leadership.

To assure these goals are met, each owner, principal, employee and agent of the Company has the obligation to conduct his or her duties and responsibilities in a manner that is compatible with ensuring health, safety and protection of the environment. The Company and its owners, principals, employees and agents are committed to working with each other and the contractors, suppliers, customers, and the communities in which they operate in order to achieve these goals and to carry out these policies.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Drugs and Alcohol

Employees are prohibited from reporting to work under the influence of alcohol or drugs, other than prescription drugs. If the employee is taking prescription drugs, the employee may be required to present to Navillus a statement from the prescribing physician that the prescription drug will not impair the employee's work performance.

Navillus may ask an employee to submit to a drug and/or alcohol test at any time that based on reasonable cause it feels that the employee may be under the influence of drugs or alcohol, including, but not limited to, the following circumstances: evidence of drugs or alcohol on or about the employee's person or in the employee's vicinity or unusual conduct on the employee's part that suggests impairment or influence of drugs or alcohol.

In the interest of the safety and health of its employees, Navillus reserves the right to inspect and search, at random, unannounced times, all packages, boxes, clothing or any personal belongings carried on or off company property.

Navillus strictly prohibits the use, possession and/or sale of illegal drugs, drug paraphernalia or unsanctioned use of alcohol by all employees, including employees driving company vehicles and employees on any construction site where the company is performing work. Navillus will

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

cooperate fully with public authorities in the prosecution of anyone in violation of said prohibition. Information concerning drug and/or alcohol test results and information concerning violations of this policy will be treated as confidential information. Such information will be released only to management representatives who have a need to know. This information will also be provided to any federal and/or state agencies where required by law or regulation.

Use of Company Resources

Navillus resources, including time, material, equipment and information, are provided for company business use. Nonetheless, occasional personal use is permissible as long as it does not affect job performance or cause a disruption to the workplace. Employees and those who represent Navillus are trusted to behave responsibly and use good judgment to conserve company resources. Managers are responsible for the resources assigned to their departments and are empowered to resolve issues concerning their proper use.

- Generally, company equipment such as computers, copiers and fax machines will not be used in the conduct of an outside business or in support of any religious, political or other outside daily activity.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

- Solicitation of Company employees by non-employees is prohibited at all times.

- Solicitation by an employee of another employee is prohibited, while either the person doing the soliciting or the person be solicited is on working time and or Company property.

- Distribution of materials by employees in work areas or on working time is prohibited.

- In order to protect the interests of Navillus and all of Navillus' employees, Navillus reserves the right to monitor or review all data and information contained on an employee's company-issued computer or electronic device, the use of the Internet. We will not tolerate the use of company resources to create, access, store, print, solicit or send any materials that are harassing, threatening, abusive, sexually explicit or otherwise offensive or inappropriate.

Use and Disclosure of Confidential/Proprietary Information

In the course of their work, the owners, principals, directors, officers, employees and agents of Navillus may learn confidential and proprietary information about such matters as government agencies, how Navillus conducts business and how Navillus markets its services.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Those individuals may learn confidential and proprietary information about Navillus' customers including government agencies, subcontractors and suppliers. The protection of the secrecy of this information is extremely important to maintain the continued confidence of those with whom we do business. Unauthorized disclosure of confidential or proprietary information could cause economic harm to Navillus and damage to Navillus' reputation for integrity.

No owner, principal, director, officer, employee or agent of Navillus who becomes aware of confidential or proprietary information of Navillus shall disclose that information to anyone who is not an owner, principal, director, officer, employee or agent of Navillus without written authorization to do so from an owner or officer. This prohibition applies to owners, principals, directors, officers, employees and agents of Company both during and after the time of their employment by or association with Company.

Conflicts of Interest

Navillus is committed to avoiding conflicts of interest and maintaining its client interactions in a fully transparent manner. Accordingly, Navillus shall inform its clients of any apparent conflict of interest, including if an employee or agent of the client has an interest in, or any kind of economic ties with Navillus.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Any Navillus employee must avoid situations where his or her personal interest could conflict with the interests of the Company or lead to his or her responsibilities to the Company being compromised. When a potential conflict of interest exists, or appears to exist, it must be properly disclosed in writing within 10 days and an appropriate determination shall be made, in writing, by the Company's compliance officer in a reasonable time thereafter. Upon an appropriate determination by the compliance officer that a conflict of interest or a potential conflict of interest exists, the employee's interest or connection must be terminated.

Although it is not possible to describe every situation that may lead to a conflict of interest, employees should, at a minimum, observe each of the following basic rules:

i. All Navillus employees must avoid having any outside financial interests that might influence his or her judgment, actions or corporate decisions in the discharge of his or her Company duties;

ii. No employee, his or her spouse, dependents, or member of his or her household may have, directly or indirectly, a personal or financial interest in any transaction which may have an adverse effect on Navillus;

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

iii. All employees who are in a position to influence business decisions on vendors, suppliers or subconsultants and business development efforts on behalf of Navillus must disclose to HR, in writing, if an employee, his or her spouse, dependents, or members of the household has, directly or indirectly, a financial interest in, any business enterprise with which Navillus has business dealings, or with any business that is owned or controlled by any company or principal of any company with which Navillus does business. (A financial interest in this sense does not include ownership of less than 5% of the stock of a publicly-traded corporation);

iv. All employees who are in a position to influence business decisions on vendors, suppliers or subconsultants and business development efforts on behalf of Navillus must disclose to HR, in writing, if his or her spouse, dependents, or members of the household is/are employed in a position to influence business decisions of any business enterprise with which Navillus has any business dealings;

v. Unless properly authorized, employees shall not give or release outside Navillus any data or information of a confidential nature concerning Navillus, its operations, or its clients;

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

vi. No employee shall induce, or attempt to induce, any government employee, or employee of a private firm, to engage in conduct that would constitute a conflict of interest.

Outside Activities

The Company employees must at all times conduct themselves in a manner which represents Company in a positive and ethical manner and that does not adversely affect their job performance.

Outside Employment

All outside employment must be disclosed on the Conflicts of Interest Disclosure Form included as Appendix A-3 before engaging in either full-time or part-time outside employment. Any outside employment shall be evaluated by the compliance officer to determine if a conflict of interest exists and such determination shall be provided to the employee in writing.

Employees cannot engage in outside employment with, any competitor of the Company at any time during the period of their employment with the Company or be employed by, including serving as an advisor or consultant, any company which has, or seeks, a business relationship with the Company. Company employees shall cease any outside employment to which the Company objects.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Memberships

Navillus strives to be a good civic neighbor. The Company supports employee involvement in community activities and professional organizations. Pursued in a responsible manner, these interests may be beneficial to the employee, the Company and the community. However, before getting involved in these activities the employee must evaluate carefully whether these activities may create, or appear to create, a conflict of interest and, if it does, he or she should abstain.

Political Contributions and Activities

i. Navillus employees are required to comply with all laws, including campaign finance laws, regarding contributing to political campaigns or political parties.

ii. Navillus employees may participate in political activities but only strictly within their individual capacities.

iii. Navillus employees are not permitted to make any political contributions in the name of, or on behalf of, the Company and are prohibited from using Company funds, facilities, or assets for political activities.

iv. Navillus employees may not solicit participation from, exert pressure on, or offer any inducement to other Company

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

employees to participate in political activities or make any political contribution.

v. No employee is obligated to make political contributions to any candidate. If an employee chooses to make a political contribution, you will not be reimbursed by Navillus or any other party or entity associated with the Company. An employee's decision to participate in political activity or contribute to a candidate is solely the employee's and the employee will not be subject to any adverse action or rewarded in any way by the decision.

vi. Navillus employees shall not, either directly or indirectly, use their participation in political activities or their making of political contributions as a means to obtain for the Company any governmental contract or to obtain any benefit on such a contract.

vii. The Company's political contributions, to the extent allowable by law, shall only be made upon authorization of the President and CEO of Navillus in accordance with Company policies.

viii. Navillus shall not host political fundraising events.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

ix. Employees should be aware that certain federal, state and local governments have strict "pay-to-play" laws. Those laws restrict or prohibit businesses, as well as their owners, officers, and in some cases, their employees as well as spouses and other family members of a firm's principals, from making political contributions if they have been awarded or are trying to obtain government contracts. Violating these laws could result in Company having bids disqualified and contracts voided, as well as fines and other negative actions. Before making political contributions, employees are strongly encouraged to determine if their planned contributions would be subject to, or violate "pay-to-play" laws. Any questions regarding whether contributions would be subject to or violate "pay to play" laws should be raised with Company's General Counsel. If contributions by an employee are covered by "pay-to-play" laws, that employee must pre-clear all such contributions with Company's compliance officer before they are made. Employees who violate "pay-to-play" laws, or who fail to pre-clear covered contributions, risk

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

disciplinary action up to and including termination.

Compliance with Laws, Rules and Regulations Regarding Wages and Benefits

Navillus has entered into, and may in the future enter into, agreements with trade associations, trade unions and project labor agreements with local governments, regarding the payment of certain wage rates for specified work that Navillus may engage in. In addition to these agreements, Navillus may be bound by certain Federal, State and Local wage laws depending on the nature of the work.

Navillus commits to properly classifying the type of work and wage rate that applies in each instance. Navillus further commits to track and accurately monitor each employees time, to report this time as required by law or agreement, and to pay each Navillus employee the proper wage rate, and remit benefit payments to the particular trade as required by agreement. For each pay period, workers shall be provided with a timely and understandable wage statement that includes sufficient information to verify accurate compensation for work performed.

Any questions regarding the proper classification of work or wage rate should be addressed to Navillus' Compliance Officer. Navillus shall not charge employees

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

recruitment fees or knowingly hiring employees through an agency that charges such fees. Such actions are strictly prohibited.

Dealing with Subcontractors and Suppliers

Materials, supplies, and services shall be purchased from qualified, competent and responsible sources. Such purchases shall be made on a competitive basis and in accordance with sound business practices. Objectivity, impartiality and fairness are required in the selection of each subcontractor and supplier. Navillus shall establish and maintain honest and straightforward relationships with their subcontractors and suppliers. Unless it is not feasible due to the requirements, schedule or size of the engagement, competitive pricing is required.

M/W/DBE Programs

Navillus is committed to full compliance with all Minority Business Enterprise ("MBE"), Women's Business Enterprise ("WBE") and Disadvantaged Business Enterprise ("DBE") government-regulated opportunity programs pertaining to public construction and private projects as required. On all public construction projects where there are M/W/DBE goals applicable to Company, all of its MBE, WBE and/or DBE subconsultants must be properly certified, have their own personnel, and comply with all other requirements. On public construction projects, Navillus Project Managers shall monitor and

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

certify compliance with these conditions, when applicable.

Accurate Public Disclosures

Navillus will make certain that all disclosures made in financial reports are full, fair, accurate, timely, and understandable. This obligation applies to all employees, including all financial executives, with any responsibility for the preparation for such reports, including drafting, reviewing, and signing or certifying the information contained therein. No business goal of any kind is ever an excuse for misrepresenting facts or falsifying records. Employees should inform the Navillus legal department if they learn that information in any filing or public communication was untrue or misleading at the time it was made or if subsequent information would affect a similar future filing or public communication.

Navillus will immediately report any mistakes found in company records to the relevant party/agency and will promptly provide a satisfactory explanation for any such mistake, and immediately correct the mistake if requested by the relevant party/agency.

Corporate Recordkeeping

We create, retain, and dispose of our company records as part of our normal course of business in compliance with all Navillus policies and guidelines, as well as all regulatory and legal requirements. All corporate records must be true, accurate and complete, and company data

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

must be promptly and accurately entered in our books in accordance with Navillus' and other applicable accounting principles. We must not improperly influence, manipulate, or mislead any audit, nor interfere with any auditor engaged to perform an independent audit of Navillus' books, records, processes or internal controls.

Internal Accounting Controls, Procedures, and Records

i. Navillus complies fully with U.S. Generally Accepted Accounting Principles. No false or misleading entries may be made in any Company books, records, or reports for any reason whatsoever. No unrecorded funds or books will be established or maintained for any purpose. All transactions will properly be recorded on the books and records of Navillus and its associated entities. Payments will not be made for purposes other than what is described by the records supporting the payment, or for the benefit of persons whose identity and interests are not disclosed to the Company.

ii. Navillus maintains a system of internal accounting controls that ensures the reliability and adequacy of its books and records and the proper recording of all transactions and disposition of assets. The only transactions to be

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

entered into by Company are those that are done in accordance with management's specific authorization and established policies and procedures.

iii. All transactions entered into by or on behalf of Navillus must be recorded in the accounts of the company in accordance with normal procedures. In this regard, financial transactions shall be handled honestly and recorded accurately. Specific attention shall be given to verifying the legitimacy of accounts payable, accounts receivable, and business expenses. On all construction projects, specific attention shall be given to verifying the legitimacy of payment requisitions and change orders.

iv. Navillus is committed to the highest standard of integrity in its billing practices. Company shall create and implement procedures to ensure that the Project Manager reviews all payment requisitions and certifies that they are accurate, in accord with the underlying agreement and/or change orders, and appropriately reflect either the amount of time and materials actually expended on the engagement or the percentage of completion of the engagement.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

v. All field negotiations should be documented and signed off by both parties to the negotiations.

vi. No undisclosed or unrecorded funds may be used for any purpose. Navillus shall, in its books and records, clearly identify all its assets and take steps to preserve them and prevent the concealment of income, fraudulent conveyances and the creation of concealed sums of cash.

vii. Navillus shall, take all reasonable measures to ensure that all employees and subcontractors hold all legally required documents including but not limited to: business licenses, permits, and/or immigration documents. All legally required documents must be current and valid. Failure to reasonably ensure compliance is a violation of this Code.

No Payments, Gifts, or Entertainment of Government and/or Union Officials

i. Government agencies have strict regulations concerning acceptance by their employees of money, entertainment, meals, gifts and other benefits of any kind, whether directly or indirectly, from firms and persons with whom the agencies conduct business. These

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

regulations are often specified in agency codes of ethics that Navillus employees may be required to follow. For example, all Company employees working on contracts involving projects of the Metropolitan Transportation Authority ("MTA") must complete an MTA Acknowledgment form that they have received, read, understand, and will comply with the MTA Vendor Code of Ethics.

ii. Navillus has collective bargaining agreements with various unions and is therefore bound by certain rules as they relate to union officials.

iii. Employees and others acting on behalf of Navillus are prohibited from offering or giving money, entertainment, meals, gifts, or benefits of any kind, whether directly or indirectly, to any employees of a government agency or union with which the Company does business, has done business, or seeks to do business.

Entertainment and Gifts to Private-Sector Clients and Prospective Clients

i. Navillus recognizes that its owners, principals, directors, officers, employees and agents on occasion, appropriately entertain private-sector clients, prospective clients and other guests. Any such entertainment expense is limited to $250

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

per event unless otherwise approved by the President or the Vice President.

ii. Some private-sector clients have policies prohibiting their employees from accepting gifts or entertainment from business associates. Prior to, or at the time of contracting with a client, Navillus must determine what the client's policies are with respect to meals, entertainment and gifts. Navillus must comply with the client's policies if they are stricter than those of the Company.

iii. All persons who provided a gift or entertainment must comply with all applicable internal accounting controls and ethics rules, as well as all provisions of law. All such expenses shall be accurately recorded in Company's books and records.

Gifts

All owners, principals, directors, officers, employees and agents of Navillus as well as their immediate family may not solicit or accept gifts, except those of nominal value (less than $100) or any special discounts, loans or other benefits from any person or firm doing, or seeking to do, business with Navillus, without the prior approval of the President or Vice President of the Company. This policy is also applicable when employees are acting in a

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

supervisory capacity for the client with outside contractors.

Improper or Illegal Payments

i. No Kickbacks or Rebates. All owners, principals, directors, officers, employees and agents of Navillus are prohibited from, either directly or indirectly, soliciting or accepting personal rebates, kickbacks or any form of "under-the-table" payment. This not only includes cash payments, but any other service or thing of value which may be intended to influence the actions of any employee of the Company.

ii. Navillus prohibits the direct or indirect payment or transfer of company funds, assets or services for the purpose of paying or facilitating bribes, kickbacks, or other payoffs and prohibits its owners, principals, employees and agents from participating directly or indirectly in such schemes. This prohibition includes, but is not limited to, bribery of government officials and employees, bribery of labor officials, commercial bribery and kickbacks. This prohibition also applies to unlawful payments made from the personal funds or assets of an owner, principal, employee or agent of Navillus, but does not include legitimate and proper political contributions. Such activity is unlawful and any

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

persons employed by Navillus that make or receive illegal payments are subject to prosecution by State and Federal authorities (Please refer to Code Section on Political Contributions and Activities.)

iii. Other than salary, benefits and ordinary compensation paid by Navillus (and other than gifts or entertainment that are allowed by this Code), the owners, principals, employees and agents of Company are not permitted to realize monetary or any other tangible personal gain from employment by Company. In this regard, owners, principals, employees and agents are prohibited from soliciting or receiving for their personal gain, directly or indirectly from any third party, anything of significant value in connection with a transaction entered into by or on behalf of Navillus. This prohibition includes receipt of cash payments as well as the receipt of any services, rebates or things of value intended to influence or reward the actions of the owner, principal, employee or agent or which could be perceived by others to be for the purpose of influencing or rewarding any such individual.

Fair Competition

Navillus believes that fair competition is fundamental to the free enterprise system and will not tolerate any act

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

that unlawfully restrains free trade and fair competition, or which amounts to an abuse of economic power.

i. All owners, principals, employees and agents of Navillus are prohibited from entering into any kind of agreement, understanding or arrangement with any competitor in restraint of trade or fair competition in regard to prices, terms or conditions of sale or service, territories or customers. Nor may owners, principals, employees and agents of the Company, in restraint of trade or fair competition, exchange or discuss with a competitor prices, terms or conditions of sale or service, or any other competitive information. While there may be situations where it is appropriate to speak in the presence of competitors about a particular project (*e.g.,* at pre-bid or pre-proposal meetings called by a purchasing authority), even in those settings owners, principals, employees and agents must be careful to avoid conversation that might suggest any kind of collective action or common course of conduct among competing companies that is in restraint of trade, fair competition, or collusion.

ii. All purchases and subcontracts entered into by Navillus will be made on the basis of price,

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

quality, service, and ability to meet the Company's and /or Client's needs.

iii. If an owner, principal, employee or agent of Navillus has any question or doubt about whether his actual or anticipated activities violates this standard, he or she must bring to the attention of executive management before continuing or further pursuing those actions.

Causes for Termination or Disciplinary Action

Any act by any employee that may be considered to be contrary to the policies of the Company, particularly those embodied in this Code, may be cause for disciplinary action, up to and including termination without notice. Violations which constitute cause for termination without notice include, but are not limited to, the following:

i. Theft, offering or taking bribes, fraudulent record keeping, embezzlement, forgery, or other criminal, unethical or dishonest conduct;

ii. Reporting to work under the influence of alcohol or drugs not taken under the direction of a licensed physician, or unauthorized use or possession of alcohol or drugs on Company premises, while operating a Company vehicle or conducting Company-related business off-site;

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

iii. Working for a competitor or releasing confidential information to a competitor;

iv. Insubordination;

v. Knowingly providing false or falsified information on any Company document (including a Company employment application, business records, inspection reports and any document filed with a government office or employee);

vi. Misconduct on or off the job that materially and adversely affects the Company;

vii. Fighting or other acts of violence at work;

viii. Possession of firearms or other weapons on Company, client or Company event location property;

ix. Material or repeated violation of this Code or other any policies or practices of the Company.

Reporting Requirements

Every employee, officer, director, and agent of Navillus has the responsibility to ask questions, seek guidance, report suspected violations and express concerns regarding compliance with this Code. Any employee, officer, director, or agent who knows or believes that any other employee or representative of the Company has

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

engaged or is engaging in Company-related conduct that violates applicable law or this Code should report such information.

Each employee or agent of the Company is responsible for promptly reporting any information received regarding a suspected or actual violation of law or regulation in relation to any of the Company's operations, and of any violation of Company policies and procedures concerning its integrity and/or unethical conduct or other impropriety including but not limited to matters addressed in this Code, regardless of whether committed by an officer, director, employee, agent, subcontractor, consultant, vendor or anyone else.

Violations may be reported through the Company's Ethics Hotline, 1-800-899-1684, or by email at ethics@navillusinc.com. The identity of an individual who reports a violation or a potential violation will be kept confidential to the greatest extent practicable.

Every officer, director, employee and agent of Company is required to cooperate in and assist with any investigation concerning violations or potential violations of law or regulation or of any violation of Company policies and procedures concerning its integrity and/or unethical conduct or other impropriety including but not limited to matters addressed in this Code.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Navillus prohibits any person from knowingly or recklessly bringing a false complaint of institutionally sanctionable conduct against Navillus. Any such action may lead to disciplinary action, up to and including termination of employment or expulsion.

Navillus takes all charges of alleged criminal misconduct with the utmost seriousness. Any charges of criminal conduct by a government investigative or prosecutorial agency will be swiftly and thoroughly investigated. Any Key Person at Navillus with pending criminal charges shall be terminated and/or placed on unpaid leave until the resolution of said charges.

Any employee or Key Person who reasonably suspects or has knowledge of illegal activities or unethical conduct related to business activities conducted by Navillus shall promptly report to the Company's Ethics hotline or e-mail address.

The Ethics hotline or e-mail address will serve as the only acceptable medium of reporting suspected or actual illegal activities or unethical conduct related to business activities. The reporting of alleged or actual misconduct to any other person or entity is forbidden unless required by law, and must be kept in confidence by all who become aware of information regarding a report, except any report may be communicated to Navillus' legal counsel upon a condition of confidentiality.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Navillus prohibits retaliation against any individual who reports a violation or a potential violation of this Code, discrimination or harassment, suspected or actual illegal or unethical conduct or other impropriety, opposes discriminatory or harassing conduct, or participates in an investigation of such reports. Retaliation against an individual for reporting a violation or a potential violation of this Code, harassment or discrimination, suspected or actual illegal or unethical conduct or other impropriety, opposing discriminatory or harassing conduct, or participating in an investigation of a claim of a violation or a potential violation of this Code or of any act of discrimination or harassment is a serious violation of this Code and, like any violation of this Code, as well as any act of discrimination or harassment itself, will be subject to disciplinary action, up to and including termination of employment.

For purposes under this Code, retaliation includes any action that could discourage an individual from coming forward to make or support a claim of violation or a potential violation of this Code as well as any claim of discrimination or harassment, or suspected or actual illegal or unethical conduct or other impropriety. Such retaliation is unlawful under federal, state, and, where applicable, local law. Adverse action need not be job-related or occur on Navillus premises to constitute unlawful retaliation.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Exceptions

While some Company policies must be strictly adhered to without any exceptions, in other cases, exceptions may be possible. For example, a minor conflict-of-interest situation can sometimes be resolved simply by disclosure of the possible conflict to all interested parties. Any employee who believes that an exception to any policy is appropriate should put that request in writing to Navillus' General Counsel. If the General Counsel believes, after reviewing and researching the issue, that the requested activity should be allowed, then the General Counsel shall put that approval in writing.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Appendix A-1

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Code of Ethics and Standards of Conduct Acknowledgement and Certification

I received, read, and have been trained on the Company's Code of Ethics and Standards of Conduct. I certify that I must comply with all provisions of the Code of Conduct as well as related Company policies and understand that compliance is a condition of my employment. I also certify that I am not aware of any violations of the Code of Conduct or related policies, except as noted below:

[_____]

[_____]

If I become aware of any violation of the Code of Conduct, I understand that I must promptly report it.

I understand that my violating any provision(s) of the Code, and/or failing to report violations I become aware of, are grounds for discipline, including, suspension and discharge, sanctions, and referral for criminal prosecution and/or or civil action.

I also understand and agree that the Code is not intended to, and does not, create a promise or contract of employment or continued employment, and that I am and remain an employee at-will which means I or the Company may terminate my employment at any time.

Date: _____

Signature: _____

Name (printed or typed): _____

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Appendix A-2

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Sexual Harassment Policy

Introduction

Navillus is committed to maintaining a workplace free from sexual harassment. Sexual harassment is a form of workplace discrimination. All employees are required to work in a manner that prevents sexual harassment in the workplace. This Policy is one component of Navillus' commitment to a discrimination-free work environment. Sexual harassment is against the law and all employees have a legal right to a workplace free from sexual harassment and employees are urged to report sexual harassment by filing a complaint internally with Sexual Harassment. Employees can also file a complaint with a government agency or in court under federal, state or local antidiscrimination laws.

Policy:

1. Navillus' policy applies to all employees, applicants for employment, interns, whether paid or unpaid, contractors and persons conducting business, regardless of immigration status, with Navillus Contracting. In the remainder of this document, the term "employees" refers to this collective group.

2. Sexual harassment will not be tolerated. Any employee or individual covered by this policy

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

who engages in sexual harassment or retaliation will be subject to remedial and/or disciplinary action (e.g., counseling, suspension, termination).

3. Retaliation Prohibition: No person covered by this Policy shall be subject to adverse action because the employee reports an incident of sexual harassment, provides information, or otherwise assists in any investigation of a sexual harassment complaint. Navillus will not tolerate such retaliation against anyone who, in good faith, reports or provides information about suspected sexual harassment. Any employee of Navillus who retaliates against anyone involved in a sexual harassment investigation will be subjected to disciplinary action, up to and including termination. All employees, paid or unpaid interns, or non-employees working in the workplace who believe they have been subject to such retaliation should inform a supervisor, manager, or Colin Mathers, President and/or Navillus' legal department. All employees, paid or unpaid interns or non-employees who believe they have been a target of such retaliation may also seek relief in other available forums, as explained below in the section on Legal Protections.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

4. Sexual harassment is offensive, is a violation of our policies, is unlawful, and may subject Navillus to liability for harm to targets of sexual harassment. Harassers may also be individually subject to liability. Employees of every level who engage in sexual harassment, including managers and supervisors who engage in sexual harassment or who allow such behavior to continue, will be penalized for such misconduct.

5. Navillus will conduct a prompt and thorough investigation that ensures due process for all parties, whenever management receives a complaint about sexual harassment, or otherwise knows of possible sexual harassment occurring. Navillus will keep the investigation confidential to the extent possible. Effective corrective action will be taken whenever sexual harassment is found to have occurred. All employees, including managers and supervisors, are required to cooperate with any internal investigation of sexual harassment.

6. All employees are encouraged to report any harassment or behaviors that violate this policy. Navillus will provide all employees a complaint

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

form for employees to report harassment and file complaints.

7. Managers and supervisors are required to report any complaint that they receive, or any harassment that they observe or become aware of, to Colin Mathers, President and/or Navillus' legal department.

8. This policy applies to all employees, paid or unpaid interns, and non-employees and all must follow and uphold this policy. This policy must be provided to all employees and should be posted prominently in all work locations to the extent practicable (for example, in a main office, not an offsite work location) and be provided to employees upon hiring.

What Is "Sexual Harassment"?

Sexual harassment is a form of sex discrimination and is unlawful under federal, state, and (where applicable) local law. Sexual harassment includes harassment on the basis of sex, sexual orientation, self-identified or perceived sex, gender expression, gender identity and the status of being transgender.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Sexual harassment includes unwelcome conduct which is either of a sexual nature, or which is directed at an individual because of that individual's sex when:

- Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive work environment, even if the reporting individual is not the intended target of the sexual harassment;

- Such conduct is made either explicitly or implicitly a term or condition of employment; or

- Submission to or rejection of such conduct is used as the basis for employment decisions affecting an individual's employment.

A sexually harassing hostile work environment includes, but is not limited to, words, signs, jokes, pranks, intimidation or physical violence which are of a sexual nature, or which are directed at an individual because of that individual's sex. Sexual harassment also consists of any unwanted verbal or physical advances, sexually explicit derogatory statements or sexually discriminatory remarks made by someone which are offensive or objectionable to the recipient, which cause the recipient discomfort or humiliation, which interfere with the recipient's job performance.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Sexual harassment also occurs when a person in authority tries to trade job benefits for sexual favors. This can include hiring, promotion, continued employment or any other terms, conditions or privileges of employment. This is also called “quid pro quo” harassment.

Any employee who feels harassed should report so that any violation of this policy can be corrected promptly. Any harassing conduct, even a single incident, can be addressed under this policy.

Examples of sexual harassment

The following describes some of the types of acts that may be unlawful sexual harassment and that are strictly prohibited:

- Physical acts of a sexual nature, such as:
  - Touching, pinching, patting, kissing, hugging, grabbing, brushing against another employee’s body or poking another employee’s body;
  - Rape, sexual battery, molestation or attempts to commit these assaults.
- Unwanted sexual advances or propositions, such as:
  - Requests for sexual favors accompanied by implied or overt threats concerning

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D



the target's job performance evaluation, a promotion or other job benefits or detriments;

- Subtle or obvious pressure for unwelcome sexual activities.

- Sexually oriented gestures, noises, remarks or jokes, or comments about a person's sexuality or sexual experience, which create a hostile work environment.

- Sex stereotyping occurs when conduct or personality traits are considered inappropriate simply because they may not conform to other people's ideas or perceptions about how individuals of a particular sex should act or look.

- Sexual or discriminatory displays or publications anywhere in the workplace, such as:

    - Displaying pictures, posters, calendars, graffiti, objects, promotional material, reading materials or other materials that are sexually demeaning or pornographic. This includes such sexual displays on workplace computers or cell phones and sharing such displays while in the workplace.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

- Hostile actions taken against an individual because of that individual's sex, sexual orientation, gender identity and the status of being transgender, such as:

    - Interfering with, destroying or damaging a person's workstation, tools or equipment, or otherwise interfering with the individual's ability to perform the job;
    - Sabotaging an individual's work;
    - Bullying, yelling, name-calling.

Who can be a target of sexual harassment?

Sexual harassment can occur between any individuals, regardless of their sex or gender. New York Law protects employees, paid or unpaid interns, and non-employees, including independent contractors, and those employed by companies contracting to provide services in the workplace. Harassers can be a superior, a subordinate, a coworker or anyone in the workplace including an independent contractor, contract worker, vendor, client, customer or visitor.

Where can sexual harassment occur?

Unlawful sexual harassment is not limited to the physical workplace itself. It can occur while employees are

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

traveling for business or at employer sponsored events or parties. Calls, texts, emails, and social media usage by employees can constitute unlawful workplace harassment, even if they occur away from the workplace premises, on personal devices or during non-work hours.

Retaliation

Unlawful retaliation can be any action that could discourage a worker from coming forward to make or support a sexual harassment claim. Adverse action need not be job-related or occur in the workplace to constitute unlawful retaliation (e.g., threats of physical violence outside of work hours).

Such retaliation is unlawful under federal, state, and (where applicable) local law. The New York State Human Rights Law protects any individual who has engaged in "protected activity." Protected activity occurs when a person has:

- made a complaint of sexual harassment, either internally or with any anti-discrimination agency;
- testified or assisted in a proceeding involving sexual harassment under the Human Rights Law or other anti-discrimination law;
- opposed sexual harassment by making a verbal or informal complaint to management, or by simply informing a supervisor or manager of harassment;

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

- reported that another employee has been sexually harassed; or
- encouraged a fellow employee to report harassment.

Even if the alleged harassment does not turn out to rise to the level of a violation of law, the individual is protected from retaliation if the person had a good faith belief that the practices were unlawful. However, the retaliation provision is not intended to protect persons making intentionally false charges of harassment.

Reporting Sexual Harassment

Preventing sexual harassment is everyone's responsibility. Navillus cannot prevent or remedy sexual harassment unless it knows about it. Any employee, paid or unpaid intern or non-employee who has been subjected to behavior that may constitute sexual harassment is encouraged to report such behavior to a supervisor, manager or Colin Mathers, President and/or Navillus' legal department. Anyone who witnesses or becomes aware of potential instances of sexual harassment should report such behavior to a member of the Navillus executive management team, Navillus' General Counsel, by calling the Company's Ethics Hotline on 1-800-899-1684, or by email at ethics@navillusinc.com.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Employees, paid or unpaid interns or non-employees who believe they have been a target of sexual harassment may also seek assistance in other available forums, as explained below in the section on Legal Protections.

Complaint and Investigation of Sexual Harassment

All complaints or information about sexual harassment will be investigated, whether that information was reported in verbal or written form. Investigations will be conducted in a timely manner and will be confidential to the extent possible.

An investigation of any complaint, information or knowledge of suspected sexual harassment will be prompt and thorough, commenced immediately and completed as soon as possible. The investigation will be kept confidential to the extent possible. All persons involved, including complainants, witnesses and alleged harassers will be accorded due process, as outlined below, to protect their rights to a fair and impartial investigation.

Any employee may be required to cooperate as needed in an investigation of suspected sexual harassment. Navillus will not tolerate retaliation against employees who file complaints, support another's complaint or participate in an investigation regarding a violation of this policy.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

While the process may vary from case to case, investigations should be done in accordance with the following steps:

- Upon receipt of complaint, Navillus' legal department will log the complaint, conduct an immediate review of the allegations, and take any interim actions for example instructing the respondent to refrain from communications with the complainant and referring the complaint to an independent third party for investigation, as appropriate. If complaint is verbal, encourage the individual to complete the "Complaint Form" in writing. If he or she refuses, prepare a Complaint Form based on the verbal reporting.

- If documents, emails or phone records are relevant to the investigation, take steps to obtain and preserve them.

- Request and review all relevant documents, including all electronic communications.

- Interview all parties involved, including any relevant witnesses;

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

- Create a written documentation of the investigation (such as a letter, memo or email), which contains the following:

    - A list of all documents reviewed, along with a detailed summary of relevant documents;
    - A list of names of those interviewed, along with a detailed summary of their statements;
    - A timeline of events;
    - A summary of prior relevant incidents, reported or unreported; and

- The basis for the decision and final resolution of the complaint, together with any corrective action(s).

- Keep the written documentation and associated documents in a secure and confidential location.

- Promptly notify the individual who reported and the individual(s) about whom the complaint was made of the final determination and implement any corrective actions identified in the written document.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

- Inform the individual who reported of the right to file a complaint or charge externally as outlined in the next section.

Legal Protections and External Remedies

Sexual harassment is not only prohibited by Navillus but is also prohibited by state, federal, and, where applicable, local law.

Aside from the internal process at Navillus, employees may also choose to pursue legal remedies with the following governmental entities. While a private attorney is not required to file a complaint with a governmental agency, you may seek the legal advice of an attorney.

In addition to those outlined below, employees in certain industries may have additional legal protections.

State Human Rights Law (HRL)

The Human Rights Law (HRL), codified as N.Y. Executive Law, art. 15, § 290 et seq., applies to all employers in New York State with regard to sexual harassment, and protects employees, paid or unpaid interns and non-employees, regardless of immigration status. A complaint alleging violation of the Human Rights Law may be filed either with the Division of Human Rights (DHR) or in New York State Supreme Court.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Complaints with DHR may be filed any time within one year of the harassment. If an individual did not file at DHR, they can sue directly in state court under the HRL, within three years of the alleged sexual harassment. An individual may not file with DHR if they have already filed a HRL complaint in state court.

Complaining internally to Navillus does not extend your time to file with DHR or in court. The one year or three years is counted from date of the most recent incident of harassment.

You do not need an attorney to file a complaint with DHR, and there is no cost to file with DHR.

DHR will investigate your complaint and determine whether there is probable cause to believe that sexual harassment has occurred. Probable cause cases are forwarded to a public hearing before an administrative law judge. If sexual harassment is found after a hearing, DHR has the power to award relief, which varies but may include requiring your employer to take action to stop the harassment, or redress the damage caused, including paying of monetary damages, attorney's fees and civil fines.

DHR's main office contact information is: NYS Division of Human Rights, One Fordham Plaza, Fourth Floor, Bronx, New York 10458. You may call (718) 741-8400 or visit: www.dhr.ny.gov.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Contact DHR at (888) 392-3644 or visit dhr.ny.gov/complaint for more information about filing a complaint. The website has a complaint form that can be downloaded, filled out, notarized, and mailed to DHR. The website also contains contact information for DHR's regional offices across New York State.

Civil Rights Act of 1964

The United States Equal Employment Opportunity Commission (EEOC) enforces federal anti-discrimination laws, including Title VII of the 1964 federal Civil Rights Act (codified as 42 U.S.C. § 2000e et seq.). An individual can file a complaint with the EEOC anytime within 300 days from the harassment. There is no cost to file a complaint with the EEOC. The EEOC will investigate the complaint, and determine whether there is reasonable cause to believe that discrimination has occurred, at which point the EEOC will issue a Right to Sue letter permitting the individual to file a complaint in federal court.

The EEOC does not hold hearings or award relief, but may take other action including pursuing cases in federal court on behalf of complaining parties. Federal courts may award remedies if discrimination is found to have occurred. In general, private employers must have at least 15 employees to come within the jurisdiction of the EEOC.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

An employee alleging discrimination at work can file a "Charge of Discrimination." The EEOC has district, area, and field offices where complaints can be filed. Contact the EEOC by calling 1-800-669-4000 (TTY: 1-800-669-6820), visiting their website at www.eeoc.gov or via email at info@eeoc.gov.

If an individual filed an administrative complaint with DHR, DHR will file the complaint with the EEOC to preserve the right to proceed in federal court.

Local Protections

Many localities enforce laws protecting individuals from sexual harassment and discrimination. An individual should contact the county, city or town in which they live to find out if such a law exists. For example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

conduct may constitute a crime. Contact the local police department.

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Appendix A-3

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Conflicts of Interest Disclosure

It is the policy of Navillus to prohibit its employees from engaging in any activity, practice or conduct which conflicts with, or appears to conflict with, the interest of Navillus and its clients and/or is in violation of this Code. Any conflict or potential conflict of interest must be disclosed to Navillus within 10 days of its occurrence.

The following is a complete list of all firms in which I, my spouse, dependents or members of my household are employed or have, directly or indirectly, a financial interest and which have business dealings with the Company or with any business that is owned or controlled by any company or principal of any company with which the Company does business, and a brief description of such relationships. (A financial interest in this sense does not include ownership of less than 5% of the stock of a publicly-traded corporation.)

In addition, because some government agencies require that vendors identify any of the vendor's employees that are related to an employee of that agency, listed below are members of my family that are employed by a government agency.

Also listed are any other personal interests that may represent a conflict of interest under this Code.

LIST OF ACTIVITIES ***See A, B, C & D***

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

A. Name of Association/Business:

_____

Description of Services:

_____

_____

Involved as: ☐ Part Time Employee ☐ Owner/Partner ☐ Independent Contractor

☐ Other_____

Client Name	Annual Billing
1._____	$_____
2._____	$_____
3._____	$_____

Name of Association/Business:

_____

Description of Services:

_____

_____

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Involved as: ☐ Part Time Employee ☐ Owner/Partner ☐ Independent Contractor

☐ Other_____

Client Name Annual Billing

1._____ $_____

2._____ $_____

3._____ $_____

B. The following is a list of all business enterprises my spouse, dependents, or other members of my household is/are employed where he/she/they are in a position to influence business decisions and with which this Company has business dealings: (Indicate name of family member, business enterprise and position held).

_____

_____

C. The following is a list of all members of my family (including spouse, parents, children, dependents, siblings, etc.) and members of my household who are

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

employed by a government agency: (Indicate name of family member, relationship, agency and position held).

_____

_____

D. Also listed are any other personal interests that may represent a conflict of interest under this Code.

This disclosure statement sets forth all of my reportable interests which may represent a conflict of interest under the Code.

[Check One]

To my knowledge and belief, I have no reportable interests. [____]

To my knowledge and belief, the following disclosure statement sets forth all of my reportable interests. [____]

Employee

Name: _____

Docusign Envelope ID: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D

Date: _____

Employee Signature:

_____

_____

Supervisor's Comments:

_____

_____

Supervisor Name:

_____**Title:**_____

Final Determination:

_____

_____

_____

_____

Name & Title:

_____

_____

Date: _____

Certificate Of Completion

Envelope Id: 87BE86F2-B26F-46B9-98E2-9DA32A76A83D
Status: Completed
Subject: Complete with Docusign: PS341Q Elli Contract_FNL.pdf
Source Envelope:
Document Pages: 167
Signatures: 2
Certificate Pages: 2
Initials: 0
AutoNav: Enabled
EnvelopeId Stamping: Enabled
Time Zone: (UTC-05:00) Eastern Time (US & Canada)

Envelope Originator:
Peter Downes
633 3rd Avenue, 17th Floor
17th Floor
New York, NY 10017
smaddock@navillusinc.com
IP Address: 50.75.211.186

Record Tracking

Status: Original
8/17/2025 4:58:43 PM
Holder: Peter Downes
smaddock@navillusinc.com
Location: DocuSign

Signer Events	Signature	Timestamp
Lissette Olivio lissette@ellicorp.com Chief Executive Officer Security Level: Email, Account Authentication (None)	DocuSigned by: Lissette Olivio C6BB4925BCAB400... Signature Adoption: Pre-selected Style Using IP Address: 100.38.123.123	Sent: 8/17/2025 5:00:22 PM Viewed: 8/18/2025 10:42:36 AM Signed: 8/18/2025 4:36:50 PM
Electronic Record and Signature Disclosure: Not Offered via Docusign		
Peter Downes smaddock@navillusinc.com Vice President Navillus, Inc Security Level: Email, Account Authentication (None)	DocuSigned by: Peter Downes 3D112D92B977490... Signature Adoption: Pre-selected Style Using IP Address: 50.75.211.186	Sent: 8/18/2025 4:36:51 PM Viewed: 8/18/2025 8:37:50 PM Signed: 8/18/2025 8:37:58 PM
Electronic Record and Signature Disclosure: Not Offered via Docusign		

In Person Signer Events	Signature	Timestamp

Editor Delivery Events	Status	Timestamp

Agent Delivery Events	Status	Timestamp

Intermediary Delivery Events	Status	Timestamp

Certified Delivery Events	Status	Timestamp

Carbon Copy Events	Status	Timestamp

Witness Events	Signature	Timestamp

Notary Events	Signature	Timestamp

Envelope Summary Events	Status	Timestamps
Envelope Sent	Hashed/Encrypted	8/17/2025 5:00:22 PM
Certified Delivered	Security Checked	8/18/2025 8:37:50 PM

Envelope Summary Events	Status	Timestamps
Signing Complete	Security Checked	8/18/2025 8:37:58 PM
Completed	Security Checked	8/18/2025 8:37:58 PM

Payment Events	Status	Timestamps